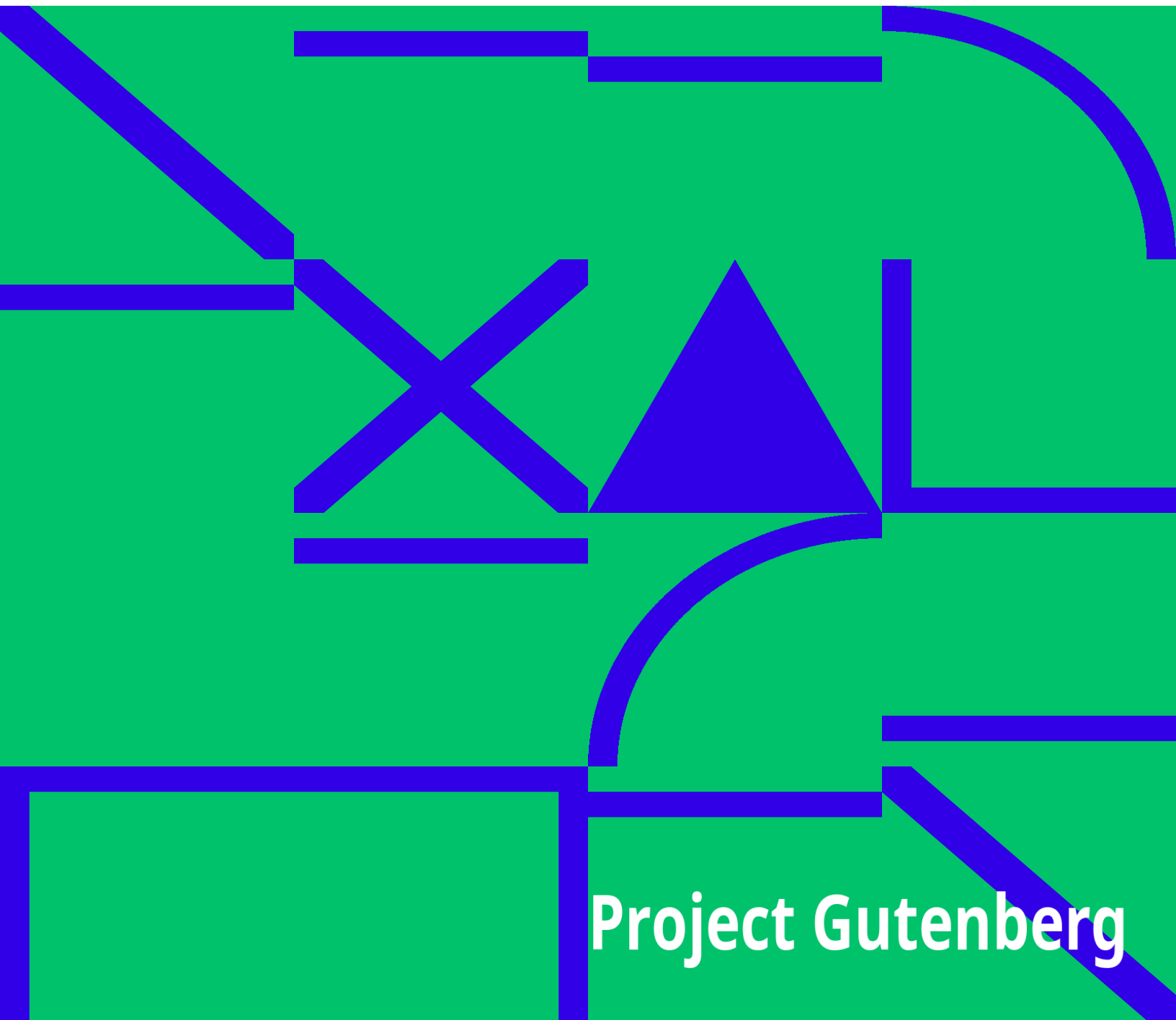


Medieval Europe

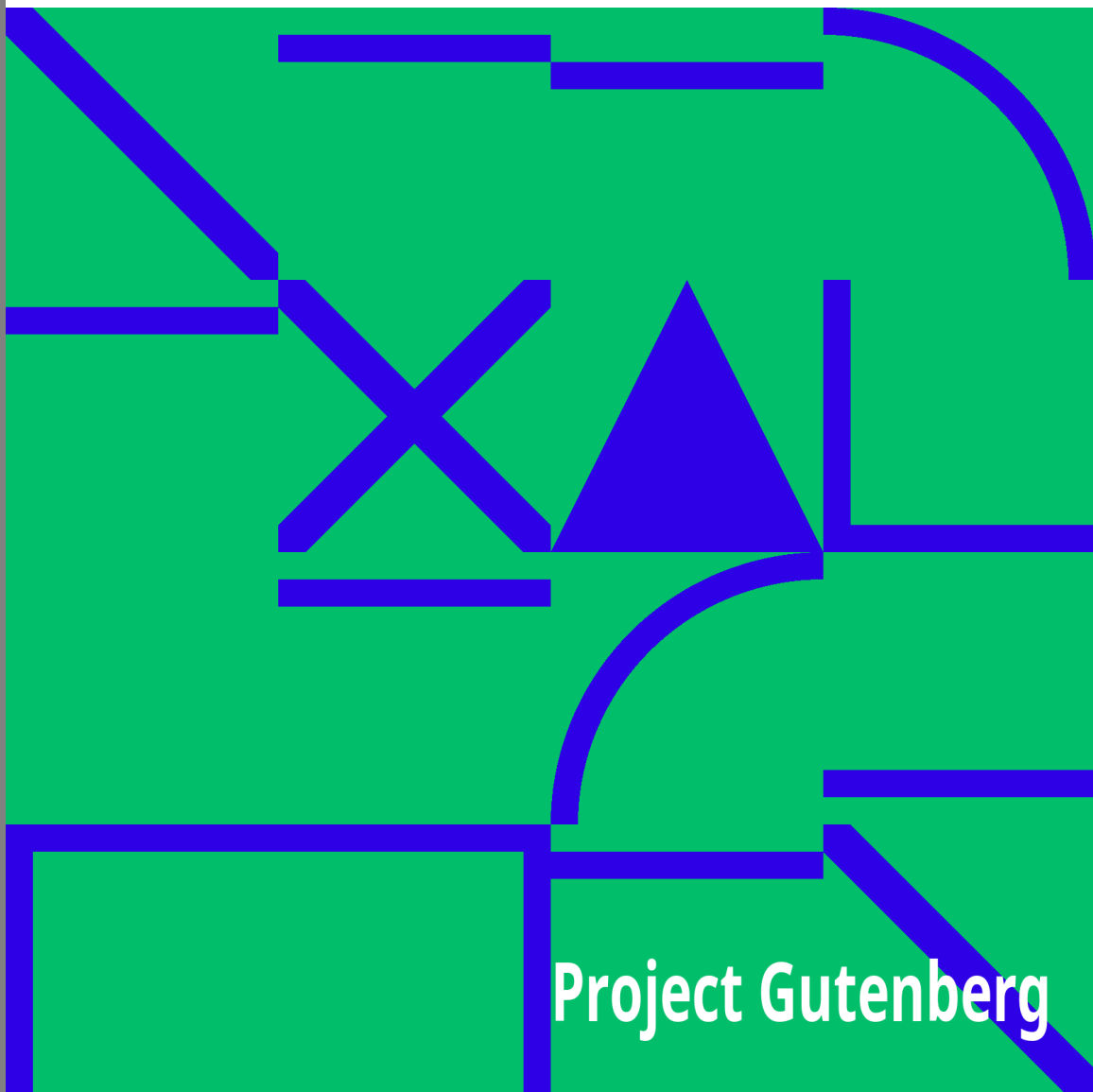
H. W. Carless Davis

A decorative geometric pattern in the bottom right corner, featuring a green square background with a blue border. The pattern includes a large blue 'X' shape, a blue triangle, and several blue curved lines and straight segments forming a complex geometric design.

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Medieval Europe

H. W. Carless Davis



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MEDIEVAL EUROPE

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MEDIEVAL EUROPE

INTRODUCTION

All divisions of history into periods are artificial in proportion as they are precise. In history there is, strictly speaking, no end and no beginning. Each event is the product of an infinite series of causes, the starting-point of an infinite series of effects. Language and thought, government and manners, transform themselves by imperceptible degrees; with the result that every age is an age of transition, not fully intelligible unless regarded as the child of a past and the parent of a future. Even so the species of the animal and vegetable kingdoms shade off one into another until, if we only observe the marginal cases, we are inclined to doubt whether the species is more than a figment of the mind. Yet the biologist is prepared to defend the idea of species; and in like manner the historian holds that the distinction between one phase of culture and another is real enough to justify, and, indeed, to demand, the use of distinguishing names. In the development of single communities and groups of communities there occurs now and again a moment of equilibrium, when institutions are stable and adapted to the needs of those who live under them; when the minds of men are filled with ideas which they find completely satisfying; when the statesman, the artist, and the poet feel that they are best fulfilling their several missions if they express in deed and work and language the aspirations common to the whole society. Then for a while man appears to be the master of his fate;

and then the prevailing temper is one of reasoned optimism, of noble exaltation, of content allied with hope. The spectator feels that he is face to face with the maturity of a social system and a creed. These moments are rare indeed; but it is for the sake of understanding them that we read history. All the rest of human fortunes is in the nature of an introduction or an epilogue. Now by a period of history we mean the tract of years in which this balance of harmonious activities, this reconciliation of the real with the ideal, is in course of preparing, is actually subsisting, and is vanishing away.

Such a period were the Middle Ages—the centuries that separate the ancient from the modern world. They were something more than centuries of transition, though the genius of a Gibbon has represented them as a long night of ignorance and force, only redeemed from utter squalor by some lingering rays of ancient culture. It is true that they began with an involuntary secession from the power which represented, in the fifth century, the wisdom of Greece and the majesty of Rome; and that they ended with a jubilant return to the Promised Land of ancient art and literature. But the interval had been no mere sojourning in Egypt. The scholars of the Renaissance destroyed as much as they created. They overthrew one civilisation to clear the ground for another. It was imperative that the old canons of thought and conduct should be reconsidered. The time comes in the history of all half-truths when they form the great obstacles to the pursuit of truth. But this should not prevent us from recognising the value of the half-truth as a guide to those who first discover it; nor should we fall into the error, common to all reformers, of supposing that they comprehend the whole when they assert the importance of the neglected half. Erasmus had reason on his side; but so, too, had Aquinas. Luther was in his rough way a prophet; but St. Bernard also had a message for humanity.

Medieval culture was imperfect, was restricted to a narrow circle of superior minds, offered no satisfaction to some of the higher faculties and instincts. Measure it, however, by the memories and the achievements that it has bequeathed to the modern world, and it will be found not unworthy to rank with those of earlier and later Golden Ages. It flourished in the midst of rude surroundings, fierce passions, and material ambitions. The volcanic fires of primitive human nature smouldered near the surface of medieval life; the events chronicled in medieval history are too often those of sordid and relentless strife, of religious persecutions, of crimes and conquests mendaciously excused by the affectation of a moral aim. The truth is that every civilisation has a seamy side, which it is easy to expose and to denounce. We should not, however, judge an age by its crimes and scandals. We do not think of the Athenians solely or chiefly as the people who turned against Pericles, who tried to enslave Sicily, who executed Socrates. We appraise them rather by their most heroic exploits and their most enduring work. We must apply the same test to the medieval nations; we must judge of them by their philosophy and law, by their poetry and architecture, by the examples that they afford of statesmanship and saintship. In these fields we shall not find that we are dealing with the spasmodic and irreflective heroisms which illuminate a barbarous age. The highest medieval achievements are the fruit of deep reflection, of persevering and concentrated effort, of a self forgetting self in the service of humanity and God. In other words, they spring from the soil, and have ripened in the atmosphere, of a civilised society.

I

THE FALL OF THE ROMAN EMPIRE

Medieval history begins with the dissolution of the Western Empire, with the abandonment of the Latin world to German conquerors. Of the provinces affected by the catastrophe the youngest was Britain; and even Britain had then been Roman soil for more than three hundred years. For Italy, Spain, and Gaul, the change of masters meant the atrophy of institutions which, at first reluctantly accepted, had come by lapse of time to be accepted as part of the natural order. Large tracts of Europe lay outside the evacuated provinces; for the Romans never entered Ireland or Scandinavia or Russia, and had failed to subjugate Scotland and the greater part of modern Germany. But the Romanised provinces long remained the dominant force in European history; the hearth-fire of medieval culture was kindled on the ruins of the Empire. How far the victorious Teuton borrowed from the conquered provincial is a question still debated; the degree and the nature of Rome's influence on the new rulers varied in every province, indeed in different parts of the same province. The fact of the debt remains, suggesting a doubt whether in this case it was indeed the fittest who survived. The flaws in a social order which has collapsed under the stress of adverse fortunes are painfully apparent. It is natural to speak of the final overthrow as the judgment of heaven or the verdict of events. But it has still to be proved that war is an unfailing test of worth; we have banished the

judicial combat from our law courts, and we should be rash in assuming that a process obviously absurd when applied to the disputes of individuals ought to determine the judgments of history on nationalities or empires.

The immediate and obvious causes which ruined the Western Empire were military and political—the shortcomings of a professional army and professional administrators. If asked whether these shortcomings were symptomatic of evils more generally diffused through other ranks and classes of society, we must go deeper in the analysis of facts. No *a priori* answer would be satisfactory.

The beginning and the end of the disaster were successful raids on Italy. Alaric and his Visigoths (401-410 A.D.) shattered the prestige and destroyed the efficiency of the government which ruled in the name of the feeble Honorius. The Ostrogoths under Theodoric destroyed the last simulacrum of an imperial power rooted in Italy (489-493 A.D.). After Theodoric had vanquished Odoacer, it was clear that the western provinces would not again acknowledge an Emperor acclaimed at Ravenna; although the chance remained that they might be reconquered and reorganised from Constantinople. This chance disappeared when the Lombards crossed the Alps (568 A.D.) and descended on the Po valley. From first to last Italy was the key to the West. And these successive shocks to imperial power in Italy were all due to one cause. All three of the invading hordes came from the Danube. The Roman bank of the great river was inadequately garrisoned, and a mistaken policy had colonised the Danubian provinces with Teutonic peoples, none the less dangerous for being the nominal allies (*foederati*) of the Empire. The Visigothic raids, which were in fact decisive, succeeded because the military defences of the Western Empire were already strained to breaking-point; and because the Roman armies were not only outnumbered, but also paralysed by the jealousies of rival statesmen, and divided by the mutinies of generals aspiring to the purple. The initial

disasters were irreparable, because the whole machine of Roman officialdom came to a standstill when the guiding hand of Ravenna failed. Hitherto dependent on Italy, the other provinces were now like limbs amputated from the trunk. Here and there a local leader raised the standard of resistance to the barbarians. But a large proportion of the provincials made peace on the best terms they could obtain. Such are the essential facts.

Evidently the original error of the Romans was the undue extension of their power. This was recognised by no less a statesman than Augustus, the founder of the Empire; but even in his time it was too late to sound a retreat; he could only register a protest against further annexations. Embracing the whole of the Mediterranean littoral and a large part of the territories to the south, east, and north, the Empire was encumbered with three land frontiers of enormous length. Two of these, the European and the Asiatic, were perpetual sources of anxiety, and called for separate military establishments. That neither might be neglected in the interest of the other it was reasonable to put the imperial power in commission between two colleagues. Diocletian (284-305 A.D.) was the first to adopt this plan; from his time projects of partition were in the air and would have been more regularly carried out, had not experience shown that partitions led naturally to civil wars between rival Emperors. In 395, on the death of the great Theodosius, the hazardous expedient was given a last trial. His youthful sons, Arcadius and Honorius, were allowed to divide the Empire; but the line of partition was drawn with more regard to racial jealousies than military considerations. It extended from the middle Danube (near Belgrade) to a point near Durazzo on the Adriatic coast, and thence to the Gulf of Sidra. East of this line lay the sphere of Greek civilisation, the provinces which looked to Alexandria and Antioch and Constantinople as their natural capitals. West of it the prevailing language was Latin, and the higher classes of society modelled themselves upon the Italian aristocracy.

Founded upon a principle which appeals to our modern respect for nationality, this partition only gave a legal form to a schism which had been long in preparation. But in one respect it was disastrous. The defence of the Danube frontier was divided between the two governments; and that of the East, rating the impoverished Balkan peninsula as of secondary importance, and envisaging the problem from a wholly selfish point of view, left unguarded the great highways leading from the Danube into Italy. Stilicho, the great general who administered the West in the name of Honorius, ventured to meet this danger by intervening in the peninsula, and even in the political intrigues of Constantinople. He only succeeded in winning a precarious alliance with the Visigoths and the permanent ill-will of the Eastern Empire. He was left to deal single-handed with the first invaders of Italy; and the estrangement of the two imperial courts persisted after his untimely fall. The Western Empire, betrayed by the one possible ally, collapsed under the strain of simultaneous attacks along the whole line of the European frontier.

It has been alleged that the Roman armies were neither so robust nor so well disciplined in the fifth century as they had been in an earlier age. However this may be, they could still give a good account of themselves when matched on equal terms with the most warlike of the barbarians. It was in patriotism and in numbers, rather than in professional efficiency, that they failed when put to the supreme test.

The armies were now largely recruited with barbarians, who numbered more than half the fighting strength and were esteemed the flower of the Roman soldiery. Many of these hirelings showed an open contempt for their employers, and sympathised with the enemies whom they were paid to fight. Furthermore, each army, whatever its constituent elements, tended to be a hereditary caste, with a strong corporate spirit, respecting no authority but that of the general. The soldiers had no civic interests; but they had

standing grievances against the Empire. Any political crisis suggested to them the idea of a mutiny led by the general, sometimes to obtain arrears of pay and donatives, sometimes to put their nominee upon the throne. The evil was an old one, dating from the latter days of the Republic, when Marius, in the interests of efficiency, had made military service a profession. But it was aggravated under the successors of Diocletian, as the barbarian element in the armies increased and the Roman element diminished. Its worst effects appeared in the years 406-407. The German inroads upon Italy and Gaul were then followed by the proclamation of military usurpers in Britain and on the Rhine; the Roman West was divided by civil war at the very moment when union was supremely important. Hence the strange spectacle of the Visigoths, still laden with the spoils of Rome, entering Gaul by invitation of the Empire to fight against imperial armies.

The problem of numbers had been earlier recognised, but not more adequately met. Diocletian is said to have quadrupled the armies, and in the fourth century they were far larger than they had been under Julius and Augustus; Constantine had revised the scheme of frontier-defence to secure the greatest possible economy of men. Still, under Honorius, we find that one vital point could only be defended by withdrawing troops from another. The difficulty of increasing the numbers was twofold. First, the army was mercenary, and taxation was already strained to the point of diminishing returns. Secondly, it was difficult to raise recruits among the provincials. The old principle of universal service had been abandoned by Valentinian I (364-375); and although compulsory levies were still made from certain classes, the Government had thought fit to prohibit the enlistment of those who contributed most to taxation. Every citizen was legally liable for the defence of local strongholds; but the use of arms was so unfamiliar, the idea of military service as a national duty was so far forgotten, that Stilicho, when the barbarians were actually in Italy, preferred the desperate measure

of enlisting slaves to the obvious resource of a general call to arms. We find ourselves here confronted with a social malady which was more than an economic weakness. The Empire was, no doubt, a complex and expensive form of government superimposed upon a society which stood at a rudimentary stage of economic development. Barbarous methods of taxation and corrupt practices among the ruling classes had aggravated the burden to such a degree that the municipalities of the provinces were bankrupt, and the middle-class capitalist was taxed out of existence. For this and other reasons the population of the older provinces was stationary or declining. But there was still much wealth in the Empire; and the great landowners of the provinces could raise considerable armies among their dependants when they saw fit to do so. The real evil was a moral evil, the decay of civic virtue.

We do not mean that the ethics of private life had deteriorated from the standard of the past. This is incredible when we remember that Christianity was now the all but universal religion of the Empire; for Christianity, at its worst and weakest, laid more stress upon ethical duties, in the narrower sense, than any of the older religions. The provincial was a more moral being than the Goth or the Vandal. It is a mere superstition that every victorious race is chaste and frugal, just and law-abiding; or that ill success in the struggle for existence is a symptom of the contrary vices. In many respects the Greeks who submitted to Philip and Alexander were morally superior to the victors of Salamis and Plataea. Private and political morality may spring from the same root; but the one has often flourished where the other has been stunted. Perhaps this is only natural. Human nature seldom develops equally in all directions. Men who are intensely concerned with the right ordering of their relations to neighbours, friends and family, may well forget the larger community in which their private circle is contained. The Roman provincial had exceptional excuses for remaining indifferent to a state which claimed his loyalty, not in the name of nationality or religion,

but in that of reason and the common good. Loyalty for him could only be an intellectual conviction. But, unless he could enter the privileged ranks of the army or the higher civil service, he had no opportunities of studying, still less of helping to decide, the questions of policy and administration with which his welfare was closely though indirectly linked. Political ideas only came before the private citizen under the garb of literature. The most admired authors only taught him to regret republican politics long out of date. The antiquarian enthusiasms which he acquired by his studies were in no way corrected by the experience of daily life. If a townsman, he was legally prohibited from changing his residence and even from travelling about the Empire, for fear that he might evade the tax-collector. If a rural landowner, he lived in a community which was economically self-sufficient, and consequently provincial to the last degree. The types of character which developed under such conditions were not wanting in amiable or admirable traits. The well-to-do provincial was often a scholar, a connoisseur in art and literature, a polished letter-writer and conversationalist, a shrewd observer of his little world, an exemplary husband and father, courteous to inferiors, warm-hearted to his friends. Sometimes he found in religion or philosophy an antidote to the pettiness of daily life, and was roused into rebellion against the materialism of his equals, the greed and the injustice of his rulers. But he despaired of bridging the gulf between the Empire, as he saw it, and the ideal commonwealth—City of God or Republic of the Universe—which his teachers held up to him as the goal of human aspirations. Rather he was inclined, like the just man of Plato, to seek the nearest shelter, to veil his head, and to wait patiently till the storm of violence and wrong should pass away.

It is hard to condemn such conduct when we remember the appalling contrast between the weakness of the individual and the strength of a social order coextensive with civilisation itself. But in this spirit of reasonable submission to a state of things which appeared fundamentally unreasonable,

in this conviction that the bad could not be bettered by reforms of detail, there was more danger to society than in the crass indifference of the selfish and the unreflecting. When the natural leaders of society avow that they despair of the future, fatalism spreads like a contagious blight among the rank and file, until even discontent is numbed into silence. Nor does the evil end here. The idealists pay for their contempt of the real, not merely with their fortunes and their lives, but, worse still, with their intellectual patrimony. Just as a government deteriorates when it is no longer tested by continual reference to principles of justice, so a Utopia, however magnificent, fades from the mind of the believer when he ceases to revise it by comparison with facts, when it is no longer a reply to the problems suggested by workaday experience. Life and theory being once divorced, the theorist becomes a vendor of commonplaces, and the plain man is fortified in his conviction that he must take life as he finds it.

This analysis helps us to understand why the Western Empire, on the eve of dissolution, had already assumed the appearance of a semi-barbarian state. In those districts which had been lately settled with Teutonic colonists the phenomenon may be explained as resulting from over-sanguine attempts to civilise an intractable stock. But even in the heart of the oldest provinces the conditions were little better. Law and custom had conspired to sap the ideas and principles that we regard as essentially Roman. The civil was now subjected to the military power. The authority of the state was impaired by the growth of private jurisdictions and defied by the quasi-feudal retinues of the great. For civic equality had been substituted an irrational system of class-privileges and class-burdens. Law was ceasing to be the orderly development of general principles, and was becoming an accumulation of ill-considered, inconsistent edicts. So far had decay advanced through the negligence of those most vitally concerned that, if Europe was ever to learn again the highest lessons which Rome had existed to teach, the first step must be to sweep away the hybrid government which still claimed

allegiance in the name of Rome. The provincials of the fifth century possessed the writings in which those lessons were recorded, but possessed them only as symbols of an unintelligible past. A long training in new schools of thought, under new forms of government, was necessary before the European mind could again be brought into touch with the old Roman spirit.

The great service that the barbarians rendered was a service of destruction. In doing so they prepared the way for a return to the past. Their first efforts in reconstruction were also valuable, since the difficulty of the work and the clumsiness of the product revived the respect of men for the superior skill of Rome. In the end the barbarians succeeded in that branch of constructive statesmanship where Rome had failed most signally. The new states which they founded were smaller and feebler than the Western Empire, but furnished new opportunities for the development of individuality, and made it possible to endow citizenship with active functions and moral responsibilities. That these states laboured under manifold defects was obvious to those who made them and lived under them. The ideal of the world-wide Empire, maintaining universal peace and the brotherhood of men, continued to haunt the imagination of the Middle Ages as a lost possibility. But in this case, as so often, what passed for a memory was in truth an aspiration; and Europe was advancing towards a higher form of unity than that which had been destroyed.

II

THE BARBARIAN KINGDOMS

The barbarian states which arose on the ruins of the Western Empire were founded, under widely different circumstances of time and place, by tribes and federations of tribes drawn from every part of Germany. We expect to find, and we do find, infinite varieties of detail in their laws, their social distinctions, their methods of government. But from a broader point of view they may be grouped in two classes, not according to affinities of race, but according to their relations with the social order which they had invaded.

[Illustration: The Barbarian Kingdoms and Frankish Empire]

One group of kingdoms was founded under cover of a legal fiction; the Visigoths, the Ostrogoths, and the Burgundians claimed to be the allies of the Empire. At one time or another they obtained the recognition of Constantinople for their settlements. Their kings accepted or usurped the titles of imperial administrators, stamped their coins with the effigies of the reigning Emperor, dated their proclamations by the names of the consuls for the year, and in many other ways flaunted their nominal subjection as the legal basis of their actual sovereignty. This fiction did not prevent them from governing their new dominions in true Teutonic fashion, through royal bailiffs, who administered the state demesnes, and military officers (dukes, counts, etc.) who ruled with autocratic sway over administrative districts.

Nor did the most lenient of them hesitate to provide for their armies by wholesale confiscations; the ordinary rule was to take from the great proprietor one-third or two-thirds of his estate for the benefit of the Teutonic immigrant. Further, we have ample evidence that the provincials found existence considerably more precarious under the new order. The rich were exposed to the malice of the false informer and the venal judge; the cultivators of the soil were often oppressed and often reduced from partial freedom to absolute slavery. Yet in some respects the invaders of this type were tolerant and adaptable. They left to the provincials the civil law of Rome, and even codified it to guard against unauthorised innovations; the *Lex Romana Burgundionum* and the Visigothic *Breviarium Alarici* are still extant as memorials of this policy. They realised the necessity of compelling barbarians and provincials alike to respect the elementary rights of person and property; Theodoric the Ostrogoth and Gundobad the Burgundian were the authors of new criminal codes, in the one case mainly, in the other partially, derived from Roman jurisprudence. Such rulers were not content with professing an impartial regard for both classes of their subjects; they frequently raised the better-class provincials to posts of responsibility and confidence. By a singular fatality the chief races of this group had embraced the Arian heresy, which was repudiated and detested by their subjects. Yet their great statesmen uniformly extended toleration to the rival creed, and even patronised the orthodox bishops, by whom they were secretly regarded as worse than the lowest of the heathen. This generosity was little more than common prudence. Numerically the conquerors were much inferior to the provincials; economically they had everything to lose by needless ill-treatment of those whom they exploited. But the best of them had studied the organisation of the Empire at close quarters, sometimes as captains in the imperial service, sometimes as neighbours of flourishing provinces in the years preceding the grand catastrophe; and knowledge rarely failed to produce in them some respect

or even enthusiasm for the *Respublica Romana*. "When I was young," said King Athaulf the Visigoth, "I desired to obliterate the Roman name and to bring under the sway of the Goths all that once belonged to the Romans. But I learned better by experience. The Goths were licentious barbarians who would obey no laws; and to deprive the commonwealth of laws would have been a crime. So for my part I chose the glory of restoring the Roman name to its old estate." To such men the ideal of the future was a federation of states owing a nominal allegiance to the official head of the Empire, but cherishing an effective loyalty to all that was best in Roman law and culture.

The second group comprises the kingdoms which were founded in outlying provinces or comparatively late in time. The invaders of England, the Franks in Northern Gaul, the Alemanni and the Bavarians on the Upper Rhine and the Danube, the Lombards in Italy, the Vandals in Africa, never came completely under the spell of the past. The Vandals might have done so, but for their fanatical devotion to Arianism; for the province of Africa, in which they settled, was one of those which Roman statesmanship had most completely civilised. The Franks might have imitated the Visigoths and the Burgundians, if fortune had laid the cradle of their power in the valley of the Loire or the Rhone instead of the forests and marshes of the Netherlands. The Lombards and the Saxons showed no innate aversion to the ways and works of Rome; but they entered upon provinces which had already been impoverished and depopulated by the scourge of war. Such races proceeded rapidly with the construction of a new social and political order, because the past was a sealed book to them. Roman law vanished from England so completely as to leave it doubtful whether the Saxons ever came to terms with the provincials; it was tolerated but not encouraged by the Franks; it was in great measure set aside by the Lombards; it seems to have been unknown to the Alemanni and Bavarians. We shall see in the sequel the importance of these facts. The future of Europe lay not with the

Goths or with the Burgundians, but with more ignorant or less impressionable races who, rather by good fortune than by choice, escaped the vices in missing the lessons of Roman civilisation. The Franks and the Saxons, as we find them described by Gregory of Tours and the Venerable Bede, were far from resembling the noble savage imagined by Tacitus and other idealists. But they were trained for future empire in the hard school of a northern climate.

All that concerns us in the history of these kingdoms can be briefly stated.

(1) Teutonic England hardly enters into European history before the year 800. In the fifth and sixth centuries a multitude of small colonies had been founded on the soil of Roman Britain by the three tribes of the Angles, Saxons and Jutes, who migrated thither from Jutland and Schleswig-Holstein. A few considerable kingdoms had emerged from this chaos by the time when the English received from Rome their first Christian teacher, St. Augustine: Kent, Sussex, and Wessex in the south; Mercia and East Anglia in the Midlands; Northumbria between the Humber and the Forth. The efforts of every ruler were devoted to the establishment of his personal ascendancy over the whole group. Such a supremacy was obtained by Aethelbert of Kent, the first royal convert to Christianity; by Edwin of Northumbria and his two immediate successors in the seventh century; by Offa of Mercia (757-796); and by Egbert of Wessex (802-839), whose power foreshadowed the later triumphs of the house of Alfred.

(2) Southern Gaul was divided in the fifth century between the Visigoths and the Burgundians. The former of these peoples entered the imperial service in 410, after the death of Alaric I, who had led them into Italy. His successors, Athaulf and Wallia, undertook to pacify Gaul and to recover Spain for the rulers of Ravenna; the second of these sovereigns was

rewarded with a settlement, for himself and his followers, between the Loire and the Garonne (419). In the terrible battle of Troyes, against Attila the Hun (451), they did good service to the Roman cause; but both before and after that event they were chiefly occupied in extending their boundaries by force or fraud. At the close of the fifth century their power in Gaul extended from the Loire to the Pyrenees, from the Atlantic to the Rhone valley, and along the Mediterranean seaboard farther east to the Alps. In Spain—which had been, since 409, the prey of the Vandals, Alans and Suevi—they found a more legitimate field for their ambitions. Between 466 and 484 they annexed every part of the peninsula except the north-west corner, which remained the last stronghold of their defeated competitors. The Burgundians, from less auspicious beginnings, had built up a smaller but yet a powerful kingdom. Transplanted by a victorious Roman general to Savoy (443) from the lands between the Necker and the Main, they had descended into the Rhone basin at the invitation of the provincials, to protect that fertile land alike against Teutonic marauders and Roman tax-collectors. By the year 500 they ruled from the Durance in the south to the headwaters of the Doubs and the Saone in the north, from the Alps and the Jura to the sources of the Loire.

(3) Italy was less fortunate than Gaul; in the fifth century she was ravaged more persistently, since Rome and Ravenna were the most tempting prizes that the West could offer to conquerors seeking a settlement or to mere marauders; and for yet another two centuries her soil was in dispute between the Eastern Empire and the Teutons. The strategic importance of the peninsula, the magic of the name of Rome, the more recent tradition that Ravenna was the natural headquarters of imperial bureaucracy in the West, were three cogent reasons why the statesmen of Constantinople should insist that Italy must be recovered whatever outlying provinces of the West were abandoned. For sixty years after the deposition of Romulus Augustulus (476) Italy was entirely ruled by barbarians; then

for more than two hundred years there was an Imperial Italy or a Papal Italy continually at feud with an Ostrogothic or a Lombard Italy. It would have been better for the Italians if either the Ostrogoths or the Lombards had triumphed decisively and at an early date.

The Ostrogoths entered Italy from the north-east in 489, under the lead of Theodoric, the first and last statesman of their race. They came from the Middle Danube, where they had settled, with the leave of the Empire, after the death of Attila and the dissolution of his army. They were now in search of a more kindly habitation, and brought with them their wives, their children, and their household stuff on waggons. Their way was barred by Odoacer the Patrician—general of the Italian army and King of Italy in all but name. It cost them four years of hard fighting to overthrow this self-constituted representative of the Empire. After that they had no overt opposition to fear. To the Italians there was little difference between Odoacer and Theodoric. The change of rulers did not affect their material interests, since Theodoric merely appropriated that proportion of the cultivated land (one-third) which Odoacer had claimed for his followers. Nor was submission inconsistent with the loyalty demanded by the Eastern Empire; since for the moment it suited imperial policy to accept the Visigothic King as the successor of Odoacer. Theodoric reigned over Italy for thirty-three years (493-526). A tolerant and enlightened ruler, he spared no effort to give his rule a legal character, and to protect the Italians against oppression. Two eminent Romans, Liberius and Cassiodorus, acted successively as his confidential advisers and interpreted his policy to their countrymen. No attempt was made to fuse the Ostrogoths with the Italians. The invaders remained, an army quartered on the soil, subject for most purposes to their own law. But the law of the Italians was similarly respected; Theodoric applied the Roman law of crime impartially to both races; and he rigourously interdicted the prosecution of private wars and feuds. Unfortunately his subordinates were less scrupulous than himself.

The Ostrogothic soldiery maintained the national character for lawlessness; the royal officers and judges were corrupt; men of means were harassed by blackmailers and false informers; the poor and helpless were frequently enslaved by force or fraud. The Italians could not forgive the Arian tenets of their new rulers, even though the orthodox were tolerated and protected. Naturally the clergy and the remnants of the Roman aristocracy sighed for an imperial restoration. And Theodoric, rightly or wrongly, came to suspect them all of treason. In his later years he meted out a terrible and barbarous justice to the supposed authors of conspiracy—notably to the Senator Boethius, who was beaten to death with clubs after a long period of rigorous imprisonment. Boethius has vindicated his own fair name, and blackened for ever that of Theodoric, by his immortal treatise, the *Consolation of Philosophy*, composed in hourly expectation of death. A Christian it would seem, but certainly nurtured on the precepts of Plato and the Stoics, Boethius turned in his extremity to these teachers for reassurance on the doubts which must always afflict the just man enmeshed in undeserved misfortune. Himself a philosopher only in his sublime optimism and his resolve to treat the inevitable as immaterial, Boethius rivets the attention by his absolute honesty. His book, revered in the Middle Ages as all but inspired, will be read with interest and sympathy so long as honest men are vexed by human oppression and the dispensations of a seemingly capricious destiny. But the footprints of the Ostrogoths are effaced from the soil of Italy; the name of Theodoric is scantily commemorated by some mosaics and a rifled mausoleum at Ravenna. Here at least Time has done justice in the end; from all that age of violent deeds and half-sincere ideals nothing has passed into the spiritual heritage of mankind but the communings of one undaunted sufferer with his soul and God.

Theodoric died in 526, bequeathing his crown to his only daughter's son. Eight years afterwards the boy king, worn out by premature excess, was laid in the grave; his mother was murdered to clear the path of an ambitious

kinsman; and, while the succession was still in doubt, the Emperor Justinian launched upon Italy the still invincible armies of the Empire, led by Belisarius, the greatest general of the time and already famous as the deliverer of Africa from the Vandals (536). The intrigues of his court rivals, rather than the resources of the divided Ostrogoths, robbed Belisarius of a decisive victory, and prolonged the struggle for years after he had been superseded. But in 553 the last embers of resistance were quenched in blood. Italy, devastated and depopulated, was reorganised as an imperial province with an elaborate hierarchy of civil and military officials. The change was welcome to the orthodox clergy, the more so because Justinian gave large powers in local administration to their bishops. Of outward pomp there was enough to gild corruption and inefficiency with a deceptive splendour; but in fact the restored Empire was little more civilised, in the true sense of the word, than the barbarian states of the past and future. Upon the Italians the Emperor conferred the boon of his famous *Corpus Juris*, a compendium of that legal wisdom which constitutes the best title of Rome to the world's gratitude. For the future it was momentous that Italy learned, at this early date, to regard the *Corpus* as the perfection of legal wisdom. Through the Italian schools of later times (Ravenna, Bologna, etc.) the *Corpus* has influenced the law of every European state and has dictated the principles of scientific jurisprudence. But in the sixth century good laws availed nothing for want of good government.

In 568, only fifteen years after the restoration, the Lombards descended upon Italy from the Middle Danube, following the track of Theodoric and inspired by the fame of his success. A few years made them masters of the North Italian plain still known as Lombardy. Within three-quarters of a century they had demonstrated the hollowness of the Byzantine power. The power of their kings, whose capital was Pavia, extended on the one side into Liguria and Tuscany, on the other into Emilia and Friuli; far away in the south, behind the line of fortresses which linked Rome with Ravenna, the

semi-independent dukes of Spoleto and Benevento were masters of the land on both sides of the Apennines, excepting Naples and the toe of the Bruttian peninsula. Apart from these districts there remained in the imperial allegiance only the fisher-folk of the Venetian lagoons and the lands which afterwards were to be known as the Papal States. What the Byzantines achieved by the maintenance of this precarious foothold was nothing less than the political disruption of Italy. The Lombard duchies of the south were kept separate from the parent state; with the result that their ruins were built long afterwards into the fabric of a South Italian monarchy which was irreconcilably hostile to the political heirs of the Lombard kings. In many respects the Lombards showed capacity for governing a subject population. They adopted the Latin language; they forsook Arianism for Catholicism; they accommodated themselves to city life; they were liberal patrons of Italian art and industry. Although they introduced a strictly Teutonic form of administration, their rule compared not unfavourably with the makeshift methods of Byzantine statesmanship. In Imperial Italy we see the strange spectacle of a military despotism tempered by the usurped privileges and jurisdictions of the great proprietors, or by the ill-defined temporal pretensions of the bishops. In Lombard Italy matters were at least no worse. The Lombards were aliens; but so were the Greeks. The Greeks treated the Italians as inferiors. But the Lombards intermarried freely with their subjects, and the Lombard legislators (Rotharis, Luitprand) recognised no invidious privileges of race.

(4) Northern Gaul remains to be considered. It was here that the Frankish monarchy developed; and we deal last with the Franks because they were destined to harvest the chief fruits of barbarian conquest and colonisation. By the close of the eighth century Africa, Spain, and Britain were the only western provinces of the Empire in which they had failed to establish themselves as the sole or the dominant power; and moreover they had penetrated by that time farther into Central Europe than any Roman

statesman, since Tiberius, had extended his schemes of conquest. The expansion of the Franks was a slow process, interrupted by periods of stagnation or relapse; and we can only trace it in the barest outline.

Known from an early date to the Romans as vagrant marauders, the Franks had been heavily chastised by most of the soldier emperors from Probus to Julian. Some of them were forcibly settled as serf-colonists on the left bank of the Rhine; others (the *Salian* Franks) appropriated to themselves a large part of Batavia, the marsh country at the mouths of the Scheldt and Rhine; a third group (the *Ripuarians*) occupied the lands between the Rhine and the Meuse, in the neighbourhood of Koln and Bonn. The Salians and Ripuarians counted as allies (*foederati*) of the Empire, at least from the time of Aetius; under whom, like the Visigoths, they fought against the Huns at Troyes (451). Their aggressions were checked on the West by the Roman governors of the country lying between the Somme and the Loire; and their power was impaired by the partition of the Salian people among a swarm of petty kings. But in 481, with the accession of Clovis to the throne of Tournai, there began a period of consolidation and advance. In 486 Clovis overthrew the Roman governor Syagrius and usurped his power. In 496 he annexed the purely Teutonic principality which the Alemanni had recently established in the country now known as Suabia. This victory was the occasion of his conversion to Christianity. The legend goes that, in the crisis of the final battle, Clovis appealed to the God of his pious wife: "I have called on my gods and they have forsaken me. To Thee I turn, in Thee will I believe, if Thou wilt deliver me." He kept his word, and was baptised by St. Remi, the Bishop of Rheims, thus becoming a member of the orthodox communion, and the hope of all the Gallic clergy, who had hitherto submitted with an ill grace to the heretical rulers of the Visigoths and the Burgundians. A crafty and ambitious savage, the King of Tournai quickly realised the advantage of alliance with the native Church. In the year 500 he turned upon the Burgundians in the hope of making them

his tributaries. He failed in his object, for the Burgundian King made a timely feint of conversion to orthodoxy and otherwise conciliated the Gallo-Roman population. But over Alaric II the Visigoth, who had been so impolitic as to persecute orthodox bishops, the Franks secured an easy and dramatic triumph. "It irks me," said Clovis to his army, "that these Arians should rule in Gaul." The Aquitanians welcomed him as a Crusader; Alaric, after a single defeat, took refuge in his Spanish dominions, where he was left to rule in peace. At one stroke the power of the Franks had advanced from the Loire to the Pyrenees (507). The latter days of Clovis were prosperously occupied in exterminating rival Frankish dynasties and the more dangerous of his own kindred. He died, after a reign of thirty years, in the odour of sanctity: "God increased his kingdom every day, because he walked with an upright heart and did what was pleasing in the eyes of God." He was buried in the Gallo-Roman part of his dominions, at Paris, which he had chosen as his capital. The province of Syagrius, later known as Neustria or Western Francia, was the natural centre of the Frankish state, nor was Clovis indifferent to the traditions and the luxury of an older civilisation. In Aquitaine he posed as the representative of the Empire, and he rode through the streets of Tours in the purple robe of a consul, which he had received from the Emperor Anastasius. The hope at Constantinople was that he would treat Theodoric the Ostrogoth as he had already treated Alaric; this was the first of many occasions on which the network of imperial diplomacy was woven round a Frankish king. Church and Empire conspired to inflame the ambitions and enlarge the schemes of Merovingian and Carolingian conquerors.

But the Franks, more faithfully than any of their rivals, held to the barbarian usage of dividing a kingdom, in the manner of a family estate, equally between the sons of a dead sovereign. Logically pursued this custom of inheritance would have led to utter disintegration, such as Germany exhibited in the fourteenth century. Among the Franks a partition

was followed, as a matter of course, by fratricidal conflicts and consequent reunion of the kingdom in the hands of the ultimate survivor; but even so the energies of the nation were squandered upon civil wars. The descendants of Clovis did little to augment the realm that he bequeathed to them; this little was done in the fifty years following his death. The Burgundians, Bavarians and Thuringians were subdued; Provence was bought from the Ostrogoths at the price of armed support against Justinian; the Saxons were compelled to promise tribute. From 561 to 688 the power and the morale of the Franks steadily declined. Dagobert I (628-638), the most renowned of the Merovingians after Clovis, could only chastise rebels and strengthen the defences of the eastern frontier. He released the Saxons from tribute; he was unable to prevent an adventurer of his own race, the merchant Samo, from organising the Slavs of Bohemia and the neighbouring lands in a powerful and aggressive federation. Already in his time the East Franks (Austrasians) refused to be governed from Neustria, and insisted that the son of Dagobert should be their king. After Dagobert the three kingdoms of Neustria, Austrasia and Burgundy asserted their right to separate administrations, even when subject to one king.

In each of these divisions the effective ruler was the Mayor of the Palace, a viceroy who kept his sovereign in perpetual tutelage. The later Merovingians were feeble puppets, produced before their subjects on occasions of state, but at other times relegated to honourable seclusion on one of their estates. The history of the Franks from 638 to 719 is that of conflicts between the great families of Neustria and Austrasia for the position of sole Mayor. At length unity was restored by the triumph of the Austrasian Charles Martel. His father had gained the same position, but it was left for the son to sweep away the last remaining competitors.

Charles Martel is the true founder of the Carolingian house, although his ancestors had long played a conspicuous part in Austrasian and national

politics. He was not the inventor of feudalism, but was the first to see the possibility of basing royal power on the support of vassals pledged to support their lord, in every quarrel, with life and limb and earthly substance. To provide his vassals with fiefs he stripped the churches of many rich estates. But he atoned for the sacrilege upon the memorable field of Poitiers. In 711 the Arabs, having wrested northern Africa from the Byzantine Empire, entered Spain and overthrew Roderic, the last King of the Visigoths. With his death the cause of his nation collapsed. Though the Visigoths had long since accepted the orthodox creed and were in close alliance with the Spanish bishops, they were detested by the provincials, whom they had reduced to serfdom and brutally oppressed. Within ten years the soldiers of the Caliph were masters of Spain and turned their attention to southern Gaul.

The Frankish Duke of Aquitaine could neither protect his duchy nor obtain a lasting treaty. In the last extremity he turned to the Mayor of the Palace, whom he had hitherto regarded as an enemy. The appeal was answered; and Charles with a great Frankish host confronted the Arabs under the walls of Poitiers. For seven days neither side would make the first move; on the eighth the infidels attacked. The Frankish host was composed of infantry protected by mail-shirts and shields; against their close-locked lines, which resembled iron walls, the Arabs dashed themselves in vain. When the attack had been repelled in disorder, the Franks advanced, bearing down resistance by sheer weight and strength. The Emir Abderrahman fell on the field, and then night put an end to the conflict. Both armies camped on the field; but next morning the Arabs had vanished in full retreat for the Pyrenees (Oct. 732). The flood of Islam had received the first check; though Spain was not to be recovered by the Franks, they were held to have saved northern Europe. Modern criticism has remarked that the internal dissensions of Moslem Spain did better service than this victory to the cause of Christendom; that the Arabs continued to hold Septimania and sent

raids into Provence. But for contemporaries there was no question that the Franks had established a claim to the special gratitude of the Church, and Charles to his anomalous position as an uncrowned King. The Mayor of the Palace was fully alive to the value of ecclesiastical support. He lent his support to the work of the English missionaries Willibrord and Boniface among the unconverted German tribes (Frisians, Hessians, Thuringians) over whom he claimed supremacy. He permitted Boniface to enrol himself as the servant of the Holy See. It is true that he would not form a political alliance with the Roman Church against the Lombards. Northern wars absorbed him; wars with the Frisians, the Saxons, the rebellious Bavarians, Alemannians, and Aquitanians. But from alliance with the Church to alliance with Rome was a natural step for his successors. Shortly before his death (741) he divided his power between his sons Carlmann and Pepin, giving Austrasia to the one, Neustria to the other. But Carlmann abdicated to become a monk (747) and Pepin his junior was left to continue the work of their father single-handed. Both brothers employed Boniface to reorganise and reform the clergy of their dominions; Pepin allowed the saint to take from all the Frankish bishops an oath of subjection to the Holy See; and accepted him as Archbishop of Mainz and primate of the German church. Three years later the Mayor obtained the permission of Pope Zacharias to depose the last of the Merovingian puppet-kings and to assume the regal style; the Pope justly recommending that he should have the title to whom the power belonged (751). So ended the line of Clovis, and with it the barbarian period of Frankish history. For the next sixty years the history of Europe is that of Carolingian conquests and essays in political reconstruction.

And now the growing connection with the Papacy acquired a new character. Since the beginning of the eighth century the Eastern Empire had forfeited the last claim to Italian allegiance by embracing the Iconoclastic heresy, a protest at once belated and premature against the growing

materialism and polytheism of Catholic Christianity. Pope and Lombards made common cause to protect the images in imperial Italy. Gregory III excommunicated the iconoclasts (731); the Lombard King Aistulf seized Ravenna, the last important stronghold of the Byzantines in the peninsula (751). Too late the Papacy realised that the orthodox Lombard was a greater menace than the Greek heretic. Aistulf regarded Rome, in common with the other territories of the Empire, as his rightful spoil. For the first time the issue was raised between secular statesmanship scheming for Italian unity and a Roman bishop claiming sovereign power as the historical and indispensable adjunct of his office. Pope Stephen II visited the Frankish court to urge, not in vain, the claims of religion and of gratitude. By two raids across the Alps Pepin forced the Lombard to withdraw the claim on Rome, and furthermore to restore what had been conquered from the Empire. These territories, lying in Romagna and the Marches, the Frankish King conferred on the Pope, as the legitimate representative of imperial power (756). Pepin's Donation, made in defiance of Byzantine protests, greatly extended the temporal power which the predecessors of Stephen had long exercised in Rome and the neighbourhood. A shrewd expedient for crippling the most formidable rival of the Franks, it was to be the rock on which ideals then undreamed of were to founder. For it was the temporal power which provoked the last and mortal struggle of the Holy Roman Empire with the Papacy, which presented the most stubborn obstacle to the leaders of the *Risorgimento*.

Like his father, Pepin laboured hard to knit together the conquests of the early Merovingians, but without the same success. He expelled the Arabs from Narbonne; he recovered the duchy of Aquitaine and suppressed the ducal dynasty after eight hard-fought campaigns. But neither from the Saxons nor from the Bavarians could he win effective recognition of his suzerainty. What he had achieved in Aquitaine was seriously endangered when, on his deathbed, he followed the tradition of dividing his realm

between his sons Carloman and Charles (768). Fortunately Charles, though harassed by the intrigues of his incompetent senior, weathered the storm of a new Aquitanian rising; he saw Carloman sink unlamented into an early grave (771) and easily obtained recognition as sole king. Then indeed he stood in a position singularly favourable for prosecuting a policy which should embrace and transcend the ambitions of his ancestors. Heir to a power extending from the Atlantic to the Bohemian border in the one direction, in the other from the North Sea and the Channel to the Alps and Pyrenees; the hereditary patron of the Roman Church; ruler of a hierarchy which had definitely accepted the ideal of a Christian Republic and desired to see Christian unity enforced by the sword of the secular power; lord of a military caste of vassals filled with the pride and lust of conquest; he had at his disposal the resources and supporters sufficient to make him, what Theodoric had idly dreamed of becoming, the supreme lord of the Teutonic peoples, the lieutenant of the Empire in all the western provinces. It was no ordinary man to whom this opportunity fell. Imperfectly educated, even for his age, but of ready wit and unbounded curiosity; a general whose iron will and superhuman energy seldom failed in leading his soldiers through difficulties and reverses to ultimate victory; a dreamer whose imagination kindled whenever he came into contact with the great ideas, Christian or pagan, of an older world; a practical statesman whose innate love of order and respect for justice were coupled with a gift for organisation and the power of extracting their best work from his subordinates, it is not for any want of natural qualifications that his claim to rank with the great world-heroes can be challenged. The shortcomings of his work are merely those of the race and the age to which he belonged. The highest statesmanship is only possible when the statesman has at his disposal the accumulated experience and the specialised capacity of a civilisation which is old and at the same time vigorous.

The policy of Charles in his period of sole rule (771-814) is Janus-headed; it looks forward and looks back. A true Austrasian, he is faithful to the old Frankish ideal of military conquest; but he gives it a new meaning, and besides fulfilling the projects of his predecessors goes beyond the horizon of their most ambitious enterprises. In his friendship for the Pope, in his care for ecclesiastical reform, he is his father's son; but the relations of the son with the Church have a new purpose and involve more than one breach with the past. His administration is largely guided by the traditional standard of royal duty; he is a notable steward of his demesnes; he is the reliever of the poor, the refuge of the defenceless, the champion of justice. But he is also a far-sighted reformer adapting old administrative methods to the requirements of a new political fabric. In fact, to epitomise all these antitheses in one, he is the heir of an old barbarian monarchy and also the founder of a new Empire.

The story of his conquests reads like the epitome of a lost romance—so varied are the incidents, so jejune the details afforded by contemporary sources.

(1) In 773 he crossed the Alps, at the prayer of Pope Hadrian, because the Lombard King Didier had seized some cities comprised in Pepin's Donation and was even threatening Rome. Pavia was starved into surrender, Didier relegated to a monastery; Charles annexed the whole of Lombard territory except Spoleto (which submitted to the Pope) and Benevento. He assumed the title of King of the Lombards; but beyond garrisoning a few towns and appointing a few Frankish counts made no attempt to displace Lombard officials or alter the Lombard modes of government. He visited Hadrian at Rome, renewed the Donation of Pepin, and concluded a pact of eternal friendship with the Papacy.

(2) Then followed the period of the Saxon wars, as much a crusade against German heathenism as the vindication of old and dubious claims to suzerainty. The first campaign against the Saxons had taken place in 772; their final submission was not made till 785. The Saxons were still in that stage of political development which Tacitus describes in his *Germania*, ruled by petty chiefs who set up a war-leader when there was need for common action, otherwise united only by racial sentiment and the cult of a tribal deity. But they were a warlike race, and found in this crisis a leader of genius, the famous Widukind. At last he set his followers the example of embracing Christianity. Charles acted as sponsor at his baptism, and Widukind became a loyal subject of his spiritual father. In a few years the whole of Saxony was dotted with mission churches; in a few generations the Saxons were conspicuous for their loyalty to the faith, and the Saxon bishops counted among the wealthiest and most influential of ecclesiastical princes. It was through Saxon rulers, descended from Widukind, that the imperial policy of Charles was revived in the tenth century and the imperial diadem appropriated by the German nation. Yet the Saxons sturdily adhered to their national laws and language; their obstinate refusal to be ruled by other races was a stumbling-block to the most masterful sovereigns that medieval Germany produced.

(3) During the years 786-787 Charles was threatened with a conspiracy against his power in Italy. Tassilo, the vassal Duke of Bavaria, aspired to independence and was induced by his wife, a daughter of King Didier, to make common cause with her nation; Areghis, the Lombard ruler of Benevento, had emphasised his independence by assuming the style and crown of a king. The two princes made common cause, but were detected before their plans had matured, and successively terrified into submission by the appearance of overwhelming armies on their borders.

The Lombard duchy was no permanent acquisition for the Franks, but that of Bavaria was suppressed, in consequence of a second plot (788). The addition of this large and wealthy province made the eastern half of the Frankish kingdom practically coextensive with medieval Germany, and almost equal in importance to the Romanised provinces of Gaul.

(4) As a natural precaution for the defence of Bavaria, Charles then turned against the Avars, a race akin to the Huns, who had settled on the middle Danube after the departure of the Lombards for Italy. The Avars invaded Bavaria and Friuli as allies of Tassilo (788); they were punished by three campaigns of extirpation (791-796), which broke their power and spared only a miserable remnant of their people. Their land was annexed but not settled; for Germany offered a more tempting field to the Frankish pioneers. Indeed, some of the surviving Avars were planted in the Ostmark (Austria), which Charles established as an outpost of Bavaria, to keep watch upon the Slavs.

(5) To Spain the Emperor first turned his attention in 777, when he was invited by the discontented emirs on the north of the Ebro to free them from the Caliph of Cordova. The next year saw his abortive march through the pass of Roncesvalles to the walls of Saragossa—an expedition immortalised in the *Chanson de Roland*, the earliest and most famous epic of the Charlemagne cycle, but fabulous from first to last, except in recording the fact that there was a certain Roland (warden of the Breton Mark) who fell in the course of the Frankish retreat. More substantial work was done in Spain during the last years of the reign. Navarre declared for the Franks and Christianity; the eldest son of Charles captured Tortosa at the mouth of the Ebro (811), and founded the Spanish Mark.

This lengthy catalogue only accounts for the more important of the wars in which Charles and his lieutenants were engaged. We must imagine, to

complete the picture, a background of minor conflicts within and without the Empire—against the Slavs, the Danes, the Greeks, the Bretons, the Arabs, the Lombards of Benevento. These crowded years of war leave the Frankish Empire established as the one great power west of the Elbe and Adriatic. It did not include the Scandinavian lands or British Isles; the Franks were never masters of the northern seas. It had failed to expel the Arabs and Byzantines from the western Mediterranean; Spain, Sicily, even parts of Italy remain unconquered. Of recovering North Africa there could be no question. Still in magnitude the Frankish realm was a worthy successor of the Western Empire. On Christmas Day, 800, Charles was crowned Emperor of the Romans by Pope Leo III, in St. Peter's basilica at Rome; and his subjects vainly imagined that, by this dramatic ceremony, the clock of history had been put back four hundred years. Though the Age of the Barbarians had been ended by the greatest of them, the era which he inaugurated was an era not of revival but of new development.

III

THE EMPIRE AND THE NEW MONARCHIES (800-1000 A.D.)

The imperial policy of Charles the Great constitutes a preface to the history of the later Middle Ages. He holds the balance between nascent forces which are to distract the future by their conflicts. He pays impartial homage to ideas which statesmen less imperious or more critical will afterwards regard as irreconcilable. He is at one and the same time an autocrat, the head of a ruling aristocracy, and a popular ruler who solicits the co-operation of primary assemblies. From the highest to the lowest his subjects must acknowledge their unconditional and immediate allegiance to his person; yet he tolerates the existence of tribal duchies, he revives the Lombard kingdom, and creates that of Aquitaine, as appanages for his younger sons. He fosters the growth of territorial feudalism, and lends the sanction of royal authority to the claims of the lord upon his vassal; but simultaneously he contrives expedients for controlling feudalism and stifling its natural development. He exalts the Church, and he enslaves her. He is there to do the will of God as expounded by the clergy; but he disposes of sees and abbeys like vacant fiefs, he dictates to the Pope, he interferes with the liturgy, he claims a voice in the definition of dogma and the wording of the creed. Finally, and most striking, there is the antithesis between the two aspects of his power, the monarchical and the imperial.

The Franks left to Europe the legacy of two political conceptions. They perfected the system of barbarian royalty; they outlined the ideal of a power which should transcend royalty and embrace in one commonwealth all the Catholic kingdoms of the West. On the one hand they supplied a model to be imitated by an Egbert, a Henry the Fowler, a Hugh Capet. On the other hand they inspired the wider aims of the Ottos and the Hohenstauffen. It is therefore worth our while to understand what a Carolingian king was, and what a Carolingian Emperor hoped to be.

The king's power was based upon three supports: the general allegiance of his subjects, the more personal obligations of the vassals who were in his *mund*, the services and customs of the tenants on the royal demesne. It is from these last that he derives his most substantial revenue. He is the greatest landowner of his realm, until in the ninth century he dissipates his patrimony by grants of hereditary *beneficia*. The farming of the demesnes is an important branch of the public service; they are managed by bailiffs, who work under rules minutely elaborated by the king in the form of edicts, and who render their accounts to a minister of state, the Seneschal or steward of the household. The king is further the fountain of justice, the guardian of public order, the protector of peaceful industry and commerce. Accordingly he derives large profits from the fines of the law-courts, the forfeitures of criminals, the tolls of highways and markets, the customs levied at seaports and at frontier towns. In the exercise and exploitation of his prerogatives he is assisted by functionaries of whom most are household officers: the Chamberlain who keeps the royal hoard; the Constable (*comes stabuli*) who marshals the host; the Seneschal, or High Steward, who controls the demesnes; the Protonotary, by whose staff the royal letters and all documents of state are written out; the Arch-chaplain, to whom ecclesiastical suitors bring their petitions and complaints. Finally there are the Counts of the Palace, appointed from the chief races of the realm, who exercise the king's appellate jurisdiction in secular cases. But the king is

bound by custom to govern with the counsel and consent of his great men—a Germanic tradition which no after growth of respect for Roman absolutism can destroy. A select body of influential nobles deliberates with the king on all questions of national importance. Their decisions are submitted for approval to a more general assembly (Mayfield), held annually in the spring or summer. By this assembly the military expedition of the year is discussed and sanctioned; here also are promulgated royal edicts (*capitula*).

The ordinary freeman, upon whom falls the ultimate burden of military service, has no voice in the debates of the Mayfield; but ordinances affecting the old customary laws of the several races which make up the kingdom (Salians, Ripuarians, Saxons, etc.) do not take effect till they have been accepted by popular assemblies in the provinces which they concern. And such revisions are infrequent. The royal prerogative in legislation is limited by a popular prejudice, which regards the customary law as sacred and immutable. The Capitularies are chiefly administrative ordinances; the "law of the land," which is the same everywhere and for all persons, is an ideal to be realised in England alone of medieval states. Elsewhere the king's law is a supplement, a postscript; the privilege of the free man is to live under the law of his province, his lord's fief or his free city.

In local administration the king relies, outside the tribal duchies, on counts whose districts are subdivisions of the old national provinces. The count, often a hereditary official, is a royal deputy for all purposes, military and civil. He collects the royal dues, leads the free men to the host, maintains the peace and administers justice. His tribunal is the old Germanic hundred-court, in which the free suitors ought to be the judges; but the suitors for this purpose are represented by a few doomsmen (*scabini*) chosen for their respectability and knowledge of the law. They are an ineffectual check upon the count, and it is a standing difficulty to find

ways and means of compelling these local viceroys to act with common honesty. For this purpose the king annually appoints itinerant inspectors (*missi dominici*); in twos and threes they are dispatched on circuit to acquaint the count with royal instructions, to promulgate new legislation, and above all to receive and adjudicate upon the complaints of all who are oppressed. A comparatively late expedient, and the first part of the Carolingian system to disappear, these tours of inspection were the one safeguard against local misgovernment and the feudalising of official power. When they ceased, the Carolingian county too often became a hereditary fief exploited for the lord's sole benefit.

The Empire was not intended to supersede this system of royal government; kings no less than emperors were regarded as holding a definite rank and office in the Christian commonwealth. No traditions of imperial bureaucracy, except in a debased and orientalised form, were accessible to Charles the Great. In Gaul and Italy he had subjects who lived under a corrupt and mutilated Roman Law; but he was unacquainted with the scientific principles of the great jurists whose writings were the highest achievements of the Roman genius. To the best minds of the eighth century the Roman Empire appeared, not as to an Athaulf or a Theodoric, a masterpiece of human statesmanship, but rather a divine institution, providentially created before the birth of Christ to school the nations for the universal domination of His Church. The model of the Carolingian Emperors was not Augustus but Constantine the Great, the Most Christian ruler who made it his first business to protect the Church against heretic and heathen, to endow her with riches, to enforce her legislation. However his relation to the Pope might be conceived, the Emperor held his office as the first servant of the Church. What then were his practical duties? According to some he was pledged to restore the material unity of Christendom and to subdue all heathen peoples. This childlike ideal of his office no emperor could put into practice. Charles the Great waged no important wars after his

coronation; he did not scruple to make peace with the Eastern Empire or even to exchange courtesies with Haroun al Rashid, the Caliph of Bagdad. He held, and the sanest of his counsellors agreed, that his first duty was to protect, unite and reform the societies over which the Church already exercised a nominal dominion. To conquer other Christian rulers was no more to be expected of him than that he should surrender his own royal prerogative; though it was desirable that they should do homage to him as the earthly representative of spiritual unity.

Within his own realms the imperial office was to make a difference in the spirit rather than the forms of government. The Empire raised to a higher power the dignity and the responsibilities which belonged to him as a king. He conceived himself bound to provide more carefully than ever for the maintenance of ecclesiastical and the betterment of secular law. His subjects were to realise that through their allegiance to him they were God's subjects, bound to observe the law of God as a part of the law of the Empire; he on his side was to be, to the best of his power, a moral censor, an educator, a religious missionary, a protector of the clergy, a defender of the faith.

When we turn from this noble dream to follow the history of the Carolingian Empire, the contrast between the real and the ideal is almost grotesque. Within a generation the Frankish realm is partitioned after the Merovingian fashion; all that remains as a guarantee of unity is the imperial title attached to one of several kingdoms, and the theory that the kings are linked in fraternal concord for the defence of Church and State against all enemies. Contemporaries laid the blame on the weakness of Lewis the Pious and the ambition of his sons. These causes undoubtedly accelerated the process of disruption; but others more impersonal and more gradual in their operation were at work below the surface of events.

(1) The first was the dawning of nationality. North of the Alps the subjects of the Empire fell into a Germanic group, lying chiefly east of the Rhine, and a Romance group nearly co-extensive with the modern France; Italy was sharply severed from both by geography, by differences of race and language, and by political tradition. In the Treaty of Verdun (843), which begins the process of political disintegration, these natural divisions are only half respected. The kingdom of the East Franks is wholly Germanic; that of the West Franks contains the Gallo-Roman provinces subdued by Clovis; but between them lies the anomalous Middle Kingdom, the portion of the titular Emperor, in which are united Italy, Provence, Burgundy, the valley of the Moselle and a large part of the Netherlands. In each re-distribution of territories among Carolingian princes the lines of partition approximate more closely to the boundaries of modern nations. Burgundy and Provence alone remain, after the year 888, as memorials of the Middle Kingdom. Italy becomes an independent state; the northern provinces (Lotharingia) are disputed between the East Franks and the West Franks. And already the rulers of the new states are identifying themselves with national sentiments and aspirations; it is not without reason that a later age has given to Lewis, the first King of the East Franks, the title of "the German."

(2) But, in the minds of ordinary men, national sentiment was little more than a contempt for those of alien race and speech. The nationalities were ready enough to separate one from the other; having done so, they split asunder into tribal or feudal groups. Thus in Germany the Saxons, Suabians, Bavarians, Thuringians, Franconians group themselves round provincial chieftains. West of the Rhine, where Roman rule had long since weakened tribal feeling, we can see a broad distinction between the North and South of Gaul, but in each half of the country the feudal principle is the dominating force; from the middle of the ninth century we remark the

formation of those arbitrarily divided fiefs which play so large a part in French history. But of the feudal movement we shall speak elsewhere.

(3) Last but not least we must allow for the disappearance of that moral enthusiasm which Charles the Great had evoked in his subjects. His conception of the Empire was too large for narrow minds. They could see no reason in it. They were acutely alive to the sacrifices which it demanded in the present, and sceptical as to the advantages which it promised in the future. The idea of working for posterity does not naturally occur to half-civilised peoples; they live from hand to mouth, and are continually absorbed in the difficulties of the moment; they believe in the supremacy of chance or fate or providence, and speak of human forethought as presumptuous or merely futile. The imperial programme was cherished and publicly defended by a little clique of clerical statesmen; but they did not succeed in making many converts. When the last of the Carolingian Emperors was deposed (887), there were cries of lamentation from ecclesiastics. But among lay statesmen not a hand was raised to stay the process of disintegration. This Emperor, Charles the Fat, had succeeded by mere longevity in uniting all the dominions of his family under his immediate rule; but in three short years he dissipated whatever lingering respect attached to the idea for which he stood. In the words of the annalist "a crop of many kinglets sprang up over Europe." All the new pretenders came from the class of the great feudatories. Among the West Franks it was Eude the Count of Paris who seized the royal diadem; the East Franks elected Arnulf, Duke of Carinthia; Italy became an apple of discord between the margraves of Spoleto and Friuli; Burgundy was partitioned by two native families.

Yet within a hundred years there arose a reaction in favour of the imperial idea—a reaction of which Germany was the apostle, which Italy accepted, which made many converts in West Francia. There were new and sufficient

reasons for returning to the discarded system. The national hierarchies, who had undermined the Frankish Empire to broaden the foundations of ecclesiastical privilege and influence, were discovering that they had set up King Stork in place of King Log; the exactions of an Augustus were as nothing compared with the lawless pillaging of the new feudalism; and elective sovereigns, ruling by the grace of their chief subjects, were powerless for good as well as harm. The lower ranks of laymen had no better cause to be content with the new order under which the small freeholder was oppressed, the peasant enslaved, the merchant robbed and held to ransom. The freedom of the aristocracy spelled misery for every other class. These self-constituted tyrants passed their lives in devastating faction fights. Worst of all, their divisions and their absorption in petty schemes of personal aggrandisement left Europe at the mercy of uncivilised invaders. In the ninth and tenth centuries, medieval society experienced the same ordeal to which the Roman Empire had been subjected in the fifth. From the North and from the East a new generation of barbarians, perceiving the patent signs of weakness, began to break through the frontiers in search of plunder and of settlements.

First came the Northmen from Norway and Denmark. Like the Saxons of the fourth century they were unrivalled seamen. Their fleets transported them from point to point faster than land forces could follow in pursuit; the great rivers served them as natural highways; and if beaten in a descent upon the land, they had always their ships as a safe refuge. To make treaties and to offer blackmail was a worse than useless policy; the Vikings came in bands which operated separately, or united in this year to scatter and form new combinations in the next. One leader could not bind another; to buy off one fleet was merely to invite the coming of a second. These pirates had begun to molest the British Isles and Frisia before the death of Charles the Great; but after the first partition of his Empire they fell on the whole coastline from the Elbe to the Pyrenees. Originally attracted by the hope of

plunder they soon aimed at conquest; when, at the close of the ninth century, there was a sudden pause in the flood of armed emigration from the North, the Danelaw in England and Normandy on the opposite side of the Channel remained as alien colonies which the native rulers were obliged to recognise.

It was in Gaul that the ravages of the Normans were most severely felt, though for a few years they were the scourge of Frisia and the adjacent provinces. Germany and Italy had other enemies to fear. In the year 862 a new danger, in the shape of the Hungarians, appeared on the borders of Bavaria. They were an Asiatic people, from the northern slopes of the Ural Mountains, who had been moving westward since the commencement of the century. Contemporaries identified them with the Huns of Attila, and the resemblance was more than superficial. The Hungarians were of the Tartar race—nomads who lived by hunting and war, skilled in horsemanship and archery, utterly barbarous and a byword for cruelty. The rapidity of their movements, and the distances to which their raids extended, are almost incredible. In 899 they swept through the Ostmark and reached the Lombard plain; in 915 they sacked Bremen; in 919 they harried the whole of Saxony and penetrated the old Middle Kingdom; in 926 they went into Tuscany and appeared in the neighbourhood of Rome; in 937 they even reached the walls of Capua. In fact, until the great victory of Otto I upon the Lech (955), they were the terror of two-thirds of Christian Europe. Italy, the most disunited of the new kingdoms, was further vexed by the Saracen pirates who roamed the Western Mediterranean. The only sea-power capable of dealing with them was that of the Byzantine Empire. The Greek fleet protected the southeast of Italy, but was powerless to save Sicily, which was conquered piecemeal for the Crescent (827-965). Farther north the seaports of Amalfi, Gaeta, Naples and Salerno paid tribute or admitted Saracen garrisons; in 846 Ostia and the Leonine quarter of Rome (including the basilica of St. Peter) were pillaged. Robber colonies established

themselves on the river Garigliano, and at Garde-Frainet, the meeting-point of Italy and Provence.

The effect which these disasters produced on the minds of the sufferers is nowhere more clearly visible than in England. Here the House of Alfred was able, within a century of the partition made at Wedmore between the West Saxon kingdom and the Danes (878), to establish a kingdom of imperial pretensions, loosely knit together but more durable and more highly organised than any power which had arisen in Britain since the Roman period. In Germany the Saxon line, beginning with Henry the Fowler (919-936), was permitted to make the royal title hereditary, and to assert an effective suzerainty over the other tribal dukes. In France the House of Paris, after ruling for many years in the name of a degenerate Carolingian line, was invited in the person of Hugh Capet to assume the royal dignity (987). We have here a European movement in favour of monarchy; and on the heels of it follows another for the restoration of the Empire. The new royal dynasties did good work; even the weakest among them, that of France, served as a symbol of unity, as a rallying point for the clergy and all other friends of peace; but both on practical grounds and on grounds of sentiment they left much to be desired. National monarchy meant national wars and the right of national churches to misgovern themselves according to their several inclinations. Every year the rent in the seamless robe of Christendom grew wider; political unity was disappearing, and religious unity would soon go the same way. The kingly title made but a slight appeal to the imagination or the conscience; with whatever ceremonies a King was crowned, the real source of his power was the position which he held, independently of his office, as a chief of a tribal or a feudal group; of men who, as St. Odo bitterly remarked, being oppressed took to themselves a lord that with his help they might become oppressors. Sovereign power had lost all poetry and dignity; it was being perverted to

serve petty ends. An Emperor was needed to restore a higher sense of justice, to exalt the spiritual above the material side of life.

So the idealists reasoned, and in Germany their arguments found willing converts. This may appear strange, since Germany had taken the lead in repudiating the Carolingian Empire, and Henry the Fowler, who established the new German monarchy, was the reverse of an idealist. But the truth was that the peculiar constitution of the German kingdom and the peculiar problems raised by German expansion towards the East were such as to make the ideal policy the safest. Though Henry the Fowler had sedulously limited his attention to German problems, his son, working on the same lines, found himself led by the natural sequence of events to cross the Alps, seize Italy and take the imperial crown from the Pope's hands.

Henry the Fowler, elected after nineteen years of nominal kingship and unbridled anarchy, defined his position by a series of compacts with the great Dukes. Suabia, Bavaria and Lotharingia became dependent principalities, whose rulers attended national Diets, occasionally appeared at court, and still more occasionally rendered military service. Under their sway the new feudalism, which they encouraged as the means of creating armies both for defence and for pursuing an independent foreign policy, took root and thrived as a legal institution. Within the borders of the duchies Henry had little power except as the patron of the church. He claimed the right of nominating bishops—though in Bavaria this claim was not made good till the next reign—and religious foundations held their privileges by his grace. The ecclesiastical councils which legislated with his sanction were more important than the Diets composed indifferently of laymen and prelates. His general policy gave greater cause for satisfaction to the clergy than to the remainder of his subjects. The assertion of supremacy over Lotharingia (925), and Bohemia (929), and the defeat of the Hungarians at the Unstrut (933), were national achievements; but for nine years before the

battle of the Unstrut the King had allowed the Hungarians to work their will in Bavaria and Suabia, having secured the immunity of his own duchy by a separate truce. He had chiefly employed those years in building strong towns for the defence of Saxony, and in extending Saxon power by the conquest of Brandenburg, Lusatia, Strelitz and Schleswig. These could only be called national services on the assumption that the crown was to remain the hereditary possession of his house; but the German kingship was elective. To the Church, however, nothing was more welcome than conquests gained at the expense of heathen Slavs and Danes. In her eyes this Saxon statesman was the forerunner of the Christian faith in the dark places of Europe. For all these reasons, then, the power of Henry and his successors remained a power resting upon ecclesiastical support. To strengthen the alliance of church and state must be the first object of a Saxon ruler.

For some years after his accession (936) Otto I was harassed by pretenders of his own family who allied themselves with one or more of the great Dukes. The Bavarians threatened to secede and form an independent nation; the Franconians rebelled when their right of waging private wars was called in question; the Lotharingians intrigued to make themselves an independent Middle Kingdom. All such malcontents found it easy to secure a brother or a son of the King as their nominal leader. Even when Otto had placed all the duchies in the hands of his own kinsmen or connections, his power was still precarious. For he claimed new rights which, though necessary to the maintenance of kingly power, did violence to feudal and provincial sentiment; while the Dukes whom he nominated usually took up the pretensions of their predecessors, and identified themselves with the interests of their subjects. It was more important than ever that the King should have the help of the clergy in educating public opinion. But in the most critical period (939-955) of the reign the German primate, Archbishop Frederic of Mainz, lent the weight of his influence and high personal

reputation to the rebel cause. In another direction also Otto found the clergy the chief opponents of a cherished scheme. Organised missions were among the means on which he relied for civilising and extending his father's conquests in Slavonic territory. For this purpose he planned, with the approval of Rome, to make Magdeburg an archbishopric and the head of a Slavonic province. To this proposal the sees of Mainz and Halberstadt offered strenuous resistance, on the ground that it would curtail their jurisdictions (955). Twice, therefore, Otto had been sharply reminded that his authority over the German Church was insufficient for his purpose.

Meanwhile the train of events had drawn him into Italian politics. The Kingdom of Italy had been seized, in 926, by Hugh of Provence, an adventurer of Carolingian descent. In 937, on the death of Rudolph II of Burgundy, Hugh designed to seize this derelict inheritance. He was forestalled by Otto, who assumed the guardianship of the lawful heir of Burgundy, the young Conrad; a united kingdom of Italy and Burgundy would have been too dangerous a neighbour for the German Kingdom. Hugh, however, secured for his son, Lothair, the hand of Conrad's sister Adelaide, thus keeping alive the claims of his family for a future day. Somewhat later Otto retaliated by giving protection to an Italian foe of Hugh, the Margrave Berengar of Friuli, who came to the Saxon court and became the liegeman of the German King. In 950 this relation suddenly acquired political importance, through the unexpected deaths of Hugh and Lothair, and the succession of Berengar in Italy. Reminded of his oath to Otto, the new King repudiated his obligations as a vassal, and gave further provocation by ill-treating the widowed Adelaide. Otto was thus equipped with a double excuse for making war. And war was forced upon him by the ambitions of his brother Henry, Duke of Bavaria, and of his son Liutolf, Duke of Suabia. Both cast covetous glances on Italy, which was hopelessly divided and an easy prey for the first-comer. In 949 the Duke of Bavaria had seized Aquileia; in 951 the Duke of Suabia crossed the Alps ostensibly

to champion Adelaide. Otto could not remain idle while two of his subjects and kinsmen contended over the spoils of Italy. He collected an army and followed hard on the footsteps of Liutolf. Berengar fled, the Dukes made peace with their suzerain, and Otto was free to dispose of the Italian kingdom (951).

It is possible that, if the opportunity had been forthcoming, he would at once have proceeded to Rome for an imperial coronation. But the Pope, who alone could make an Emperor, was the nominee of a Roman faction, headed by the ambitious Alberic the Senator who aspired to build up a secular lordship on the basis of the Papal patrimony. Otto was not invited to visit Rome. After some hesitation he decided, instead of himself assuming the unprofitable duties of an Italian King, to restore Berengar on condition of a renewal of homage. Perhaps the arrangement was intended to be temporary. Otto was still menaced by conspiracies in Germany; and Berengar might serve to guard Italy against ambitious Dukes, until the hands of his overlord were free for Italian adventures. Later events justify some such hypothesis. Within a few years the chief difficulties of Otto were removed. A great ducal rising collapsed; the Hungarians were so decisively beaten at the Lechfeld (955) that they ceased to trouble Germany; death relieved Otto of his most dangerous rivals, Archbishop Frederic of Mainz and his own son, Duke Liutolf. Then, in 960, arrived the long-delayed call from Rome. John XII, a dissipated youth of twenty-two, the son of Alberic (died 954) but devoid of his father's ability, invoked the aid of Germany to protect the temporal possessions against Berengar. Otto required no second summons. Descending upon Italy, he expelled his vassal, assumed the Italian crown at Pavia (961) and then repaired to Rome. Here in 962 he was crowned by the Pope as lord of the Holy Roman Empire of the German Nation. For good or for evil the prerogative of Charles the Great was inseparably united to the German monarchy.

From this complicated series of events some interesting conclusions may be deduced. The Empire, which has so often been abused as a source of countless woes to Germany, was revived in the interests of a purely German policy. Unlike his son and his grandson, Otto I never submitted to the spell of Italy. Since the time of Charles the Great it had been taken for granted that the Empire could only be conferred by the Pope and only held by a King of Italy. Otto did not greatly value his Italian dominions, though circumstances forced him to reside in Italy for a large part of his later years. For a time he had thoughts of recovering Apulia and Calabria from the Greeks, Sicily from the Arabs. But he abandoned his claims against the Eastern Empire as the price of a marriage-alliance, and he left Sicily untouched. The Crown of Italy was valuable to him chiefly as a qualification for his imperial office. To the ecclesiastical duties of that office he was not indifferent. His bishops, though largely employed as secular administrators, were chosen with some regard to their spiritual duties; he was a friend to the Cluniac movement for monastic reform. But clearly he did not visit Rome in pursuit of any plans for cleansing that Augean stable the Papacy. The vices of John XII were notorious; but, as a Pope who could legally confer the Empire, he was good enough for Otto's purpose. Only when John repented of his bargain and turned traitor was he evicted in favour of a more reputable successor (963). And John's successor was a layman until the time of his election. Otto's chief concern was to secure a trustworthy partisan; this remained the Saxon policy till the days of his grandson.

Otto was not indifferent to the splendour or the more ambitious claims of his office. He paraded before the world the benevolent protectorate which he exercised over the young rulers of Burgundy and France; he insisted upon the homage of the Polish and Bohemian dukes. He held magnificent Diets to celebrate his new position, and made great efforts to win recognition from the Byzantine court. But in substance his ambitions were

those of a German national king. He had a keen sense of realities, a keen appreciation of concrete results; from first to last his thoughts centred round the problems of his native land. The extension of the eastern frontier, the alliance with the Church, the management of the duchies—these were his main achievements as they had been his main ambitions. But he had built better than he knew; and the Empire acquired before his death a nobler significance than he perhaps had ever contemplated.

The work of Otto I was skilfully done, since it survived the follies of his son and grandson. For twenty years after his death (973) the titular rulers of the Empire were boys and women-regents. At Rome, in Germany, on the western and eastern frontiers all the beaten factions and humiliated rivals plucked up courage to make another bid for victory. The old Empress Adelaide, and her daughter-in-law the Empress Theophano, divided or disputed the control of the administration until 991; from that date till 998 the elder woman, freed from interference by the death of Theophano, exercised a great though a declining influence. Neither Empress was competent to handle the singular difficulties of the situation. Adelaide, though true to the German ambitions of her husband, was guided by personal prejudice in the selection of her ministers. Theophano, a woman of remarkable abilities and attainments, despised the monotonous intricacies of German politics, encouraged both her husband and her son to regard Italy as the worthiest field for the activities of an Emperor, and in Italy looked rather to Rome and the South than to Lombardy. It was the church party, both in Germany and in Lombardy, which in these years kept the subjects of the Empire true to their allegiance. The German dukes were less disinterested. But the precedents which Otto I had established proved invaluable when his son was required to deal with a rebellion, or had the opportunity of appointing to a vacant dukedom.

The blame for the chimerical ambitions of Otto II and Otto III is usually thrown upon Theophano, that brilliant missionary of Byzantine culture and Byzantine political ideas. But the influence which perverted the judgement of these Emperors, until they became a byword in Europe, was something more impalpable than the will-force of a domineering woman. They were born into the misty morning twilight of the medieval renaissance, of an age when intellectual curiosity was awakening, when philosophy, the sciences and Latin literature were studied with a lively but uncritical enthusiasm, when the rhetorician and the sophist were the uncrowned kings of intelligent society. The philosophy was little more than school-logic, derived at second or third hand from Aristotle, the science a grotesque amalgam of empiricism and tradition. The Latin classics, apart from their use as a source of tropes and commonplaces, only served to inspire a superstitious and uncomprehending reverence for ancient Rome. Of this new learning Otto II and his son were naive disciples. They could not sufficiently admire the encyclopaedic Gerbert, the most fashionable and incomparably the ablest teacher of their day. Otto II and his court listened patiently for hours while Gerbert disputed with a Saxon rival concerning the subdivisions of the genus philosophy. Otto III invited Gerbert to come to court and cure him of "Saxon rusticity"; he deluged the complaisant tutor with Latin verses, consulted him in affairs of state, and finally promoted him to the Papacy. Gerbert was in fact a subtle and ambitious politician, who filled the chair of Peter with no small degree of credit. But his more serious talents would never have found their opportunity save for his skill in ministering to the pseudo-classicism of rustic Saxons.

Each of these Emperors turned his back on Germany at the first opportunity. Each met in Italy with bitter disillusionment and an untimely fate.

Otto II, in whose idealism there was a trace of his father's concrete ambition, planned the conquest of South Italy and Sicily. The scheme was not impracticable as the Hohenstauffen were afterwards to prove. And in the year 980 it could be justified as advantageous to the whole of Christian Europe. A new Saracen peril was impending in the Western Mediterranean. A new dynasty of Mohammedan adventurers, the Fatimites, had arisen on the coast of Northern Africa and had made themselves masters of Egypt (969). Five years before that event they had already occupied Sicily; in 976 they turned their attention to Italy. The south of the peninsula was divided between the Eastern Empire and Pandulf Ironhead, the lord of Capua, who had established an ephemeral despotism on the ruins of Lombard and Byzantine power. Even he could not face the Arabs in the open field, and his death (981) was followed by the partition of his lands and bitter strife among his sons. Unless Otto intervened it was not unlikely that Italy, south of the Garigliano, would become a province of the Caliphate of Cairo. Otto, however, was ill-qualified to be the general of a crusade. His military experience had been gained in petty operations against the Danes and Slavs, and in an invasion of France vaingloriously begun but ending in humiliation (978). Full of self-confidence he led a powerful force into Apulia, intending to expel first the Greeks and then the Arabs. He captured Bari and Taranto without difficulty; but he had no sooner entered Calabria than he allowed himself to be entrapped by the Emir of Sicily. On the field of Colonne (982) he lost the flower of his army and barely escaped capture by flight to a passing merchant vessel. Next year he died, in the midst of feverish preparations to wipe out this disgrace. It was left for the despised Greeks to repel the Arabs from the mainland; Sicily remained a Mohammedan possession till the coming of the Normans (1062).

It is easier to sympathise with the policy of Otto II than with the man himself. The case is reversed when we turn to the career of his son. Otto III, an infant at his father's death, escaped from female tutelage in 996, and

made his first Italian expedition as an autocrat of sixteen. He went to free the Papacy from the bondage of a Roman faction, the party of the infamous John XII, again rearing its head under a new leader. The boy-ruler suppressed the rebels with some gratuitous cruelty. But he was not without noble ambitions or the capacity of appreciating finer natures than his own. Called upon to nominate a Pope he selected his cousin Bruno, a youth little older than himself, but a statesman and an idealist, who set himself to assert the authority of the Holy See over the national Churches, partly no doubt in the interests of the Empire but more in those of morality and discipline. Unhappily Bruno died before his influence had eradicated from the Emperor's character the weaknesses fostered by scheming flatterers and an injudicious education. Gerbert, who succeeded Bruno with the title of Sylvester II, encouraged his pupil in a career of puerile extravagances. While the new Pope extended his jurisdiction and magnified his office, the young Emperor was planning to revive in Rome the ancient glories of the Caesars. Otto built a palace on the Aventine; he imitated the splendour and travestied the ceremonial of the Byzantine court; he devised pompous legends to be inscribed on his seal and on his crown. In the year 1000 he made a solemn pilgrimage to Aachen and opened the vault of Charles the Great; another to Poland, to pray at the shrine of his martyred friend, St. Adalbert, in Gnesen. Meanwhile the serious business of the Empire was neglected; the Slavonic states shook off the German connection; the eastern frontier was unguarded. Even the Romans, whom he cherished as his peculiar people, despised his vagaries and rose in insurrection. This was the awakening. Alive at last to the difference between his dreams and his true position, he quitted the Eternal City to wander aimlessly in Italy, and died broken-hearted at the age of twenty-one.

It would obviously be unjust to judge the Holy Roman Empire of the first Otto by the tragicomic aberrations of his immediate successors. Their careers illustrate, in an extreme form, the temptations to which an Emperor

was exposed; but neither of them understood the essence of the institution. Far from idealising the Empire overmuch they did not make it ideal enough. The true conception of Empire eluded their grasp and was unaffected by their failure. The policy of Otto the Great is justified by the fact that he, like Charles the Great, gave to a national monarchy the character of a religious office and the sense of a sacred mission. To appreciate his achievement we need only compare the German monarchy, as it stood in the year 1000, after a generation of misgovernment had marred the architect's design, with that of the Capets in France or of the House of Egbert in England. The difference is not only in size or outward splendour. The Holy Roman Empire stood for a nobler theory of royal and national Duty.

IV

FEUDALISM

Before discussing the origins or the effects of feudalism it is well to form a definite conception of the system as we find it in the twelfth and thirteenth centuries, when it is the basis of local government, of justice, of legislation, of the army and of all executive power. In this period the lawyers have arrived at the doctrine that all lands is held from the King either mediately or directly. The King is himself a great landowner with demesnes scattered over the length and breadth of the realm; the revenues of these estates supply him with the larger part of his permanent income. The King is surrounded by a circle of tenants-in-chief, some of whom are bishops and abbots and ecclesiastical dignitaries of other kinds; the remainder are dukes, counts, barons, knights. All of these, laymen and churchmen alike, are bound to perform more or less specific services in return for their lands; the most important is military service, with a definite quota of knights, which they usually render at their own charge; but they are also liable to pay aids (*auxilia*) of money in certain contingencies, to appear regularly at the King's council and to sit as assessors in his law court. They hold their lands in fact upon a contract; but the precise obligations named in this contract do not exhaust their relation to the King. In a vague and elastic sense they owe him honour (*obsequium*) and loyalty (*fidelitas*). They must do all in their power to uphold his interests and exalt his dignity. He on his side is bound

to consult them collectively, in all matters of importance, and to maintain them individually in the rights and possessions which he has granted to them. These personal and indefinite ties should not be renounced, on either side, without some very serious reason—gross treachery, gross neglect of duty, gross abuse of power or privilege.

These tenants-in-chief have on their estates a number of sub-tenants, who are bound to them by similar contracts and a similar personal relation. The homage of the sub-tenant to his immediate lord ought to be qualified by a reservation of the allegiance which all subjects owe to the King. Whether this reservation shall be made or, when made, shall have any practical consequences, will depend upon the King's resources and personality. Where effective, it means that he can claim from the sub-tenants the discharge of certain national duties, can call on them for military service, can judge them in his court, can tax them with the consent of his council, that is of their lords; on the other hand, it means that these sub-tenants may not allege the commands of their lord as an excuse for making war upon the King or committing any breach of the public peace. Where the general duty of allegiance has lapsed into oblivion, the tenant-in-chief is in all but name a dependent king, and the feudal state becomes a federation under a hereditary president, who occasionally arbitrates between the members of the federation and occasionally leads them out to war.

The other members of the feudal state group themselves or are forcibly grouped under the rule of different persons in the feudal hierarchy. In the open country the soil is partly tilled by small free-holders, who pay to this or that lord a rent in money, kind, or services. Like the feudal sub-tenants these free-holders are, for most purposes, subject to the jurisdiction of their lord; though in the well organised state the royal judges protect them against the grosser forms of violence. But the greater part of the land is divided between servile village-communities, who give up perforce a large

proportion of their working-days to the cultivation of the lord's demesne. The tendency of feudal law is to treat these peasants as slaves, to deny them the assistance of the royal law-courts, to regard them as holding their land at the will of their lord. In practice the lord finds that he cannot insist upon the full measure of his legal right. Though he has the right to reclaim all runaways, it is difficult to hunt them down; though he can fix the measure of his own demands, it is dangerous and unprofitable to arouse a spirit of mutiny. A judge from whom his serfs have no appeal in matters that concern their tenure, he finds it politic to make and to observe definite contracts, which remain unaltered from one generation to another. Hence the condition of the serfs, though hard, is less precarious than we might suppose if we only studied what the feudal lawyer has to say about them. Turning from the country to the towns, we find that all are subject to a lord or to the King; that some are only half-emancipated communities of serfs; that in others the burgesses have the status of small free-holders; that in a minority, but a growing minority, of cases the burgesses have established the right to deal collectively with the lord, to be regarded as *communes* or free cities. In these cases there is a form of popular self-government under elected magistrates. Through the magistrates the town pays a fixed rent to the former lord; usually it claims the special protection of the King, and comes to hold the position of a tenant-in-chief (*une seigneurie collective populaire*). No society could be, in spirit and in organisation, more anti-feudal than the free town of the Middle Ages; but it can only secure a safe existence by obtaining a definite position in the feudal hierarchy. In fact, the clergy are the only considerable class who succeed in resisting the universal tendency to feudalise all landed property and to find for every man a lord. Even they are compelled to make large concessions to the spirit of the age. It is only at the cost of long and ruinous conflicts that bishops and other prelates establish some distinction between their position and that of the ordinary tenant-in-chief. Even so it remains the law that the principal

endowments of every religious foundation are fiefs held under a feudal contract of service. More successful, though not less difficult, was the struggle against the theory that the parish-priest is the vassal of his patron and may, by recognising his obligations as a vassal, acquire the vassal's privilege of passing on his office to his son.

Such then was feudalism in the concrete. It is the negation of all that we hold to be most important in the conceptions of the state and citizenship. In effect, though not altogether in theory, it subordinates the obligations of the citizen to those which the individual incurs by entering on a voluntary contract. This contract may or may not be made with the ruler of the state; in the majority of cases it is made with a fellow-citizen. Though honourable, according to current ideas, this contract always leaves to the lord some loopholes for the exercise of arbitrary and capricious authority; it impairs, if it does not destroy, the rule of law. Again, the effect of the system is to throw the main burden of national defence, and the main control of the royal power, upon a close hereditary caste of landowners. The standard of public duty is lowered; the government becomes either an absolutism or an oligarchy, and in either case studies chiefly the interests of a class which despises industry and holds privilege to be the necessary basis of society. Under feudalism the powers of the Crown, executive, judicial, administrative, are often granted away to be held by the same tenure as the fiefs over which they are exercised. And thus is created the worst form of civil service that we can conceive; a corps of hereditary officials, who can only be checked or removed with extreme difficulty, who render no account of the sums which they collect under the name of fines or dues, who are seldom educated to the point of realising that, even in their private interest, honesty is the best policy. If this system had developed to its logical conclusion, if the principles of feudal government had not been mitigated by revolt from below and interested tyranny from above, the only possible end would have been a state of particularism and anarchy compared with

which the Germany of the fifteenth century, or the Italy of the eighteenth, might be called an earthly paradise.

The very defects of the feudal system are, however, the best proof that it was the natural and inevitable product of social evolution. A legal theory so complex, so repugnant to the best traditions both of Roman and barbarian government, could not have obtained general recognition, as part of the natural order of things, unless it had grown up by degrees, unless it had been the outcome of older usages and institutions. A form of social organisation so cumbrous and so dangerous could hardly have survived for centuries unless it had solved difficulties of unusual urgency and magnitude. Let us then consider, in their historical order, the antecedents of feudalism and the reasons of state by which it was justified.

Before the downfall of the Roman Empire the duties of local government were slipping from the grasp of the imperial executive. With or without official consent, the great proprietors—already held responsible for the taxes, the military service, and the good conduct of their dependents—were assuming rights of jurisdiction. When Gaul was reorganised by the Merovingians, these private courts of law continued to exist; and they were even legally recognised (by Clotaire II in 614) as institutions of public utility. A certain number of great estates were further protected by special charters of privilege (*immunitas*) which forbade public officials to enter them for the purposes of making arrests, of holding courts, of collecting fines and levying distrains. The owners were obliged to surrender any person accused of a grave crime, but otherwise did justice at their pleasure.

This system of immunity was greatly extended by the Carolingian sovereigns, but with two important changes. (1) Henceforward the privilege was seldom granted to laymen, but was bestowed as a matter of course on the estates of bishops and of religious houses. (2) The holders of such

ecclesiastical estates were compelled to vest their powers of police and justice in the hands of laymen (*advocati*) chosen either by the central power or by some approved form of election. The intention of these changes was to use the private courts for the maintenance of public order, to extract the sting from a dangerous privilege, and to make it a serviceable instrument of royal policy. But only one half of the scheme was permanent. By the middle of the ninth century, when *immunitas* had been granted to all religious foundations, the Carolingians allowed the right of choosing the *advocati* to slip from their feeble grasp. The privileged estates remained, but the royal control over their internal government was gone. They became ecclesiastical seignories; whatever checks were imposed upon the power of their rulers came from the lay-nobles who were their neighbours, or from the subject population. Partly from respect for custom and tradition, partly from motives of self-interest, the great ecclesiastical landowners sided with the Crown, even in the tenth century, when the fortunes of royalty were at their lowest ebb. But for this support a price had to be paid; the old privileges were maintained and even augmented by grants of the power of life and death (*hautejustice, blut-bann*). Thus came into existence the class of ecclesiastical princes, who throughout the Middle Ages maintained a state, and wielded a power, comparable with that of any lay feudatory.

The ecclesiastical *immunitas*, as early as the ninth century, was in the eyes of all ambitious landowners the model of a privileged estate. But it was by another road that the layman arrived at the position of a petty sovereign. Speaking broadly, there are two stages in his progress. First, he comes into the position of a royal tenant, holding his lands in exchange for services and fealty. Secondly, he acquires, by delegation or usurpation, a greater or smaller part of the royal authority over his own dependents.

(1) The idea of a personal contract between the free warrior and his lord, by which the former places himself at the disposition of the latter and

promises unlimited service, is one which occurs in many primitive societies and is peculiar to no one branch of the human race. Tacitus noticed, as one feature of German life in his time, the free war-band (*comitatus*) who lived in the house of their chief, followed him to battle, and thought it the last degree of infamy to return alive from the field on which he had fallen. The Merovingian kings maintained a bodyguard of this kind (*antrustions*). Under the Carolingians such followers appear in the host, in the royal household, in every branch of the administration. They are the most trusted agents of the King and possess considerable social consequence. They are called *vassi*, a name formerly applied to any kind of dependent, but now reserved for free men rendering free services to the King or some other lord, and subject to his jurisdiction. So valuable are these followers that, in the eighth and ninth centuries, the power of the great is largely measured by the number of *vassi* whom they can put into the field.

Various considerations suggested to Frankish rulers and nobles the expediency of endowing these followers with land, and of granting land to no tenant unless he would take the vassal's oath. Usually land was the only form of pay which the lord could give; and it always served as a material guarantee of faithful service, since it could be resumed whenever the vassal made default. In days when law and morality availed little as the sanctions of contracts, the landlord naturally desired to bind his tenant to him by a personal obligation; and there were obvious advantages in providing that every tenant should be liable to aid his lord with arms. The estates granted to vassals were known as benefices (*beneficia*); they foreshadowed the lay-fief of later times. But there are some distinctions to be drawn. The benefice was not *de jure* heritable; it escheated on the death of either lord or tenant. The service was not measured with the same precision as in later times. The military duties of the beneficed vassal were not different in kind or degree from those of the ordinary freemen. Finally, the idea had not yet arisen that vassals were superior in status to the rest of the community. The importance

of the vassal depended entirely on his wealth and his rank in the King's employ. Only in the old age of the Carolingian Empire, when the class of free landowners, acknowledging no lord, had been almost ground out of existence by official oppression and the intolerable burden of military service, was the burden of national defence thrown entirely upon vassals. Then, as the sole military class in the community, they acquired the consideration which, in early stages of social development, is the monopoly of those who are trained to arms.

(2) It was natural that the tie of vassalage should be imposed on every important official; and natural also to regard his office as a benefice, tenable for life or during good behaviour. At an early date we find cases of conquered princes—a Duke of Aquitaine, a Duke of Bavaria, a King of Denmark—who take the vassal's oath and agree to hold their former dominions as a *beneficium*. So again a member of the royal house does homage and promises service in return for his appanage. More common, and more important for the future, is the practice of treating counts as vassals. All over the Frankish Empire the county was the normal unit of local administration. The count led the military levies, collected the royal dues, enforced the laws, maintained the peace, and was a judge with powers of life and death. The Carolingians controlled their counts by means of itinerant inspectors (*missi dominici*); but with the disruption of their Empire this check was destroyed, while the power of the count survived. By that time the office had often become hereditary, on the analogy of the *beneficium*, and the count appropriated to his own use the profits of his office. In such cases his county became a small principality, classed by lawyers as a fief, but often ruled without any reference to the interests of the royal overlord. The fiefs of Anjou, Champagne and Flanders began in this way as hereditary countships. Sometimes, again, we find that a great vassal obtains, by grant of usurpation, the prerogatives of a count over his own

lands; examples are the prince-bishops of Trier (898 A.D.), Hamburg (937), and Metz (945).

The first effect of this striking change in the nature of landed property and of public office was to substitute for the centralised state of the Carolingians a lax federal system, in which each unit was a group of men attached to the person of a hereditary superior. This nascent feudalism was often brutal, always summary and short-sighted, in its methods of government. The feudal group was engaged in a perpetual struggle for existence with neighbouring groups. Feudal policy was aggressive; for every lord had his war-band, whom he could only hold together by providing them with adventure and rich plunder; nor could any lord regard himself as safe while a neighbour of equal resources remained unconquered. Furthermore, as though the disintegration of society had not gone far enough, every great fief was in constant danger of civil war and partition. As the lord had treated the King, so he in turn was treated by his vassals. He endowed them with lands, he allowed them to found families, he gave them positions of authority; and then they defied him. In the eleventh century the great fief bristled with castles held by chief vassals of the lord; in the small county of Maine alone we hear of thirty-five such strongholds; generally speaking they were centres of rebellion and indiscriminate rapine. Such feudalism was not a system of government; it was a symptom of anarchy.

Yet feudalism had not always been a mere tyranny of the military class over the unarmed population. Like the Roman Empire, that of the Franks had forfeited respect and popularity by misgovernment, by feeble government, by insupportable demands on the personal service of the subject. The land-owner was a less exacting master than the Empire; often he could defend his tenants from imperial exactions. During the invasions of the Northmen and Hungarians, he was impelled by his own interest to

guard his estates to the best of his ability. Therefore common men looked to their landlord, or looked about them for a landlord, to whom they could commend themselves. The great estate was the ark of refuge from the general flood of social evils. In the eleventh century the situation changed. The Hungarian tide of invasion was rolled back by a Henry the Fowler and an Otto the Great; the Northmen enrolled themselves as members of the European commonwealth. The petty feudal despot was no longer needed. From a protector he had degenerated into a pest of society. The great political problem of the age was to make him innocuous. It was taken in hand, and it was settled, by a variety of means.

In France the Church took the lead of the repressive movement, endeavouring to mitigate the horrors of private war by certain restrictions upon the combatants. During the eleventh century it was not unusual for the bishop of a diocese to secure the co-operation of representative men, from all classes of society, in proclaiming a local Truce of God (*Treuga Dei*). This Truce, which all men were invited to swear that they would observe, forbade the molestation of ecclesiastics, peasants and other non-combatants; provided that cultivated land should not be harried or cattle carried off; and named certain seasons when no war should be waged. A typical agreement of this kind enjoins that all private hostilities shall be suspended from Wednesday evening to Monday morning in each week; from the beginning of Advent till a week after the Epiphany; from the beginning of Lent till a week after Easter; from the Rogation Days till a week after Pentecost. The Truce of God was approved by the Crown both in France and in Germany; even in the twelfth century it was still recommended by church councils as a useful expedient. But it was seldom effectual. There was no machinery for enforcing it; and those who swore to uphold it were so divided by conflicting class interests that they could not co-operate with any cordiality. The second of these defects, though not the first, can also be perceived in the German system of the Land-peace. Periodically we find an Emperor

constraining a particular province, or even the whole German kingdom, to accept a set of rules which are partly modelled on those of the *Treuga Dei* and partly in the nature of criminal legislation. Thus in 1103 the magnates of the kingdom were required to swear that for the next four years they would not molest ecclesiastics, merchants, women, or Jews; that during the same period they would neither burn nor break into private houses; that they would not kill or wound or hold to ransom any man. In regard to the last rule the magnates insisted on some modification; it was finally provided that a man meeting a private enemy on the high-road might attack him, but might not pursue him if he took refuge in a private house. The general Land-peaces of Frederic Barbarossa (1152) and Frederic II (1235) are the most important enactments of this kind; but they deviate widely from the original type. They are permanent; they aim at the total suppression of lawless self-help; they are codes of criminal law which, if thoroughly enforced, would have opened a new era in German history. As the case stands—they are only the evidence of an unrealised project of reform.

It was not by confederations of this kind, whether spontaneous or compulsory, that feudalism could be bridled. The twelfth and thirteenth centuries, the great age of medieval statesmanship, saw other and more effectual remedies applied. In the free cities of France, Italy, the Netherlands and Germany, the commercial classes perfected a form of association which, however faulty in other respects, was successful in excluding feudalism from the principal centres of urban industry. In the larger states, whether kingdoms or not, the rulers, supported by the Church and the commons, bestirred themselves to slay the many-headed Hydra. Feudalism was not extirpated, but it was brought under the law. In many districts it defied repression. To the end of the Middle Ages the Knights of Suabia and the Rhineland maintained the predatory traditions of the Dark Ages; and everywhere feudalism remained a force inimical to national unity. But the great feudatories who survived into the age of Machiavelli

and of the new despotisms had usually some claims upon the respect of their subjects. The Duchy of Brittany, the Burgundian inheritance, the German electorates, were mainly objectionable as impeding the growth of better communities—better because more comprehensive, more stable, more fitted to be the nurseries of great ideas and proud traditions.

It remains to speak of chivalry, that peculiar and often fantastic code of etiquette and morals which was grafted upon feudalism in the eleventh and succeeding centuries. The practical influence of chivalry has been exaggerated. Chivalrous ethics were in great measure the natural product of a militarist age. Bravery and patriotism, loyalty and truthfulness, liberality and courtesy and magnanimity—these are qualities which the soldier, even in a semi-civilised society, discovers for himself. The higher demands of chivalric morality were as habitually disregarded as the fundamental precepts of the Christian faith. The chivalric statesmen of the Middle Ages, from Godfrey of Bouillon to Edward III and the Black Prince, appear, under the searchlight of historical criticism, not less calculating than Renaissance despots or the disciples of Frederic the Great of Prussia. But something less than justice has been rendered to the chivalric ideal. The ethics which it embodied were arbitrary and one-sided; but they represent a genuine endeavour to construct, if only for one class, a practicable code of conduct at a time when religion too often gloried in demanding the impossible. Chivalry degenerated into extravagance and conventional hyperbole; but at the worst it had the merit of investing human relationships and human occupations with an ideal significance. In particular it gave to women a more honourable position than they had occupied in any social system of antiquity. It rediscovered one half of human nature. But for chivalry the Beatrice of Dante, the Laura of Petrarch, Shakespeare's Miranda and Goethe's Marguerite, could not have been created, much less comprehended.

Chivalry in the oldest discoverable form was the invention of the Church. The religious service by which the neophyte was initiated as a knight has been traced back to the time of Otto III, when it appears in the liturgy of the Roman churches. But the ceremony was not in general use, outside Italy, before the age of the Crusades. It was Urban II who inspired the knighthood of northern Europe with the belief that they were *Dei militia*, the soldiers of the Church; and it is significant that warfare against the unbeliever ranks prominently among the duties enjoined upon the new-made knight, though it does not stand alone. The defence of the true faith and of the Church is also inculcated; merit might be acquired in persecuting heretics or in fighting for the Pope against an unjust Emperor. Nor are the claims of the widow, the orphan and the defenceless totally forgotten. But the perfect knight of the Church was the Templar, the soldier living under the rule of a religious order and devoting his whole energies to the cause of the Holy Sepulchre. It was a remarkable innovation when St. Bernard, the mirror of orthodox conservatism, undertook to legislate for the Order of the Temple; for the primitive Church had hardly tolerated wars in self-defence. From one point of view it was a wholesome change of attitude in the moral leaders of society, that they should recognise war and a military class as inevitable necessities, that they should undertake to moralise and idealise the commonest of occupations. But the resolve was marred in the execution. In the desire to be practical, the Church set up too low an aim and translated Christianity into precepts which were only suited for one short stage of medieval civilisation, the stage of the Crusades.

In the long run the poet had far more influence than the priest upon the chivalric classes. It is remarkable how uniformly Popes and Councils set their faces against the bloodshed and extravagant futilities of the tournament; still more remarkable that even threats of excommunication could not deter the most orthodox of knights from seeking distinction and distraction in these mimic wars. Equally significant is the growth of the

service des dames which, although invested by troubadours and minnesingers with a halo of religious allegory, was disliked by the Church, not merely from a dread of possible abuses, but as inherently idolatrous. The cult of the Virgin, while doing honour to the new conception of womanhood, was also a protest against a secular romanticism. Here and there a Wolfram von Eschenbach essays the feat of reconciling poetry with religion in the picture of the perfect knight. But the school of *courtoisie* prevailed; the most celebrated of the troubadours are mundane, not to say profane; Walther von der Vogelweide, with his bitter attacks upon the Papacy, is more typical of his class than Wolfram with his allegory of Parsifal and the Sangraal. It was in Provence, on the eve of the Albigensian Crusade, in the society which was most indifferent to official Christianity and most hostile to the clergy, that chivalry was most sedulously preached and developed in the most curious detail. In the hands of the troubadours it became a gospel of pageantry and fanfaron, of artificial sentiments and artificial heroisms, cloaking the materialism, the sensuality and the inordinate ostentation of a theatrical and frivolous society, intoxicated with the pride of life.

V

THE PAPACY BEFORE GREGORY VII

An institution is not necessarily discredited when we discover that it has grown from small beginnings, has been applied under new conditions to new purposes, and in the course of a long history has been defended by arguments which are demonstrably false. The child, no doubt, is father of the man; but the man is something different from, and may well be something better than, his infant self. We must not attach undue importance to the study of origins. On the other hand we cannot afford to neglect them. However slight the fibres by which the present is rooted in the past, to observe them is to realise the continuity of human development—the most important, the most obvious, and the most neglected of the lessons that history can teach. It is true that the roots, however strong and however deeply set, are insufficient to account for the characteristics of the plant which springs from them. But it is also true that neither plants nor institutions can altogether shed the husk of their immaturity. They are not entirely adapted to the conditions under which they reach their full development. The Papacy in the zenith of its power and renown is partly new and partly old. When we consider the papal theory, as it floated before the mind of a Gregory VII or an Innocent III, it produces in us the same impression of symmetry, logical consistency and completeness, which we experience on entering for the first time one of the great medieval churches.

But when once we have grasped the design of the architect, we shall usually find that he has conformed in some respects to unmeaning traditions inherited from an earlier period, and further that his work incorporates the remnants of an older, simpler structure. Here are pillars of massive girth altogether disproportionate to the delicate arches which they carry; there an old tower has been buttressed to make it capable of supporting a new spire. For all the builder's cunning, we can yet distinguish between the new and the renovated. So it is with the papal apologia in the great days of papal policy. A sentence from the laws of ancient Rome dovetails with an axiom stolen from the philosophers of the Porch or the Academy. Fables of Gallic or Egyptian origin are invoked to corroborate the canons of Nicene and Chalcedonian synods. A text from a Hebrew prophet is interpreted by the fancy of an African expositor. The fabric composed of these incongruous elements has in truth a unity of purpose; but the design is so disguised and so perverted by the recalcitrance of the materials, that we are irresistibly impelled to ask how and why they came to be employed.

More than any other human institution the Papacy has suffered from a supposed necessity of justifying every forward step by precedent and reference to authority. Twice in the course of sixteen centuries the Holy See has ventured on a startling change of front, and has been sorely embarrassed to rebut the charge of inconsistency. One such change was silently effected at the close of the seventeenth century, when the Popes ceased to concern themselves more than was unavoidable with international affairs. This was a great change; yet not so great as that made in the latter part of the eleventh century, by Gregory VII. For he revolutionised the whole theory of papal prerogative. Neither a profound lawyer nor a profound theologian, he regarded the past history of his office with the idealism of a poet, and looked into its future with the sanguine radicalism of a Machiavelli or a Hobbes. Gregory VII conceived of Christendom as an undivided state; of a state as a polity dominated by a sovereign; of a sovereign as a ruler who

must be either absolute or useless. And who, he asked, but the heir of the Prince of the Apostles could presume to claim a power so tremendous? For us the audacity of his pretensions is excused by the lofty aims which they were meant to serve. To conciliate contemporary opinion it was necessary that the new claims should be represented as the revival of old rights, as the logical corollaries of undisputed truths. And this course involved as its consequence an industrious, if partially unconscious, perversion of past history. For the Popes who had gone before him claimed powers which, though extensive, were capable of definition; which, though startling, could in the main be defended by appeal to well-established usage. The new policy led to this paradoxical situation, that precedents were diligently invoked to prove the Pope superior to all precedents.

With Gregory VII the primacy of Western Christendom assumed a new character. But the primacy, in one form or another, had for centuries belonged to the Roman See. So much his remote predecessors had achieved, and their success is all the more remarkable when we remember how few of them had been distinguished statesmen. It is no matter for surprise that, in the course of nine troubled centuries, some Bishops of Rome had proved incompetent and others had betrayed the interests committed to their charge. It is, however, surprising that the Roman See was able to assume and hold the leading position among Western bishops without rendering much service to the extension or the organisation of the Church.

Of all the early Popes, save Leo I and Gregory I, it is true that we may be tolerably at home in the history of their times without knowing much about them. No Pope is ranked among the leading Western Fathers. The only considerable theologian who occupied the Holy See, before the year 1000, is Gregory I; and the highest praise which we can give his writings is that they imparted new life to some ideas of St. Augustine. It is as statesmen, not

as thinkers, that the early Popes appeal to our attention. Yet their practical achievements scarcely account for the reverence which they inspired. The one great mission which Rome set on foot was that of Augustine to England. The other evangelists of the Dark Ages found their inspiration elsewhere, in the monasteries of Ireland or of Gaul and Germany. If we consider the progress of theological science, and of ecclesiastical organisation, we find that the great controversies were resolved, and the great legislative assemblies convened, in the Eastern Empire. It was but rarely that Rome asserted her right to speak in the name even of the Western Church; the record of the early Popes who attained to such a momentary pre-eminence was not such as the West could recollect with satisfaction. In fact, it was due to other causes than the merits of individual Popes that Rome became and remained the religious metropolis of Europe.

How, then, are we to account for her triumphant progress? Hobbes suggested one explanation when he called the Papacy "the ghost of the Roman Empire." And it is true that the later Emperors found it convenient to confer special privileges on the bishops of their ancient capital. But they adopted this policy too late, when reverence for the Empire was already declining in the West. By imperial grants the Papacy gained no substantial powers, while individual Popes lost credit and independence by their special connection with the New Rome on the Bosphorus. They were compelled to play an ignominious part in the squabbles of the Eastern Churches, they were loaded with onerous secular duties; they became the emblems and the agents of an alien tyranny, mistrusted alike by the barbarian invaders and the nominal subjects of the Empire.

Other critics have explained the prestige of the Papacy as the fruit of successful impostures. For this hypothesis there is little to be said. One or two Popes, not the greatest, have condescended to use forged title-deeds. But the effect of these frauds has been much exaggerated. The most famous

of them are the *Donation of Constantine* and the *False Decretals*. The former, though probably of Roman origin, was little used at Rome, and only served to justify the modest beginnings of the temporal power. The latter are of more importance, and are sometimes regarded as opening an era of new pretensions. In fact they are little more than reiterations and amplifications of very ancient claims. Though frequently quoted by the canon lawyers, they are not indispensable links in the claim of historical proofs and precedents. They are chiefly significant as attesting the general desire of churchmen to find some warrant for a vigorous exercise of the papal prerogative. A primate with real powers was desired, not only by the clergy of the national churches as a bulwark against the brutal oppression of the State, but also by all religious thinkers as a symbol of corporate unity and a guarantee of doctrinal uniformity.

No theory can be regarded as supplying a satisfactory explanation of papal authority, unless it explains this general belief in the necessity for a visible Head of the Western Church. In part the necessity was political. Exposed to the common danger of secular tyranny, the national churches looked for safety in federation; and they notified their union in the only way that uneducated laymen could understand, by announcing their subjection to a single spiritual sovereign. But there remained the problem of justifying this act of independence amounting to rebellion. The justification was found in two arguments, the one historical, the other doctrinal; the one based upon the Roman legend of St. Peter, the other on the acknowledged importance of holding fast to right tradition. Each of these arguments calls for some consideration.

St. Peter, says the legend, was invested with the primacy among the Apostles; such is the plain meaning of the Saviour's declaration, *Tu es Petrus*. St. Peter founded the Roman Church and instituted the Roman bishopric. To Linus, the first bishop, Peter bequeathed his Divine

commission and his knowledge of the Christian verities. From Linus these gifts descended without diminution to one after another in the unbroken chain of his successors. Hence Rome is entitled to the same pre-eminence among the churches which Peter held among his brethren. To examine the historical basis of the legend would be a lengthy and unprofitable task. Of St. Peter's connection with the Eternal City we know nothing certain, except that he preached and suffered there. If bishops existed in his time, there is some reason for thinking that the office was collegiate, and that the committee of bishops was less important than in the spiritual life of the community than at a later time. Not until the second century did the episcopate become monarchical and the holder of the office the supreme authority within the Church by which he was elected. The change was complete by the time of Irenaeus, who wrote *circa* 180 A.D.; to him we owe our earliest catalogue of Roman bishops, beginning with Linus and ending with Eleutherus, the twelfth from Peter and the contemporary of Irenaeus. The later names in the list are doubtless those of authentic bishops; the earlier may be in some sense historical, the names of famous presbyters or of men who made their mark on the old episcopal committee. A point of secondary interest is that Irenaeus speaks of bishops, not of Popes; this title came into use a hundred years after his time. More important is the fact that, in the third century, when our documents become more copious, Rome is generally recognised as first in dignity among the churches (*ecclesia principalis*), but has no appellate jurisdiction and no legislative powers. It is only admitted that, when disputes arise on points of tradition, her testimony is entitled to special honour, as that of a church which preserves the memory of Peter's teaching. As doctrinal controversies become more acute and more fundamental, the importance of tradition is emphasised, the authority of those who voice it is magnified. Ultimately all the pretensions of the Holy See are founded on the claim that she possesses the only

undefiled tradition. But it was not until long after the third century that the consequences of the claim were realised even by the claimants.

If we were invited, at the present day, to suggest a means of conserving intact a body of doctrinal definitions and disciplinary law, we should not naturally select some mode of oral transmission as the safest available. Yet this expedient has found much favour in the past. Even among the Jews, with their extreme respect for sacred books, the written word was made of none account by the traditions of expositors. The votaries of the Greek mystic cults deliberately avoided writing down their more important formulae. Several considerations were in favour of this curious policy. There were no scientific canons for the interpretation of written texts; allegorising commentators read their own wild fancies into the plainest sentences. The only way of meeting them was to fall back on the traditional interpretation. We use the texts to test the traditions; but criticism in its early stages pursues the opposite course, and as a natural consequence rates tradition above Scripture. Other reasons which discouraged the use of writing were, first, the fear that no literary skill might be equal to the difficulty of accurate statement; secondly, the natural reluctance of the religious mind to let the deepest truths be exposed to the vulgar scoffs and criticism of the uninitiated; thirdly, some remnant of the primitive superstition that the formulae of a ritual are magic spells, which would lose their potency if published to the world; and, finally, the natural instinct of a sacerdotal class to reserve the knowledge of deepest mysteries to a select inner circle. For all these reasons a jealously guarded tradition, commonly designated as the *arcana* or *secreta*, was to be found in all the early Christian Churches. To give a few examples: the Apostles' Creed, the distinctive symbol of the Roman Church, was preserved by oral tradition only down to the fourth century, and was not imparted to any catechumen until the time of his baptism. The minute rules of penitential discipline were first committed to writing by Theodore of Tarsus, Archbishop of

Canterbury, towards the close of the seventh century; and this innovation was sharply criticised by some ecclesiastical synods. Most remarkable of all is the reluctance of the churches to write down the essential, operative parts of the Mass. Written copies are first mentioned in the fourth century, and it was not until a much later period that the diversities of local tradition were corrected by the issue of a standard text. It might be supposed that the non-existence of official copies was due to the want of any device, such as printing, by which they could be cheaply multiplied. But there is a curious fact which suggests that publication was considered undesirable. One section of the Canon of the Mass was called the secret part (*secretum*), and was recited by the celebrant in an undertone, that it might not become known to the congregation. Similarly, all literary exposition of such central doctrines as the Atonement, or the Trinity, was deprecated by early theologians, who pass by them with the remark that they are known to the initiate.

This cult of secrecy engendered difficulties which are written large upon the page of history. Disputes arose about the wording of the creeds, about the canon of the Scriptures, about the number and nature of the mortal sins, and the penances which they should entail. Periodically a curious investigator raised a storm by claiming that he had discovered a flaw in the traditional formulae, or a mistake in the sense which was currently attached to them. The one way of meeting such doubts was to compare the traditions of the older churches. This could be done by a provincial synod or a general council. But of these tribunals the former was unsatisfactory, as its decisions were of merely local validity and might be overruled by the voice of the universal Church. The general council was hard to convene, particularly after a rift had opened between the Eastern and the Western Churches. It was easier to select as the final arbiter a bishop whose knowledge of tradition was derived from an apostolic predecessor. In the East there were three such sees (Antioch, Jerusalem, Alexandria), but in the

West Rome alone satisfied the necessary conditions. And the Bishops of Rome could claim, with some show of reason, that their tradition was derived from a worthier source, and had been better guarded against contagion, than that of any other Apostolic Church. Was it not a well-established fact that Rome had preserved an unwavering front in the face of the heretical Arius, when even Antioch, Jerusalem, and Alexandria had wavered?

Recourse to Rome as the oracle of the faith was so obvious an expedient, given the prevailing attitude towards tradition, that we can only be surprised to find how slow and gradual was the triumph of the Roman claims. The victory of logic was retarded both by the pride and by the common sense of the other Western Churches. On the one hand, the See of Carthage clung to the old ideal of Christendom as a confederation of self-governing churches, which might consult one another as they pleased but recognised no superior except a general council. Carthage carried with her the whole Church of Africa, and furnished an example which less illustrious communities were proud to imitate. The conquest of Africa by the Vandal heretics was necessary before the African Christians would consent to look to Rome as their spiritual metropolis. On the other hand, the rulings of the Roman bishops were justly suspected of being tempered by regard for expediency. Sometimes they relaxed penitential discipline, for fear of driving the weaker brethren to apostasy. Sometimes, under pressure from Constantinople, they proposed an ambiguous compromise with heresy. Such considerations were but gradually overborne by the pressure of circumstances. The spread of Arianism and the irruption of the Teutons (themselves often Arians) at length compelled the churches to take the obvious means of preserving their imperilled uniformity and union.

It is in the acts of the Council of Sardica (343 A.D.) that we find the first explicit recognition of the Pope as an arbiter and (we may almost say) a

judge of appeal. This council was merely a gathering of Western bishops, and the canons which it passed were never accepted by the Church of Africa. So doubtful was their validity that the Popes of the next generation disingenuously asserted that they had been passed at the earlier and more famous Council of Nicaea (325). Yet even at Sardica the Pope was only endowed with one definite prerogative. Henceforward any bishop condemned by a provincial synod might appeal to him; he could then order a second trial to be held, and could send his legates to sit among the judges; but he could not hear the case in his own court. More striking than this decree are the words of the letter which the Council addressed to Pope Julius: "It will be very right and fitting for the priests of the Lord, from every province, to refer to their Head, that is to the See of Peter." This recommendation was readily obeyed by the Churches of Gaul and Spain. Questions from their bishops poured in upon the Popes, who began to give their decisions in the form of open letters, and to claim for these letters the binding force of law. Pope Liberius (352-366 A.D.) appears to have commenced the practice, although the earliest of the extant "Decretals" is from the pen of Pope Siricius (385). Sixty years after Siricius' time, when the Western Empire was in its death-agony, this claim to legislative power was formally confirmed by the Emperor Valentinian III (445). But for some time after the Council of Sardica the new prerogative was used with the greatest caution. The Popes of that period use every precaution to make their oracular answers inoffensive. They assure their correspondents that Rome enjoins no novelties; that she does not presume to decide any point on which tradition is silent; that she is merely executing a mandate which general councils have laid upon her. Those who evince respect for her claims are overwhelmed with compliments. A decretal of Innocent I (402-417) begins as follows:—

"Very dear brother, the Church's rules of life and conduct are well known to a priest of your merit and dignity. But since you have urgently inquired

of us concerning the rule which the Roman Church prescribes, we bow to your desire and herewith send you our rules of discipline, arranged in order."

On the other hand, no opportunity is lost of calling attention to the Roman primacy. Pope Siricius (384-398) writes in one of his letters: "We bear the burdens of all who are oppressed; it is the Apostle Peter who speaks in our person." Through the more confidential and domestic utterances of these Popes there runs a vein of haughty self-assertion. In the homilies of Leo I (440-461) the text *Tu es Petrus* rings like a trumpet note; here we have the Roman ruler communing with his Roman people, the pride of empire taking a new shape amidst the ruins of that secular empire which the pagan Romans of the past had built up.

In the general chaos produced by the barbarian migrations the consequence of the Papacy, as compared with that of other Western sees, was considerably enhanced by various causes: by the ruin of Carthage, the most unsparing of her critics; by the progressive deterioration of the other churches, which was most marked in those provinces where the barbarians were most readily converted; by the rising tide of ignorance, which overwhelmed all rival conceptions of Christendom and blotted out the past history of the Church. So great was this ignorance that Innocent I could claim, without much fear of contradiction, that "no man has founded any church in Italy, Sicily, Gaul, Spain, or Africa, excepting those whom Peter and his successors have ordained as priests." In the Italian peninsula there were three churches—Ravenna, Milan, Aquileia—which obstinately refused to consider themselves mere offshoots from the See of Peter. But the legend struck root and thrived, as successive Popes associated themselves with missions to the unconverted tribes and with reforms in the barbarian churches.

Among the earlier events which contributed to make the Roman belief the standard for all Western Christendom we need only mention the conquests of the orthodox Frankish monarchy; the official conversions from Arianism of the Burgundians (516) and the Visigoths in Spain (586); the extirpation of the Vandals and Ostrogoths by Justinian's generals; the missions of Augustine to England, of Wilfrid, Willibrord, and Boniface to the Germans; the submission of the Frankish Church under the influence of Boniface and Pepin the Short (748). Naturally the moral influence of Rome in the northern lands was augmented by the revival of the Western Empire, which meant the co-operation of Pope and Emperor in the extension of the Christian Republic. Cyril and Methodius, the Apostles of the Slavs, found it necessary to renounce the allegiance of the Greek Church, and to place their converts under the protection of Rome (866). It was from Rome that St. Adalbert went forth on his ill-starred but glorious mission to the Prussians (997); and it was a Pope, Sylvester II, who earned the glory of uniting the Hungarian people to Western Christendom (1000). Finally, Canute the Great, of Denmark and of England, came in the manner of a pilgrim (1027) to lay the homage of his Scandinavian subjects on the altar of St. Peter. The Popes reaped where they had not sown; but the harvest was rich and splendid.

No less important was the political character which the papal office assumed with the revival of the Empire. Already under Gregory the Great we can trace the beginnings of a temporal power. Naturally and necessarily the Pope, already like other bishops a functionary charged with important secular duties, took upon himself the protection and government of Rome and the surrounding duchy, when the rulers of Byzantium shook off these unprofitable responsibilities. Naturally and excusably he claimed, over his vast Italian estates, the powers of jurisdiction which every landowner was assuming as a measure of self-defence against oppression or unbridled anarchy. In the time of Pepin the Short a further step was taken. The Frank,

unwilling to involve himself in Italy yet anxious to secure the Holy See against the Lombards, recognized Pope Stephen II as the lawful heir of the derelict imperial possessions. And Charles the Great, both as King and as Emperor, confirmed the donation of his father. To make the Pope an independent sovereign was indeed a policy which he refused to entertain. His ideal was that of the Eastern Emperors: himself as the head of State and Church, the Pope as the Patriarch of all the churches in the Empire, elected with the Emperor's approval, ruling the clergy with the Emperor's counsel, enjoying over the lands of his see the largest privileges bestowed on any bishop, but still in all secular affairs a subject of the Empire. But on the other hand arose at Rome a different conception of the Pope's prerogative. Long ago Pope Gelasius had formulated the principle, more useful to his remote successors than himself, of the Two Powers, Church and State, both derived from God and both entitled to absolute power in their respective spheres. On this principle the State should not interfere with episcopal elections, or with matters of faith and discipline; it should not exercise jurisdiction over the priesthood who are servants of the Church, or over Church estates since they are held in trust for God and the poor. This view was proclaimed to the world by Leo III, who caused to be set up in the Lateran a mosaic representing in an allegory his relations to the Empire. St. Peter sits enthroned above; Charles and Leo kneel to right and left, in the act of receiving from the Apostle the pallium and the gonfalon, the symbols of their respective offices.

No powerful Emperor ever accepted the Gelasian principle entire. To refute it was, however, difficult, so well did it harmonise with the current conception of the State. Under the later Carolingians it became the programme both of reformers and of mere ecclesiastical politicians. The new monasteries, founded or reorganised under the influence of Cluny, placed themselves beneath the special protection of the Pope, thus escaping from secular burdens. The national hierarchies hailed the forgeries of the

Pseudo-Isidore as the charter of ecclesiastical liberty. Pope Nicholas I took his stand at the head of the new movement, and gave it a remarkable development when he asserted his jurisdiction over the adulterous Lothaire II (863). Nicholas died before he could give further illustrations of his claim to be supreme, even over kings, in matters of morality and faith. From his time to that of Hildebrand there was no Pope vigorous enough to make a similar example. Dragged down by their temporal possessions to the level of municipal seigneurs and party instruments, the Popes from 867 to 962 were, at the best, no more than vigorous Italian princes. To that level they returned after the period of the Saxon Ottos (962-1002). In those forty years there were glimpses of a better future; the German Pope, Gregory V, allied himself to Cluny (996-999); as Sylvester II (999-1003) the versatile Gerbert of Aurillac—at once mathematician, rhetorician, philosopher, and statesman—entered into the romantic dreams of his friend and pupil, Otto III, and formed others on his own behalf which centred round the Papacy rather than the Empire. Sylvester saw in imagination the Holy See at the head of a federation of Christian monarchies. But fate was no kinder to him than to Otto; he outlived his boy patron only by a year.

VI

THE HILDEBRANDINE CHURCH

Modern life has travelled so far beyond medieval Christianity that it is only with an effort we retrace our steps to the intellectual position of a St. Bernard, a St. Francis, or the *Imitatio Christi*. Apart from the difficulties of an unfamiliar terminology, we have become estranged from ideas which then were commonplaces; beliefs once held to be self-evident and cardinal now hover on the outer verge of speculative thought, as bare possibilities, as unproved and unprovable guesses at truth. Our own creeds, it may be, rest upon no sounder bottom of logical demonstration. But they have been framed to answer doubts, and to account for facts, which medieval theories ignored; and in framing them we have been constrained partly to revise, partly to destroy, the medieval conceptions of God and the Universe, of man and the moral law.

This is not the place for a critique of medieval religion. But, unless we bear in mind some essential features of the Catholic system of thought, we miss the key to that ecclesiastical statesmanship which dominates the twelfth and thirteenth centuries. The programme of the great Popes, from Gregory VII to Boniface VIII, must appear a tissue of absurdities, of preposterous ambitions and indefensible actions, unless it is studied in

relation to a theology as far remote from primitive Christianity as from the cults and philosophies of classical antiquity.

The first article in this theology is the existence of a personal God who, though all-pervading and all-powerful, does not reveal Himself immediately to the human beings whom He has created to be His worshippers, and does not so order the world that events shall always express His will and purpose. He has endowed man with a sinful nature, and has permitted His universe to be invaded by evil intelligences of superhuman power and malignancy, who tempt man to destruction and are bent upon subverting the Divine order of which they form a part. He is supremely benevolent, and yet He only manifests the full measure of this quality when His help is invoked by prayer; His goodwill often finds expression in miracles—that is, in the suspending or reversing of the general laws which He has Himself laid down for the regulation of the universe and human destinies. He is inscrutable and incomprehensible; yet to be deceived as to the nature of His being is the greatest of all sins against His majesty. The goal of the religious life is personal communion with Him, the intuitive apprehension and spontaneous acceptance of His will, the Beatific Vision of His excellencies. But this state of blessedness cannot be reached by mere self-discipline; the prayers, the meditations, the good works of the isolated and uninstructed individual, can only serve to condone a state of irremediable ignorance. The avenue to knowledge of Him lies through faith; and faith means the unquestioning acceptance of the twofold revelation of Himself which He has given in the Scriptures and in the tradition of the Church. The two revelations are in effect reduced to one by the statement that only the Church is competent to give an authoritative exposition of the sacred writings. Upon the Church hangs the welfare of the individual and the world. Without participation in her sacraments the individual would be eternally cut off from God; without her prayers the tide of evil forces would

no longer be held in check by recurring acts of miraculous intervention, but would rise irresistibly and submerge the human race.

A society charged with these tremendous duties, the only organ of the Divine will and affording the only assurance of salvation, must obviously be superior to all mundane powers. It would be monstrous if her teaching were modified, if her powers of self-government were restricted, to suit the ambitions or the so-called common sense of a lay ruler. The Church stands to the State in the relation of the head to the members, of the soul to the body, of the sun to the moon. The State exists to provide the material foundations of the Christian society, to protect the Church, to extend her sphere and to constrain those who rebel against her law. In a sense the State is ordained by God, but only in the sense of being a necessary condition for the existence of a Christian Commonwealth. Logically the State should be the servant of the Church, acting with delegated powers under her direction.

But theories, however logical, must come to terms with facts, or vanish into the limbo of chimeras. The power of the Hildebrandine Church was subject to serious limitations. On certain questions of importance the national hierarchies were inclined to side with the State against the Pope; and thus, for example, the claims of the Curia to tax the clergy, and to override the rights of ecclesiastical patrons, were restricted at one time or another by concordats, or by secular legislation such as the English statutes of Provisors and Praemunire. Where the whole of the clerical order presented a solid front, it was sometimes possible to make good a claim against which there was much to be said on grounds of common sense; as, for instance, benefit of clergy,—the exclusive jurisdiction of the Church over criminous ecclesiastics,—which was enforced even against a sovereign so powerful and so astute as Henry II of England. But, in the last resort, the pretensions of the Church depended for success upon a public opinion which was hard to move. Not because the average layman was critical or

anti-clerical, but because he was illogical and unimaginative, he remained cold to any programme of reform which could only be justified by long trains of deductive reasoning; his natural impulse was against violent innovations, and he felt rather than argued that the State, as the ultimate guarantee of social order, must be maintained even at some cost of theological consistency. Until he could be convinced that high moral issues and his own salvation were at stake, it was useless or dangerous to excommunicate his king and to lay his country under interdict. For want of lay support the Church failed to make good such important claims as those of immunity from national taxation and of jurisdiction in cases of commercial contract. More striking still, she was prevented from establishing the Inquisition in states where that tribunal would have found no lack of work.

Still, in spite of clerical divisions and lay conservatism, "the freedom of the Church" was an ideal which commanded universal homage; and it was necessary for the most obstinate opponent of ecclesiastical privilege to make it clear that his policy involved no real attack upon this freedom. Otherwise, defeat was certain. Thrice in two hundred years the cry for freedom was raised against the Holy Roman Empire; and three prolonged conflicts ended in the discomfiture of the most resolute and resourceful statesmen who ever held that office-Henry IV (1056-1105), Henry V (1106-1125), Frederic Barbarossa (1152-1190), and Frederic II (1212-1250). In the first of these great conflicts the question at issue was the reformation of the national clergy and their emancipation from secular authority. Henry IV paid for his assertion of prerogative and custom, both by the ignominious though illusory surrender at Canossa (1077), and by the unparalleled humiliations of his latter days, when he was compelled, as the prisoner of his own son, not only to abdicate but also to sign a confession of infamous offences against religion and morality. Henry V, reviving the plans of the father whom he had betrayed and entrapped, was reduced through very

weariness to conclude the Concordat of worms (1122)—a renunciation which only ended in something less than absolute defeat for the Empire, because the imperial concessions were interpreted with more regard to the letter than the spirit. In the second struggle the immediate issue was the freedom of papal elections, the ultimate question whether Pope or Emperor should shape the Church's policy; and Frederic Barbarossa was compelled, after a schism of seventeen years' duration to surrender claims which dated from the time of Charles the Great, and to make peace with Alexander III, whom he had sworn that he would never recognise (Treaty of Anagni, 1176). Henry VI, the son of Barbarossa, when he joined the kingdom of Sicily to the Empire through his marriage with Constance, the heiress of the Norman throne, sowed the seed of a new conflict, and bequeathed to Frederic II the perilous ideal of an Italy united under a Hohenstauffen despotism. Ecclesiastical freedom now became a euphemism for the preservation of the temporal power, and for the project of a federal Italy, owing allegiance to a papal suzerain. Frederic II, who came nearer to success in a more far-reaching policy than any of his predecessors, was worn out by the steady alternation of successes with reverses, and left his sons and grandson to reap the bitter harvest of a failure which he had barely realised.

The moral issue dwindles to smaller proportions in each successive stage of this titanic duel between the titular representatives of State and Church; and from first to last the Papacy depended largely upon allies who were pursuing their own objects in the Church's name. The German princes, the Normans of Lower Italy and Sicily, the Lombard communes, all contributed in varying degrees to the defeat of the Henries and the Frederics. The German princes brought Henry IV to his knees at two critical moments in the reign; the majority of them held obstinately aloof from the Italian wars of Barbarossa; and Frederic II, who endeavoured to buy their neutrality by extravagant concessions, found himself confronted by German rebels and

pretenders towards the close of his career (1246-1250), when the Italian situation appeared to be changing in his favour. The Normans intervened more than once in the Wars of Investitures to shelter a fugitive Pope or rescue Rome from German armies; the Lombards, as we shall relate elsewhere, were the chief barrier between Rome and Frederic Barbarossa, between Frederic II and Germany. Charles of Anjou was the latest and most efficient champion of the papal cause; and he lives in history as the forerunner of the conscienceless and shameless statesmanship of the Renaissance epoch. And yet, when we have allowed for the utility of these alliances, the question remains why radical communes, rebellious feudatories, and adventurers in search of kingdoms, found it worth their while to enlist in the service of the Church, and to endure the restrictions which such a service inevitably entailed. The true strength of the Church lay in her moral influence. It was a handful, even among the clergy, who devoted themselves heart and soul to the ideal of society which she set up. Still her ideal was in possession of the field; it might be subjected to a negative and sceptical criticism by an isolated philosopher, by a heretical sect, or by an orthodox layman smarting under priestly arrogance; but when the forces of the Church were mobilised, the indifferent majority stood aside and shrugged their shoulders. The way of Rome might not be the way of Christ; but if the Apostolic misinterpreted the lessons of Scripture and tradition, from whom could a better rule of life be learned? An erring Church was better than no Church at all. In the thirteenth century, when papal extortions were a subject of complaint in every European state, Frederic II put himself forward as the champion of the common interest, and appealed from the Pope to the bar of public opinion. It was his turn today, he said with perfect truth; the turn of kings and princes would come when the Emperor was overthrown. His eloquence made some impression; but his fellow-sovereigns could not or would not prevent the Pope from taxing their clergy and recruiting their subjects for the Holy War against the

secular chief of Christendom, the head and front of whose offending was that he opposed the interests of the State to the so-called rights of the Church.

It is no mere accident that the heyday of sacerdotal pretensions coincided with the golden age of the religious orders; that the Hildebrandine policy took shape when the Cluniac movement was overflowing the borders of France into all the adjacent countries; that Alexander III was a younger contemporary of St. Bernard, and that the death-grapple between Empire and Papacy followed hard upon the foundation of the mendicant fraternities by St. Francis and St. Dominic. The monks and the friars were the militia of the Church. Not that the medieval orders devoted themselves to a political propaganda with the zeal and system of the Jesuits in the sixteenth century. The services which the Cluniacs and the Cistercians, the Dominicans and the Franciscans, rendered to the militant Papacy were more impalpable and indirect. From time to time, it is true, they were entrusted with important missions—to raise money, to preach a crusade, to influence monarchs, to convert or to persecute the heretic; St. Bernard, the founder of Clairvaux and the incarnation of the monastic spirit, was for twenty years (1133-1153) the oracle to whom Pope after Pope resorted for direction. But even in St. Bernard's time, and even when the reigning Pope was his nominee or pupil, there was a certain divergence between the theories for which he stood and the actual policy of the Curia. It was, for example, against his better judgment that he organised the Second Crusade in deference to the express commands of Pope Eugenius III; and on the other hand, the Papacy preserved towards the pioneers of scholasticism an attitude which he thought unduly lenient. Rome was more broad-minded than Clairvaux, more alive to realities, more versed in statecraft and diplomacy; while Clairvaux fostered a nobler conception of the spiritual life, and was more consistent in withholding the Church from secular entanglements. The qualities which made the monk invaluable as a leader of public opinion also

made him an incalculable and intractable factor in political combinations. He was most useful as the missionary and the embodiment of an ecclesiastical idea which, unconsciously perhaps but none the less emphatically, attacked the foundations of the secular State. The founders of the great orders, whether they found their inspiration (with St. Bernard) in the Rule of Benedict, or rather strove (with St. Francis) to follow literally the commission imposed by Christ upon his twelve Apostles, returned upon a past in which the State and Caesar were nothing to the Christian but "the powers that be." The monastic or mendicant order, designed as an exemplar of the Christian society, was a voluntary association governed by the common conscience, as expressed in the will of representative chapters and an elected superior. The absolute obedience of the monk or friar was self-imposed, the consequence of a vow only accepted from one who had felt the inner call and had tested it in a severe probation. In virtue of his self-surrender he became dead to the world, a citizen of the kingdom of heaven upon earth. No secular duties could be lawfully demanded of him; he had migrated from the jurisdiction of the State to that of God. The religious orders claimed the right to be free from all subjection save that of the Church, as represented by the Pope. Though far from holding the State a superfluous invention—they regarded it as a Divine instrument to curb the lawless passions of the laity—they demanded that all other ministers of God, from the archbishop to the humblest clerk in orders, should enjoy the same exemption as themselves on condition of accepting the same threefold obligation—Poverty, Obedience, Chastity. It was consequently in the religious orders that the chief movements for reforming the medieval clergy found their warmest partisans; and the same school supplied the theoretical basis for each new claim of privilege. The Orders were the salt of the Church, so long as they preserved the spirit of their founders. But they were also responsible for the insanely logical pretensions which characterise the Church's policy in the thirteenth and fourteenth centuries; and it was with

reason that Wycliffe, the greatest medieval critic of the sacerdotal theory, attacked the Mendicant Orders as typifying all that was worst in the hierarchy of his age.

Naturally enough the monastic spirit has been often treated as an absolute antithesis to the lay statesmanship which it so bitterly opposed. But in fact they sprang from the same root of a discontent, which was wholly reasonable, with the anarchical conditions of the early Middle Ages. The religious reformer, stunned and bewildered by the wrong-doing of men and the manifest inequity of fortune, argued that a world so irredeemably bad must be regarded as an ordeal for the faith of the believer. Man was afflicted in this life that he might realise the supreme value of the life to come. He was surrounded by evil that he might learn to hate it. He was placed in society that he might school himself to control the immoral and non-moral instincts which society calls into play. The political reformers, at least in their more disinterested moods, were animated by the same belief in an all-wise Providence, but drew different deductions from it. The God who created man as a social being could not have intended that society should remain perpetually unjust. He must have intended that it should approximate, however imperfectly, to the idea of justice which He has revealed. The State is a divine institution, and therefore man must do his best to reform the State. The lay ruler, as the representative of justice, is God's steward and even in a sense His priest. Frederic II, whom his contemporaries denounced as an apostate and blasphemer, only expressed in a particularly daring form the tradition of medieval royalty when he styled himself, or allowed his flatterers to style him, the Corner-Stone of the Church, the Vicar of God, the New Messiah.

Similarly, the heretics and rationalists, whose criticism was even more dangerous to the Church than the open violence of the State, had more in common with their opponents than we should infer from the duration and

the character of the disputes which they provoked. In the background of medieval history, and developing *pari passu* with the feud of Papacy and Empire, there was a war, of arguments and persecution, against free thought, in which the religious Orders figured as the protagonists of orthodoxy. Berengar of Tours, who challenged the doctrine of transubstantiation and so endangered the basis of the sacerdotal theory, lived in the age when a regenerated Papacy was arming for the war on secularism; it was Hildebrand himself who pronounced the final sentence on the first of the heresiarchs. The age of Henry V and of the Concordat of Worms saw the rise of a medieval Puritanism in Languedoc and Flanders. Between the Concordat of Worms and the schism of Frederic Barbarossa lies the age of Abelard,—the metaphysical free-lance who made philosophy the talk of the street-corner and the marketplace,—and of Arnold of Brescia, who demanded that the Church should be reduced to apostolic poverty. To the youthful days of Frederic II belong the Albigensian Crusade, the futile campaign of authority against Averroes and Aristotle, the heresy-hunts of volunteer inquisitors in Italy and Germany. While the same Emperor was trying conclusions with Innocent IV, the Papal Inquisition became a permanent branch of the ecclesiastical executive; and the Mendicant Orders, who supplied the inquisitors, simultaneously took upon themselves the harder task of converting the universities from the cult of Aristotle to a belief in the Christian scholasticism formulated by Albertus Magnus and Aquinas. The weapons of this interminable and many-sided controversy were as rude as the age which forged them: on the one side, coarse invective and irreverent paradox; on the other, scandalous imputations, spiritual censures, the sword, the prison, and the stake. For the medieval attitude towards heterodoxy was unflinching and uncompromising. To remain sceptical when the Church had defined was as the sin of witchcraft or idolatry. The existence of the rebel was an insult to the Most High, a menace to the salvation of the simple; he was a diseased limb of the body

politic, calling for sharp surgery. And yet these nonconformists were anything but unbelievers. The free-thinkers of the schools, apart from a few obscure eccentrics, only desired to find a rational basis for the common creed or to eliminate from it certain articles which, on moral grounds and grounds of history, they stigmatised as mere interpolations. The offence of Berengar was that he attacked a dogma which had been an open question within the last two hundred years; of Abelard, that he offered his own theories on some points in regard to which the orthodox tradition was mute or inconsistent. As for the sectaries, their offence usually consisted in exaggerating one or other of three doctrines which the Church acknowledged in a more moderate shape. Either, like the Poor Men of Lyons, they desired that the Church should return to primitive simplicity; or, like the Albigensis, they harped upon the Pauline antithesis between the spirit and the flesh, pushed to extremes the monastic contempt for earthly ties, and exalted the Christian Devil to the rank of an evil deity, supreme in the material universe. Or, finally, with Joachim of Corazzo and the Fraticelli, they developed the cardinal idea of the more orthodox mystics, the belief in the inner light, and taught that the letter killeth but the spirit giveth life. In short, all were guilty, not of repudiating Christianity, but of interpreting the Christian doctrine in a sense forbidden by authority. Beneath all differences there was unity; behind the controversy, agreement. There are no feuds more bitter, no recriminations more unjust, than those of men who look at the same faith from different sides.

In justice to the official Church it must be remembered that, whether she had to deal with kings or heretics, the peculiar nature of her power forced her to work through instruments which she was powerless to keep in hand, and in which she had placed her confidence with the temerity of desperation. There can be no greater contrast than that between the Hildebrandine programme and the measures by which it was incompletely realised. To enforce the celibacy of the clergy the mobs of Milan and the

South-German cities were commissioned to rabble married priests. To make an end of simony the German princes were encouraged in a policy of provincial separatism, a premium was placed on perjured accusations, and a son was suborned to betray his father. That the tide of the Albigensian heresy might be stemmed, Innocent III launched against the brilliant civilisation of Languedoc the brutal and avaricious feudalism of the North. Sometimes the error was recognised after it had been committed. But no experience could cure the official Church of the delusion that every volunteer must be credited with the purest motives until the contrary is proved. The same ignorance of human nature characterised her methods of administrative routine. Even if, for the sake of argument, we admit the truth of the principles which were alleged to justify the Papal Inquisition, or the censorship of the bishops' courts, or the appellate jurisdiction of the Curia, the fact remains that these institutions were so organised and so conducted that the most flagrant abuses were only to be expected. A system which, if staffed with saints, would have been barely tolerable, became iniquitous when it was committed to the charge of petty officials, ill-paid, ill-supervised, and ill-selected. To a great extent the crimes and follies of the medieval Church were those of a complex bureaucracy in a half-civilised state. Such a system fails through being too ambitious; the founders have neither the technical experience requisite for a satisfactory arrangement of details, nor the subordinates who can repair the defects of the machine by the efficiency and honesty with which they tend it; and yet because the aim is grandiose, because the supporters of the scheme proclaim their readiness and their capacity to regenerate the State and human nature, they are hailed as the prophets of a new order; they are allowed to plead the excellence of their motives in extenuation of all and any means; and they end by creating new evils without appreciably diminishing the old.

But if the Church as a scheme of government was a doubtful blessing to those who gave her their allegiance, the Church as a home of spiritual life

was invested with a grandeur and a charm which were and are apparent, even to spectators standing at the outer verge of her domain. We may compare the religion of the Middle Ages to an alpine range, on the lower slopes of which the explorer finds himself entangled in the mire and undergrowth of pathless thickets, oppressed by a still and stifling atmosphere, shut off from any view of the sky above or the pleasant plains beneath. Ascending through this sheltered and ignoble wilderness, he comes to free and windswept pastures, to the white solitude of virgin snowfields, to brooding glens and soaring peaks robed in the light or darkness of a mystery which he is as little able to define as to resist. Far below him, illimitably vast and yet infinitely little, extends the prospect of the lower levels which, whether beautiful or sordid, are too remote to seem a part of the new world in which he finds himself, and strike his senses only as a foil and a background to the severer hues, the more majestic lines and contours of the snow-capped mountain-ranges. On such heights of moral exaltation the medieval mystics built their tabernacles and sang their *Benedicite*, calling all nature to bear witness with them that God in His heaven was very near, and all well with a universe which existed only to fulfil His word. It was a noble optimism; and those who embraced it are the truest poets of the Middle Ages, none the less poets because they expressed their high imaginings in life instead of language. Philosophers they neither were nor sought to be; the temperament which feels the mystery of things most keenly is not that which probes into the how and why; but the world of their dreams was at least superior to ours in being founded upon an ever-present and overwhelming reverence for the truth behind the veil. The vision of the mountain-peaks, however clouded, was worth the toil of the ascent; and there was reason in the docility with which the vulgar bowed themselves before the forms and ceremonies and rules of outward conduct which the visible Church prescribed; since they believed that so they might find the way, in this life or a better, to that higher rule of service, exemplified in the

finest characters of their experience, which as Scripture said and the saints testified was perfect life and freedom. It is no wonder that they were disposed to go further still; to stake their earthly fortunes and the future of society on the bidding of those among the elect who from time to time descended among them, like Moses from the mountain, with transfigured faces and the message of a new revelation. And if the result was sometimes calamitous or pitiable, there were compensating gains; a matter-of-fact prosperity is not altogether preferable to enlistment in the forlorn hope of idealism. Had medieval society been more consistently secular and sceptical, it might have been more prosperous, more stable, the nursery of more balanced natures and the theatre of more orderly careers. But there would have been the less to learn from the ethical and political conceptions of the age. What appeals to us in the medieval outlook upon life is, first, the idea of mankind as a brotherhood transcending racial and political divisions, united in a common quest for truth, filled with the spirit of mutual charity and mutual helpfulness, and endowed with a higher will and wisdom than that of the individuals who belong to it; secondly, a profound belief in the superiority of right over might, of spirit over matter, of the eternal interests of humanity over the ambitions and the passions of the passing hour. Without Christianity these articles of faith could scarcely have passed into the common heritage of men; and, without the Church, it is in the last degree improbable that Christianity would have survived that age of semi-barbarism in which the foundations of the modern world were laid.

VII

THE MEDIEVAL STATE

Between the years 1100 and 1500 A.D. the state-system of Europe passed through changes amounting in their sum-total to a revolution. But the changes which endured, whether they affected political boundaries or constitutions, came about by slow instalments. At no stage of the development was there any general cataclysm such as had followed the dissolution of the Frankish Empire, and was to follow the advent of Napoleon. New ideas matured slowly in the medieval mind; by the twelfth century the forces making for social stability had grown until they balanced those of disruption; and it was only in the age of the Renaissance that the equilibrium was again destroyed. In the interim the vested interests of property and privilege, of religious and secular authority, presented a firm front to the anarchists and radicals. The Jacquerie in France and Wat Tyler's followers in England, the Albigeois of Languedoc and the Hussites of Bohemia, were overwhelmed by armies of conservatives spontaneously banded together in defence of the established order;—while this spirit prevailed among the ruling classes, there was little fear that a revolution of any kind would be effected by a sudden stroke. As in domestic politics, so too in international relations, these solidly established states were habitually inert, strong in defence, but irresolute and sluggish in attack. The age produced no conqueror to sweep through Europe like a whirlwind, because

the implements of conquest on the grand scale had either been destroyed or had not yet come into existence. The peoples of Europe had emerged from the nomadic stage of culture, and they were not yet organised as so many armed camps. The feudal host was hard to mobilise, harder still to keep in the field, and at the best an unmanageable weapon; a standing army of mercenary soldiers would have called for taxation heavier and more regular than any ruler dared to demand, or any people could afford to pay. The wars of the Middle Ages have therefore, with few exceptions, a stamp of futility and pettiness. Ambitious enterprises were foredoomed to failure, and powers apparently annihilated by an invading host recovered strength as soon as it had rolled away. In short, on the European and on the national stage alike, medieval politics meant the eternal recurrence of the same problems and disputes, the eternal repetition of the same palliatives and the same plan of campaign. It is true that political science made more progress than the art of war. But substantial reforms of institutions were effected only in a few exceptional communities—in Sicily under the Normans and Frederic II, in England under Henry II and Edward I, in France under Philip Augustus and his successors. Even in these cases the progress usually consists in elaborating some primitive expedient, in developing some accepted principal to the logical conclusion. The more audacious innovators, a Montfort, an Artevelde, a Frederic II, were tripped up and overthrown as soon as they stepped beyond the circle of conventional ideas. It will therefore suffice for our present purpose to state in the barest outline the leading events of international politics, and the chief advances in the theory of government, which signalised the Middle Ages.

Extensive diplomatic combinations, though continually planned, seldom came to the birth and very rarely led to any notable result. The existence of some common interests was recognised; no power viewed with indifference any movement threatening the existence of the Papacy, which represented religious unity, or of the crusading principalities which formed the outer

bulwark of Western Christendom; the principle of the Balance of Power, though not yet crystallised into a dogma, was so far understood that the inordinate growth of any single power alarmed the rest, even though they stood in no imminent danger of absorption. Therefore whenever the Empire gained the upper hand over the Church, whenever a new horde of Asiatics appeared on the horizon, whenever France seemed about to become a province of England, or Italy a province of France, the alarm was sounded by the publicists, and there ensued a general interchange of views between the monarchies; treaty was piled on treaty, alliance parried with alliance, as industriously as at any time in modern history. But the peoples seldom moved, and the agitation of the ruling classes effervesced in words. It is altogether exceptional to find two of the greater states uniting for the humiliation of a third, as England and the Empire united against Philip Augustus of France. Few medieval battles were so far-reaching in their consequences as Bouvines (1214), to which England owes her Magna Carta, Germany the magnificent and stormy autumn of the Hohenstauffen dynasty, France the consolidation of her long-divided provinces under an absolutist monarchy.

At ordinary times there were in medieval Europe two groups of states with separate interests and types of polity. They were divided from one another by a broad belt of debatable territory, extending from Holland to the coast of Provence—the northern lands of the Carolingian Middle Kingdom.

To the west lay the monarchies of the Iberian peninsula, of France, England, and Scotland; connected by their interest in the trade of the Atlantic seaboard, by a common civilisation in which the best elements were of French origin, but most of all by their preoccupation with the political questions arising out of England's claim to a good half of the territory of France. The rivalry of these two great powers, which dated in a rudimentary form from the Norman Conquest of England, became acute

when Henry II, heir in his mother's right to England and Normandy, in that of his father to Anjou and Touraine, married Eleanor the duchess of Aquitaine and the divorced wife of Louis VII (1152). Developing from one stage to another, it alternately made and unmade the fortunes of either nation for four hundred years, until Charles VII of France brought his wars of reconquest to a triumphant conclusion by crushing, in Guyenne, the last remnants of the English garrison and of the party which clung to the English allegiance (1453). In the interval there had been sharp vicissitudes of failure and success: the expulsion of the English by Philip Augustus from Normandy, Maine, Anjou, Touraine, and Poitou; the capture of Calais and recovery of Aquitaine by Edward III and the Black Prince; the almost complete undoing of their work by Charles V and Bertrand Duguesclin; the union of the French and English crowns (1420), resulting from the victories of Henry V and the murderous feud of the Burgundian and Armagnac factions; the apparition of Jeanne d'Arc as the prophetess of French nationalism, and the regeneration of the French monarchy by a new race of scientific statesmen. All the West had been shaken by this secular duel. For Scotland it spelled independence, for Navarre the loss of independence; in Castile it set on the throne the new dynasty of Trastamare; to Aragon the result was the appearance of a new rival in Mediterranean commerce, the frustration of hopes which had centred round Provence and Languedoc, the imperilling of others which were fixed on Italy. With each successive triumph of French over English arms, the influence of France penetrated farther to the south and east; and by the marriages or military successes of princes of the French blood-royal, new territories were joined to the sphere of the western nations. Under St. Louis the counties of Toulouse and Provence became French appanages; his brother, Charles of Anjou, added to Provence the derelict kingdom of Naples; and Sicily only escaped from the rule of the Angevins by submission to the House of Aragon. After the victories of Charles V the Valois dukes of Burgundy, supported by the

influence now of France and now of England, sketched the outlines of a new Middle Kingdom, stretching from the Jura to the Zuyder Zee, and chiefly composed of lands which had hitherto been attached to the Empire.

[Illustration: France]

The eastern group of nations is widely different in character. It includes a greater number of states, even if we omit from the reckoning the great German principalities which were, by the end of the Middle Ages, all but sovereign powers; and it is less homogeneous in culture. The Empire forms the centre of the group, and round the Empire the minor states are grouped like satellites: on the west, Savoy and Provence; south of the Alps, Venice, the Papal States, and the Kingdom of Sicily— the last-named independent until 1194, and the private property of the Hohenstauffen from that date till 1268; on the east the kingdoms of Hungary and Bohemia and Poland, and the Russian principalities; on the north the three Scandinavian powers. Large as it is, this group only includes one state of the first rank; for the Norman kingdom, though a masterpiece of constructive statesmanship, was important in European politics rather as a second and a makeweight than as a principal, and would have been more admired than feared but for the accidents which made the Norman alliance so valuable to the Holy See. When Naples and Sicily were held by German Emperors, the Empire towered like a colossus above the states of Scandinavia, the Slav and the Magyar. But even without this support, the Empire might have continued to dominate two-thirds of Europe, if the imperial resources had not been swallowed up by the wars of Italy, and if the Emperors who came after the interregnum had given the national interest priority over those of their own families. In fact, however, the mischief of the Mezentian union between Italy and Germany survived their separation; as in western so in central Europe, the course of political development was largely determined by the persistent and disastrous efforts of a Teutonic to absorb a Latin nationality.

But whereas the English attacks on France were directly responsible for the growth of a French national state, the failure of Germany left Italy but half emancipated from the foreigner, and more disintegrated than she had been at any period in the past. And whereas England, by her failure, was reduced for a while to a secondary rank among the nations, the purely German Empire of the fifteenth century was still the leading power east of the Rhine. This was partly the result of calamities to neighbouring nations which could neither be foreseen or obviated. While Western Europe was shielded, in the later Middle Ages, from the inroads of alien races, Eastern Europe felt the impact of the last migratory movements emanating from Central Asia and the Moslem lands. In the thirteenth century the advance guards of the Mongol Empire destroyed the medieval kingdom of Poland, and reduced the Russian princes to dependence upon the rulers of the Golden Horde. In the fifteenth, the advance of the Turks along the Danube completed the ruin of the Magyar state, already weakened by the feuds of aristocratic factions. But, apart from these favourable circumstances, the resources of Germany were irresistible when they could be concentrated. Twice after the Great Interregnum the integrity of the Empire was threatened by the Bohemian kingdom. On the first occasion, when Ottocar II had extended his power into the German lands between Bohemia and the Adriatic, he was overthrown by Rudolf of Hapsburg at the battle of the Marchfeld (1278); and a new Hapsburg principality was formed out of the reconquered lands to guard the south-east frontier against future incursions of Czech or Magyar. On the second, when the Hussite levies carried their devastations and their propaganda into all the neighbouring provinces of the Empire (1424-1434), crusade after crusade was launched against Bohemia until the heretics, uniformly victorious in the field, were worn out by the strain of their exertions against superior numbers, and all the more moderate spirits recognised that such triumphs must end in the ruin and depopulation of Bohemia. The case was the same in the Baltic, where the

struggle with Danish ambitions was left to the princes and the free towns. Waldemar II (1202-1241), who had planned to revive the Scandinavian Empire of the great Canute, the conqueror of England, saw his ambitious edifice crumble to pieces while it was still in the making; even the Union of Kalmar (1397), by which the crowns of Norway and Sweden and Denmark were vested in a single dynasty, could not save the rich prize of the Baltic trade from falling into German hands. Germany, even when ill-governed and a prey to the ambitions of provincial dynasties, was still *grande chose et terrible*, as more than one political adventurer learned to his cost. The energy, the intelligence and the national spirit of a great people made good all the errors of statesmen and all the defects of institutions.

[Illustration: Holy Roman Empire under Frederick Barbarossa]

Late in the fifteenth century the Germans were mortified to discover that, although a nation, they had not become a state. They found that the centre of political power had shifted westward, that the destinies of Europe were now controlled by the French, the English and the Spaniards. These nations had perfected a new form of autocracy, more vigorous, more workmanlike in structure, than any medieval form of government. Germany in the meanwhile had clung to all that was worst and feeblest in the old order; her monarchy, and the institutions connected with it, had been reduced to impotence. The same process of decay had operated in the minor states of the eastern group. In Scandinavia, in Hungary, in the Slavonic lands, the tree of royal power was enveloped and strangled by the undergrowth of a bastard feudalism, by the territorial power of aristocracies which, under cover of administrative titles, converted whole provinces into family estates and claimed over their tenants the divine right of unlimited and irresponsible sovereignty. To investigate all the reasons for the political backwardness of these eastern peoples would carry us far afield. But one reason lies on the surface. Outside the free towns they had produced no

middle class; and their towns were neither numerous nor wealthy enough to be important in national politics. They were not even represented in the national assemblies. In consequence the sovereigns of these states were obliged to govern by the help of aristocratic factions; to purchase recognition by the grant of larger and larger privileges; and for the sake of power to strip themselves of the resources which alone could give their power any meaning. But good government in the Middle Ages was only another name for a public-spirited and powerful monarchy. Such monarchies existed in the western states; they rested upon the shoulders of a middle class of small landowners and wealthy merchants, too weak to defend themselves in a state of nature, a war of all against all, but collectively strong enough to overawe the forces of anarchy.

It may seem strange that this class, which desired strong government for purely practical and material reasons, should uniformly have accepted hereditary kingship as the one form of government practicable in a large community. Even where there was the warrant of tradition for recourse to free election, the better governed states preferred that the supreme power should pass automatically from father to son. The explanation is to be found in the motives which prompted the Athenians, under widely different circumstances, to choose their magistrates by lot. The grand danger, to be avoided at all costs, was that a disputed succession would leave the daily work of government in abeyance and open the door for destructive party-conflicts. If continuity and stability of government were assured, all would go well. The work of a ruler was not supposed to demand exceptional abilities; he existed to do justice, to secure every man in the possession of his own, to apply the law without respect of persons. For these purposes a high sense of duty was the main requisite. The wisest heads of the community would be at the king's service for the asking; he could hardly go wrong if he heard attentively and weighed impartially the counsel which they had to offer. Admitting that he would be all the more efficient for

possessing some practical capacity, some experience of great affairs, was it not probable that a man of average intelligence, who had been trained from his youth to fill the kingly office, would acquit himself better than some self-made adventurer of genius, who had paid more attention to the arts of winning place and popularity than to the work that would be thrown upon him when he reached the goal of his ambition? When we further recollect that hereditary kingship was sanctioned by use and wont, was the most intelligible symbol of national unity, and possessed as of right all the prerogatives which were necessary for effective government, it is no wonder that even those to whom doctrines of popular sovereignty and a social contract were perfectly familiar acquiesced contentedly in a form of government which the modern world regards as unreasonable and essentially precarious.

But a monarchy, however energetic, however public-spirited, was powerless until based on the firm foundations of an organised executive, an expert judicature, and an assembly representative in fact if not in form. No medieval state was so uniformly fortunate as Germany in finding kings of exceptional character and talent. Yet Germany, from the beginning to the end of the Middle Ages, was badly governed. This was not due solely to the circumstance that the German monarchy was in principle elective. It is true that the German crown was often purchased by ill-advised concessions; but a greater source of weakness was the inability of the Emperors to make the most of the prerogatives which they retained, and which the nation desired that they should exercise. Imperial justice was dilatory and inefficient because the imperial law court followed the Emperor; because the professional was liable to be overruled by the feudal element among the judges; because the rules of procedure were uncertain and the decisions based not upon a scientific jurisprudence but on provincial custom. The Diet of the Empire was weak, both in deliberation and as a legislature; because the towns and the lesser nobility had no respect for resolutions in

framing which they had not been consulted. The executive was necessarily inefficient or unpopular; because the highest offices were claimed as a right by princes who, if laymen, owed their rank to the accident of birth or, if ecclesiastics, could only be good servants of the State by becoming unworthy servants of the Church. The Emperor who confided in his natural counsellors was ill-served; and if he relied upon new men, selected solely for their loyalty and qualifications, he incurred the reproach of tyranny or submission to unworthy favourites. The evils thus rooted in the German constitution had existed at an earlier date in France and England. To eradicate them was the object of the constitutional changes devised by the Plantagenets in England, by the later Capetian kings in France. And in essentials there is a strong likeness between the work of the two dynasties. But in England the policy of construction was earlier adopted, proceeded more rapidly, and produced an edifice which was more durable because established on a broader basis.

The first stage of the policy was to organise the administration of those parts of each kingdom which, not having been absorbed in privileged fiefs, were still subject to the royal justice and contributory to the royal revenue. Owing to the foresight of William the Conqueror, there were few such fiefs in England; only in two palatine earldoms (Durham and Cheshire), on the Welsh and northern borders, and on the lands of a few prelates, was the king permanently cut off from immediate contact with the subject population. With these exceptions the face of England was divided into shires, and administered by sheriffs who were nominees of the Crown, dismissable at pleasure. The shires again were divided into hundreds governed under the sheriff by subordinate officials. But for the most important duties of executive routine the sheriff alone was responsible; he collected the revenue, he led the militia, he organised the Watch and Ward and Hue and Cry which were the medieval equivalents for a constabulary; finally, he presided over the shire moot in which the freeholders gathered at stated

intervals to declare justice and receive it. The shires were periodically visited by Justices in Eyre (analogous to the Frankish *missi*) who heard complaints against the sheriff, inspected his administration, tried criminals, and heard those civil suits (particularly cases of freehold) which were deemed sufficiently important to be reserved for their decision. These itinerant commissioners were selected from the staff of the royal law court (*Curia Regis*), a tribunal which, in the thirteenth century, was subdivided into the three Courts of Common Law and acquired a fixed domicile at Westminster. The shire courts and the royal court were alike bound by the statute-law, so far as it extended; but, in the larger half of their work, they had no guides save the local custom, as expounded by the good men of the shire court, and the decisions recorded on the rolls of the royal court. From the latter source was derived the English Common Law, a system of precedents which, in spite of curious subtleties and technicalities, remains the most striking monument of medieval jurisprudence. In and after the fourteenth century it was supplemented by Equity, the law of the Chancellor's court, to which those suitors might repair whose grievances could not be remedied at Common Law, but were held worthy of special redress by the king in his character of a patron and protector of the defenceless. Lastly, on the fiscal side, the work of the sheriffs and of the judges was supervised by the Exchequer, a chamber of audit and receipt, to which the sheriffs rendered a half-yearly statement, and in which were prepared the articles of inquiry for the itinerant justices. Originally a branch of the *Curia Regis* and a tribunal as well as a treasury, the Exchequer always remains in close connection with the judicial system, since one of the three Courts of Common Law is primarily concerned with suits which affect the royal revenue. Such was the English scheme of administration, and *mutatis mutandis* it was reproduced in France. Here the royal demesne, small in the eleventh and twelfth centuries, was enormously enlarged by the annexations of Philip Augustus and the later Capets, who brought under

their immediate control the larger part of the Angevin inheritance, the great fiefs of Toulouse and Champagne, and many smaller territories. To provide for the government of these acquisitions, there was built up, in the course of the thirteenth century, an administrative hierarchy consisting of provosts, who correspond to the bailiffs of English hundreds, of *baillis* and *senechaux* who resemble the English sheriffs, of *enqueteurs* who perambulate the demesne making inspections and holding sessions in the same manner as the English Justices in Eyre. All these functionaries are controlled, from the time of St. Louis, by the *Chambre des Comptes* and the *Parlement*, the one a fiscal department, the other a supreme court of first instance and appeal. Within the *Parlement* there is a distinction between the Courts of Common Law and the *Chambre des Requetes* which deals with petitions by the rules of Equity.

The vices of both systems were the same. The local officials were too powerful within their respective spheres; neither inspectors nor royal courts proved adequate as safeguards against corruption and abuses of authority, which were the more frequent because the vicious expedients of farming and selling offices had become an established practice. Otherwise the English system was superior to that of France, particularly in making use for certain purposes of local representatives as an additional check upon the servants of the Crown. The English shire was in fact as well as in law a community with a true corporate character (*communitas*), and possessed a public assembly which was a law court and a local parliament in one. Though the ordinary suitor counted for little, the secondary landowners, united by ties of local sentiment and personal relationship, took a lively interest and an active share in the business of the shire court, upholding the local custom against sheriffs and judges, serving as jurors, as assessors of taxes, as guardians of the peace, and (from the fourteenth century) as petty magistrates. Whether elected by their fellows or the nominees of the Crown, these functionaries were unpaid, and regarded themselves as the defenders

of local liberty against official usurpations. In France the district of the *bailli*, and still more that of his subordinate the *prevot*, was an arbitrary creation, without natural unity or corporate sentiment; there was therefore no organised resistance to executive authority, and no reason why the Crown should court the goodwill of the landed gentry. In the lower grades of the Plantagenet system a powerful middle class served a political apprenticeship; under the Capets all power and responsibility were jealously reserved to the professional administrator. In England the next step in constitutional development, the addition to the national assembly of a Third Estate, was brilliantly successful, since the House of Commons was chiefly recruited from families which had long been active partners in local administration. In France the Third Estate, though constantly summoned in the fourteenth century, proved itself politically impotent.

Both in France and in England (after 1066) the national assembly began as a feudal council, composed of the prelates and barons who held their lands and dignities directly from the Crown. But that of France was, before the twelfth century, seldom convened, sparsely attended, and generally ignored by the greater feudatories, a conference of partisans rather than a parliament. In England the Great Council of the Norman dynasty, inheriting the prestige and the claims of the Anglo-Saxon Witenagemot, held from the first a more respectable position. Even a William I or a Henry II scrupulously adhered to the principle of consulting his magnates on projects of legislation or taxation; under the sons and grandson of Henry II the pretensions of the assembly were enlarged and more pertinaciously asserted. The difficulties of the Crown were the opportunity of Church and Baronage. The Great Council now claimed to appoint and dismiss the royal ministers; to withhold pecuniary aid and military service until grievances had been redressed; to limit the prerogative, and even to put it in commission when it was habitually abused. In fact the English nobility of this period, thwarted as individuals in their ambitions of territorial power,

found in their collective capacity, as members of the opposition in the Council, a new field of enterprise and self-aggrandisement. In France there was no such parliamentary movement, because the fundamental presupposition of success was wanting; because it was hopeless to appeal to public opinion, against a successful and venerated monarchy, in the name of an assembly which had never commanded popular respect. Under these circumstances it was natural that very different consequences should ensue in the two countries, when the reformation of their national assemblies was taken in hand by Edward I and his contemporary, Philippe le Bel. The problem before the two sovereigns was the same—to create an assembly which should be recognised as competent to tax the nation. The solutions which they adopted were closely alike; representatives of the free towns were brought into the Etats Generaux, of free towns and shires into the English Parliament; in each case a Third Estate was grafted upon a feudal council. But the products of the two experiments were different in temper and in destiny. The States General, practically a new creation, neither knew what powers to claim or how to vindicate them. They turned the power of the purse to little or no account; they discredited themselves in the eyes of the nation by giving proofs of feebleness and indecision in the first great crisis with which they were called to deal, the interregnum of anarchy and conspiracy that ensued upon the capture of King John at Poitiers (1356). The result was that the States General, occasionally summoned to endorse the policy or register the decrees of the monarchy, remained an ornamental feature of the French constitution. In England, on the other hand, the Commons accepted the position of auxiliaries to the superior Estates in their contests with the Crown; and the new Parliament pursued the aims and the tactics of the old Great Council, with all the advantages conferred by an exclusive right to grant taxation. For more than two hundred years it was a popular assembly in form and in pretension alone. The most active members of the Lower House were drawn from the lower ranks of the

territorial aristocracy; and the Commons were bold in their demands only when they could attack the prerogative behind the shield of a faction quartered in the House of Lords. But the alliance of the Houses transformed the character of English politics. Before Parliament had been in existence for two centuries, it had deposed five kings and conferred a legal title upon three new dynasties; it had indicated to posterity the lines upon which an absolutism could be fought and ruined without civil war; and it had proved that the representative element in the constitution might overrule both monarchy and aristocracy, if it had the courage to carry accepted principles to their logical conclusion.

Even in England a medieval Parliament was scarcely a legislature in our sense of the word. Legislation of a permanent and general kind was an occasional expedient. New laws were usually made in answer to the petitions of the Estates; but the laws were framed by the King and the Crown lawyers, and often took a form which by no means expressed the desires of the petitioners. The most important changes in the law of the land were not made, but grew, through the accumulated effect of judicial decisions. The chief function of Parliaments, after the voting of supplies, was to criticise and to complain; to indicate the shortcomings of a policy which they had not helped to make. Except as the guardians of individual liberty they cannot be said to have made medieval government more scientific or efficient. In the fifteenth century the English Commons criticised the government of the Lancastrian dynasty with the utmost freedom; but it was left for Yorkist and Tudor despots to diagnose aright the maladies of the body politic. Englishmen and Frenchmen alike were well advised when, at the close of the Middle Ages, they committed the task of national reconstruction to sovereigns who ignored or circumvented parliamentary institutions. A parliament was admirable as a check or a balance, as a symbol of popular sovereignty, as a school of political intelligence. But no parliament that had been brought together in any

medieval state was fitted to take the lead in shaping policy, or in reforming governmental institutions.

VIII

THE EXPANSION OF EUROPE—THE CRUSADES

Neither the internal development of the medieval state nor the international politics of medieval Europe can be explained without constant reference to class distinctions. First, there is a sharp line dividing each state horizontally and marking off the privileged few from the unprivileged many, the rulers from the ruled. Below the line are the traders, artisans, and cultivators of the soil; above it the landlords, the officeholders, and the clergy. If an industrial community, here and there a Milan or a Ghent, succeeds in asserting political independence, the phenomenon is regarded as anomalous and revolutionary; still graver is the head-shaking when mere peasants, like the Swiss, throw off what is called their natural allegiance. And such cases of successful rebellion are rare. It is true that in England, in France, and in the Spanish kingdoms there are privileged towns which receive the right of representation in national assemblies; but this concession to the power of the purse is strictly limited; the spokesmen of the burgesses are not invited to express opinions until asked for subsidies or military aid. Government is the affair of the King and the privileged classes. But again there is a division within the privileged classes, a vertical line of cleavage between the various grades of the lay and clerical aristocracies. The prelate and the baron, the knight and the priest, harmonious enough when it is a question of teaching the unprivileged their place, are rivals for

social influence and political power, are committed to conflicting theories of life. The ecclesiastic, enrolled in an order which is recruited from every social grade, makes light of secular rank and titles; he claims precedence over every layman; he holds that it is the business of the Church to command, of princes to obey. The lay feudatory, born into a hereditary caste of soldiers, regards war as the highest vocation for a man of honour, is impatient of priestly arrogance, and believes in his heart that the Church ought not to meddle with politics. It would be a mistake to think of the two privileged classes as always at strife with one another and their social inferiors. But the great wars of Pope and Emperor, the fourteenth-century revolts of French and English peasants, are not events which come suddenly and unexpectedly; each such outbreak is like the eruption of a volcano, a symptom of subterranean forces continually in conflict. The state of peace in medieval society was a state of tension; equilibrium meant the unstable balance of centralising and centrifugal forces. And this was one reason why wars, condemned in the abstract by the Church, were frequently regarded with favour by sober statesmen and by idealists. In more ways than one a successful war might serve to heal or salve the feuds of rival classes. It offered an outlet for the restless and anarchic energies of feudalism; sometimes it ended in conquests with which the landless could be permanently endowed. It might offer new markets to the merchant, a field of emigration to the peasant, a new sphere of influence to the national clergy. Better still, it might evoke common sentiments of patriotism or religion, and create in all classes the consciousness of obligations superior to merely selfish interests.

Such statecraft may perhaps seem rude and barbarous to us. The idea of a nation as a system of classes, and of national unity as a condition only to be realised when all classes combine for some purpose extraneous to the everyday life of the nation, is foreign to our thought. We believe that by making war upon class privileges we have given to the State a less divided

and more organic character. We maintain that the State exists to realise an immanent ideal, which we express by some such formula as "the greatest good of the greatest number." But we are still so far from a reconciliation of facts with theories that we must hesitate before utterly condemning the medieval attitude towards war. In place of classes we have interests, which are hard to unite and often at open variance. Our statesmen balance one interest against another, and consider war legitimate when it offers great advantages to the interests most worth conciliating. Nor have we yet succeeded in giving to the average citizen so elevated a conception of the purpose for which the State exists that he can think of national policy as something different from national selfishness. It is easier to criticise the enthusiasts who urged medieval nations to undertake "some work of noble note," remote from daily routine, than it is to discover and to preach a nobler enterprise on behalf of a less visionary ideal. It helps us to understand, though it does not compel us to accept, the medieval theory, when we find modern poets and preachers glorifying war as a school of patriotism or of national character.

Wars of conquest were less frequent in the Middle Ages than we might expect, and were usually waged on a small scale. Their comparative infrequency, in an age of militarism, must be explained by reference both to current morality and to economic conditions. For an attack upon a Christian power it was necessary that some just cause should be alleged. Public opinion, educated by the Church to regard Western Christendom as a single commonwealth, demanded that some respect should be shown to the ordinary moral code, even in international relations. Furthermore the medieval state, loosely knit together and bristling with isolated fortresses, showed in defeat the tenacious vitality of the lower organisms, and could not be entirely reduced without an expenditure, on the invader's part, which the methods of medieval state-finance were powerless to meet. Edward I failed to conquer the petty kingdom of Scotland; and the French provinces

which were ceded to Edward III escaped from his grasp in a few years. The profitable wars were border wars, waged against the disunited tribes of Eastern Europe, or the decadent Moslem states of the Mediterranean. And such wars were of common occurrence, sometimes undertaken by the nationalities most favourably situated for the purpose, sometimes by self-expatriated emigrants in search of a new home.

Thanks to the teaching of the Church, a large proportion of the border wars were converted into Crusades for the propagation of the faith or the extermination of the unbeliever or the defence of holy places. Often enough the religious motive was introduced as an afterthought, and gave a thin veil of respectability to operations which it would otherwise have been difficult to excuse. In some cases, however, those who enlisted as the soldiers of the Church were sacrificing their material interests for the good, as they supposed, of their own souls and the Christian commonwealth. There was nothing essentially Christian in this spirit of self-devotion; it had long been epidemic in the Mohammedan world, and accounts for the most successful encroachments of Islam upon Europe and the Eastern Empire. The impulse affected Western Christendom for a relatively short period of time, only once or twice producing movements at all commensurable with those which had emanated from Arabia, Asia Minor, and Africa, and leading to no conquests that can rank in magnitude with the caliphates of Bagdad, Cordova, and Cairo. But the Christian Crusade is in one sense more remarkable than the Mohammedan Jihad. Western Europe had long ago emerged from the nomadic stage, and even the ruling classes of Western Christendom, cosmopolitan as they may seem to us, were attached to their native soil by many ties. If the upheaval was smaller in the West than in the East, the material to be set in motion was more stubborn and inert, the prizes to be held before the eyes of the believer were more impalpable and dubious. There were ventures near at hand for which the Church could find volunteers without the slightest difficulty. But those which she was more

particularly bent on forwarding were distant, hazardous, and irksome; the majority of the men who went on her great Crusades had no prospect of any temporal advantage. In the end those enterprises to which she gave her special countenance proved the least successful. It was not in the Eastern Mediterranean but in Spain, in Lower Italy, and in Central Europe, that the frontiers of Western Christendom were permanently advanced. For the historian, however, the failures have an interest not inferior to that of the more productive enterprises.

The age of border wars and border colonies begins long before the appearance of a true crusading spirit. In German history the movement of expansion dates from Henry the Fowler; when he captured Brandenburg (928) and annexed the heathen tribes between the Elbe and Oder, he inaugurated a policy of settlement and colonisation which the German Margraves of those regions were to pursue, slowly and methodically for more than two hundred years. In its later stages the policy was sometimes assisted by Crusaders; from the first it made many converts to Christianity, and was furthered by the foundation of frontier sees and churches subject to the German archbishops of Hamburg and Magdeburg. But the men who directed the policy were purely secular and selfish. The greatest of them, Henry the Lion, Duke of Saxony from 1142 to 1180, and Albert the Bear, Margrave of Brandenburg from 1134 to 1170, concentrated their energies upon the development and extension of their principalities, exploited the Slavs, plotted against one another and their Christian neighbours, neglected national interests, and frankly made the Church the instrument of their ambitions. Yet in the craft of state-building they showed exceptional sagacity, enlisting as their allies the traders of the Baltic, the peasants of North Germany and the Low Countries. Under their rule and that of their most successful imitators, the Teutonic Knights in Prussia, cities such as Lubeck (founded 1143) and Dantsic (colonised 1308) became centres of German trade and culture; while the open country in the basins of the Elbe

and Oder was covered with newly settled villages of German immigrants. The effects of this colonisation have extended far beyond the lands immediately affected and the limits of medieval history. The new colonies laid the foundations of modern Prussia and modern Saxony. To their existence is due the connection of Poland and Bohemia with the state system of medieval Europe, and the consequent division of the Slavonic peoples into a western and an eastern group; the westward expansion of the Russian Empire was forestalled and prevented by these early pioneers of German and of Roman influence. Only less important was the German advance along the Danube, from the river Inn to Vienna and the Hungarian frontier, which was mainly directed by successive heads of the family of Babenberg (971-1246), first as Margraves and afterwards as Dukes of Austria. The Hapsburg power, like that of the Hohenzollerns, is partly an inheritance from medieval frontiersmen who drove a German wedge into the heart of a Slavonic territory.

The history of these German colonies often reminds us how naturally such business ventures came to be regarded as a species of crusade. In 1147 a large body of German pilgrims, enlisted for the Second Crusade, were allowed to fulfil their vows by serving against the Slav in the armies of Saxony and Brandenburg. The Babenberg dukes, grown weary of their monotonous work on the Danube, roamed eastward to conquer Egypt or Palestine, westward to exterminate the Albigensians of Languedoc and the infidels in Spain. And when we turn from Germany to the Spanish peninsula, the alliance between religious fervour and commercial enterprise is still more striking. The Christian reconquest of Spain and Portugal began two or three generations before the Council of Clermont; but, from the first, the southward advance against the rulers of Cordova foreshadows the age of the Crusades. In Spain, as in the German marks, the pioneers of Christendom were often ruffianly, and always fought with an eye to the main chance. Among them are mere desperadoes like the Cid Campeador

(d. 1099), who serves and betrays alternately the Christian and the Moorish causes, founds a principality at the expense of both religions, but is finally claimed as a hero and a martyr by his native Castile, because he has the good fortune to die in her allegiance. Many *conquistadores* of more reputable character settled down contentedly amongst a tributary and unconverted Moorish population, whose manners and vices they adopted. But in Spain the racial antipathies of Moors and Christians were always aggravated by religious zeal. Several times it seemed as though Spanish Christianity was in danger of complete extinction. In the tenth century two great rulers of Cordova, Abderrahman III and Al Mansur, drove back the Castilians to the northern mountains and raided the inmost recesses of the Christian territories. Somewhat later the Wild Berber hordes of the Almoravides and the Almohads, crossing from Africa to usurp the Ommeiad dominions and carry on the holy war with greater energy, aroused new fears and provoked in the threatened kingdoms a fanaticism equal to their own. The Spanish Christians appealed for help to their northern neighbours; armies of volunteers from Normandy, from Aquitaine, and from Burgundy, poured over the Pyrenees to strike a blow for the Cross against the Crescent, and incidentally to gain rich spoils or found a colony. The movement was early taken under the patronage of Rome. Gregory VII offered papal commissions to the immigrants, on condition that they would hold their conquests as vassals of the Holy See (1073). And thenceforth each new enterprise against the Moors was officially recognised as a service to the Catholic Church.

Still, even in Spain, the tendency was for material ambitions to gain the upper hand. All classes in the Christian kingdoms benefited by the wresting of a new province from the infidel. The nobles received new fiefs; the burghers flocked into the cities evacuated by the Moors, or were encouraged, by large grants of privileges, to build new cities; round the cities clustered communities of peasants, who joyfully exchanged the

barren security of the northern uplands for the risks and the prizes of the river valleys. No kings were so popular as those who planned and carried to a successful conclusion these ventures for the common good. One such ruler, James the Great of Aragon, has left us in his memoirs a faithful and instructive account of the use to which he and his subjects turned one of these so-called Crusades. At six years of age he had succeeded to a divided kingdom and the shadow of a royal prerogative. At fourteen he began a hard struggle, for the mastery of his rebellious barons and cities, which lasted five years and earned for him more credit than substantial success. When at length the rebels sued for peace, he was obliged to grant it without exacting compensation; the Crown remained as poor after the victory as before it. A little later he conceived the idea of attacking the Moors in the Balearic Isles, "either to convert them and turn that kingdom to the faith of our Lord, or else to destroy them." He propounded his plan to the Cortes (1229); and in a moment dissension was changed to harmony, civil indifference to loyal enthusiasm. The barons said that to conquer a Saracen kingdom set in the sea would be the greatest deed done by Christians for a hundred years. They would give an aid, they would find contingents, they would serve in person; always on the understanding that each should share in the spoils proportionately to the size of his contingent. The Archbishop of Tarragona, speaking for the clergy, said that now at last his eyes had seen the salvation of the Lord. He could not serve; he was too old for that; but his men and his money were the King's for this sacred undertaking, and he would gladly give a dispensation to any bishop or abbot who would go with the King; always provided that the clerical Crusaders were to share in the booty on the same terms as the laymen. To the same purpose, with the same stipulation, spoke the trading-cities. The expedition was a brilliant success. Majorca was reduced by the efforts of the whole expedition; Minorca capitulated without a struggle; and the Archbishop of Tarragona, by special licence from the King, conquered Ivica for himself. But the Moors were

neither extirpated nor converted. Those of Majorca became the tenants of the Crusaders between whom that island was divided. Those of Minorca paid an annual tribute to the King. In both islands they were guaranteed the use of their native customs and religion. Surveying the Crusade many years after it was completed, James expresses the highest satisfaction with the results. From Minorca he receives not only the agreed tribute, but whatever else he chooses to demand. As for Majorca, the Lord has so increased it that it produces twice as much as in the days of Moorish rule.

We are now in a position to understand the complex nature of the motives which animated the preachers, the generals, and the soldiers of the Crusades; for these enterprises are a continuation on a greater scale of the German, Spanish, and Norman wars of conquest.

Like the wars of Spain, the Crusades were suggested by fears of a Mohammedan advance; the signal for the First Crusade was given by the successes of the Seljuk Turks under Alp Arslan and Malik Shah (1071-1092). These uncivilised and fanatical usurpers of the caliphate of Bagdad overran the whole of Asia Minor and of Syria in twenty years; they dealt a heavy blow to the Eastern Empire on the field of Manzikert (1071), and founded in Asia Minor the sultanate of Roum; they established smaller principalities in Syria. The rulers of Constantinople sent urgent appeals for help to the West; and pilgrims returning from the Holy Places complained loudly of the insults and persecutions by which the conquerors manifested their hostility to the Christian faith. Gregory VII, immediately after his election, was moved to plan an expedition for the defence of the Eastern Empire, which he justly regarded as the bulwark of Europe against Islam. He issued a general appeal to the princes of Europe for help and personal service; he even proposed to accompany the relieving force. But Gregory, though not without imagination, lacked the power of firing popular enthusiasm, and aroused mistrust by the admission that he intended using

the Crusade in the first instance against the Normans of Lower Italy. Few volunteers were forthcoming, and his own energies were diverted to another channel by the outbreak of the War of Investitures. It was left for Urban II to revive Gregory's project, in another and more popular form, at a moment when Henry IV seemed a beaten and a broken man, and the unity of the Seljuk power had been shattered by the death of Malik Shah. In reality the danger from the Turks was then a thing of the past; but, even if Urban was correctly informed of their weakness, it needed little knowledge of history to warn him that one aggressive movement of Islam only died away to be succeeded by another. Like Gregory, he desired to strengthen the Eastern Empire; but his plan was new—to found a Latin state in Palestine for the defence of Jerusalem and the south-east Mediterranean. As with the First Crusade, so with the Second and the Third; each was a response to new victories of Mohammedan princes. The Second Crusade (1147) was proclaimed in consequence of the fall of Edessa, the north-east outpost of the Latin Kingdom. The Third (1189) was designed to recover Jerusalem and to cripple the sultanate of Egypt, which, under Saladin, seemed on the eve of absorbing not only Syria, but also Asia Minor and the Euphrates valley. The signal failure of an expedition for which armies were raised by the Emperor, the Kings of France and England, and many lesser princes, left the power of Egypt an object of almost superstitious awe. The Fifth Crusade (1217) and the Seventh (1248) expended their best energies in fruitless and disastrous descents on the Nile Delta.

To this view of the Crusades, as a business of high political importance, the best of the laymen who led the Christian armies were sincerely attached. Many others, equally sincere but governed more by sentiment than reason, were moved by the desire to see the Holy Places and secure them as the common property of Christendom. But the most pertinacious and successful of the commanders went eastward, as their kinsmen went across the Elbe or the Alps or the Pyrenees, to carve out for themselves new principalities at

the expense of Byzantine or Saracen, it did not matter which. Naturally the sovereign princes who took the Cross do not fall into this category. For them an expedition might be either an adventure, or the grudging fulfilment of a penance, or a bid for the esteem of their subjects; but it was often a conscious sacrifice of self-interest and national interests to a higher duty. However low their motives, it would not have paid them to turn aside from the task enjoined upon them by European opinion. Even Frederic II, the least Christian of Crusaders, who only accomplished his vow to put the Pope his adversary in the wrong, fulfilled his undertaking to the letter before he ventured to return. But a Crusade controlled by men of lower rank tended to be a joint-stock company of freebooters. For every Crusade the Pope was, to a certain point, responsible. He issued the appeal, he tuned the pulpits; he invited contributions from the laity and exacted them from the national churches; he provided for the enforcement by ecclesiastical censures of all Crusading vows. In the choice of leaders, and in the preliminary councils of war, he had a claim to be consulted. One or more of his legates normally accompanied the armies. But, if the generals chose to ignore his suggestions and to override his representatives, after the march had once begun he was powerless. Usually, it is true, his views would appeal to the rank and file, exempt as they were from the temptations presented to their leaders. But the Common soldiers could only leave the host if they had the means of paying for themselves the expenses of the homeward journey. Often they protested against the uses to which their arms were put; but very seldom were they able to enforce a change of policy.

[Illustration: The Crusaders]

These general statements may be illustrated from the First and Fourth Crusades.

Godfrey of Bouillon and his fellow-leaders, when they passed through Constantinople (1097), did homage to the Emperor Alexius for any lands that they might conquer. The transaction may not have been voluntary; this homage was the price demanded for a safe-conduct through the Greek dominions. But later events proved that the chief Crusaders were resolved not to hold their conquests as fiefs from the Holy See, for which they were nominally fighting. As they drew near to the Holy Land, it became clear that the rescue of the Holy Sepulchre was a subordinate consideration with them. At Tarsus and at Antioch there were fierce disputes between rival claimants to the conquered territories. Baldwin separated from the main army to found a seignory for himself at Edessa. Bohemund remained behind, when Antioch was once assigned to him, for fear that any rival should rob him of his prize. Raymond of Toulouse turned aside to reduce Tripoli, and was with the greatest difficulty constrained to continue the march. The final result of a war in which the loss of men must be reckoned by tens of thousands was the establishment of the four states of Jerusalem, Edessa, Antioch, and Tripoli. To extend the boundaries of these colonies, and to consolidate them under the suzerainty of the Crown of Jerusalem, was the work of their rulers for the next eighty years. These princes were esteemed as champions of the Cross; to assist them in the defence of their territories the military orders of the Temple and the Hospital were founded under the sanction of the Church; apart from the great relieving expeditions, such as those of 1101 and 1147 and 1189, annual fleets of soldier-pilgrims arrived to take part in the operations of the year. But there is little to show that either the Kings of Jerusalem or their great vassals ever justified their position by pursuing an unselfish policy. That the dominions which they ruled were imperfectly colonised cannot be made a reproach against them; only for knights and merchants had the Holy Land any attractions. But the inevitable weakness of the Frankish states was aggravated by their feuds and reciprocal ill-faith.

More than a hundred years elapsed before another expedition of this kind started for the East. The Second Crusade, inspired by St. Bernard acting as the half-reluctant spokesman of the Holy See, was ill-organised, ill-directed, and so disastrous a failure that it was followed by a perceptible reaction against the idealistic policy of which it was the outcome. It revealed to Europe the inefficiency of forces raised with more regard to the pious motives than to the efficiency of the recruits, and laid bare the calculating selfishness of the Latin principalities. But the principal leaders, Louis VII of France and the Emperor Conrad II, could not be charged with insincerity. They made gross mistakes, but were faithful to the purpose with which they set out. Similarly in the Third Crusade, though part of the failure can be directly attributed to the national jealousies of the various contingents, and to the quarrels of Richard I with the more important of his colleagues, the recovery of Jerusalem remained from first to last the dominant object of the army. There were cases of petulance, of unnecessary meddling in the squalid disputes of the Latin settlers, of readiness to depart on the first honourable excuse. But there was no disposition to make the pilgrimage a commercial undertaking. It was otherwise in 1203 when the soldiers of the Fourth Crusade set out from Venice, leaving behind them the papal legate and openly defying the injunctions of Innocent III, whose appeal to Christendom was nominally the warrant for their venture.

No kings sailed with them; from the first the movement had been in the hands of turbulent feudatories, inspired by chivalry rather than religion. Their leader, Boniface of Montferrat, the patron of all the troubadours and knights-errant of the South, was a sworn friend of the Pope's worst enemy, Philip of Suabia, the brother and successor of the Emperor Henry VI. Boniface had been elected to the command without the sanction of the Pope; and from an early date was in league with Philip to turn the Crusade against Constantinople. This plan was for a time concealed from the army, in which a majority of the common soldiers were bent upon recovering the

Holy Sepulchre. But the nobles, with whom lay the last word, were ready for whatever adventure the course of events might suggest. Their original hope was to conquer Egypt,—an infinitely more tempting prey than Palestine, where the chief fruits of any success would be claimed by the remnants of the standing garrison. To obtain ships from Venice they undertook on her behalf the siege of Zara; their first feat of arms was the conquest of a Christian city, the only offence of which was that it disputed the Venetian supremacy in the Adriatic. At Zara they were invited by Philip's envoys to attack Constantinople, to overthrow the Emperor Alexius III, and to substitute for him another Alexius, son of the deposed Isaac Angelus and brother-in-law to Philip. The proposal received enthusiastic support from the Venetians, whose great commercial interests in the Greek capital had been often assailed by the fanaticism of the city-populace. The Venetians held the key of the situation, since, if they withdrew their transports, the army could neither go forward nor return in safety; and the nobles, who needed little persuasion, were able to convince the more earnest pilgrims that Philip's offer must of necessity be accepted, though Alexius III was on friendly terms with the Pope and had been expected to assist the Crusade. To palliate the flagrant treachery a promise was exacted from the pretender that, when installed as Emperor, he would help in the conquest of Egypt with men, money, and supplies.

On July 17th, 1203, the army entered Constantinople, after a short siege. Alexius III escaped by flight and Alexius IV was installed in his place. Still the Crusaders lingered in a city the outward splendour of which appealed irresistibly to their imagination and their avarice. The winter, they said, was approaching, and their candidate far from secure upon the throne; they would wait for the spring. Before that date, and in spite of their countenance, he had fallen before a nationalist rebellion (January 1204); and the army hailed the opportunity of reuniting the Greek Church to Rome and partitioning the Greek Empire among themselves. An agreement was

made with the indispensable Venetians for the election of a Latin Emperor, to be endowed with one-fourth of the provinces; the booty of Constantinople and the remaining lands of the Empire were to be divided equally between the Venetians and the remaining leaders. For the second time Constantinople was carried by storm; a fire destroyed a large part of the city; and the Crusaders completed the devastation by three days of indiscriminate plunder and massacre. Neither the treasures of the churches nor the priceless monuments and statues of the public places were spared. The sum-total of the booty was thought to be equal to all the wealth of Western Europe; but when it came to the official division all that the knights obtained was twenty marks apiece; ten were the portion of a priest, and five of a foot-soldier. The other articles of the treaty, which had been referred for form's sake to the Pope, were executed without awaiting his reply. The Venetian candidate, Count Baldwin of Flanders, was elected to the Empire and received the Asiatic provinces. Boniface of Montferrat obtained, as a solatium, the kingdom of Thessalonica, embracing roughly the modern provinces of Thessaly and Macedonia; his followers were allowed to establish themselves by degrees in Central Greece and the Morea. The Venetians took the islands of the Ionian Sea, the Cyclades, and Aegina and Negropont; the provinces of Albania, Acarnania, and Aetolia; the city of Adrianople with the adjacent territories, and other possessions of less note.

The Pope, compelled to recognise accomplished facts, merely demanded three concessions: that the Latin faith should be established as the official religion of the Empire; that the possessions of the Greek Church should be handed over to the Latin clergy; and that the Crusaders should continue their pilgrimage at the end of a year. Only the first of these points was conceded. The Crusade of Innocent III ended, like that of Urban II, in the creation of a string of feudal states and commercial factories. But in 1204 there was hardly the attempt to justify what had been done in the name of religion. The Venetians behaved from first to last as commercial

buccaneers; a fickle and frivolous ambition, rather than calculating villainy, characterised their highborn associates. Plainly, these were the only materials available for a Crusade; the collapse of the Crusading policy was near at hand.

A few romantic careers illuminate the monotonously sordid annals of the Latin Empire, threatened from within by the feuds of the rival baronial houses, from without by the Bulgarians, the Greek despots of Epirus, and the Greek Emperors of Nicaea. Henry of Flanders, the second Latin Emperor (1205-1216), the one constructive statesman produced by the Crusade; William of Champlitte, who overran the Morea with but a hundred knights, was hailed by the oppressed Greeks as a liberator, and founded the Principality of Achaea (1205-1209) only to lose it through the treachery of a lieutenant; Niccolo Acciajuoli (+1365), the Florentine banker, who rose to be Lord of Corinth, Count of Malta, and administrator of Achaea—these were men who on a greater stage might have achieved durable renown. But the subject Greeks were not to be Latinised by a handful of energetic seigneurs and merchants; one by one, as opportunities occurred, the provinces of the Latin Empire deserted to the allegiance of Nicaea. Adrianople and Thessalonica were lost in 1222, the Asiatic territories by 1228; in 1261 Michael Palaeologus recovered Constantinople, which was to remain the possession of his family until the capture by the Turks (1453). In Greece and the islands the colonists maintained a foothold long after the fall of the Latin Empire. But the last of the Frankish Dukes of Athens fell, with all his chivalry, fighting against the Catalan Company (1311), a horde of freebooters half-Christian and half-Turkish in its composition. Achaea, after years of ignominious subjection to the Angevins of Naples, was similarly conquered by the Company of Navarre (1380). In a maimed condition the two states survived these calamities; but the Greeks and the Venetians were enabled to absorb the richest parts of the peninsula; the last traces of Frankish blood and institutions were swept away by the Turkish conquerors

of the fifteenth century. Before these grim invaders the Venetians and the Knights of St. John, the last representatives of Western power, slowly evacuated the Eastern Mediterranean.

The story of this brilliant and ephemeral episode in the expansion of Europe is closed by the Venetian peace of 1479 with the Sultan, and by the fall of Rhodes, the stronghold of the Knights, before the Turkish arms (1522). But in Malta, down to the commencement of the nineteenth century, might be seen the strange and scandalous spectacle of a Crusading Order, emancipated from the old vows and obligations, yet still allowed to exercise a medieval tyranny in memory of the services which their remote predecessors had rendered to the Cross. The other Orders had vanished, not less ignominiously, at earlier dates. The Templars, who had evacuated Syria to live on their European estates and ply the trade of bankers, were proscribed on charges of heresy, by Pope Clement V (1312), to gratify the brutal greed of a French king. The Teutonic Knights, better counselled by their Grand Master, Hermann of Salza (1210-1239), looked about for a new field of conquest; they found it on the lower Vistula, where they settled with the countenance of the Pope, the Emperor, and the King of Poland to reduce the heathen Slavs. But, embroiled with their Polish protector by their territorial ambitions, they were reduced, after 1466, to narrow boundaries in East Prussia; and hardly a voice was raised in their favour when the last Grand Master, a Hohenzollern by birth, became a Protestant and bequeathed the lands of the Order to his own family (1525).

From the adventures of the Frankish colonists we turn with relief to notice the last expiring flashes of enthusiasm in the armies equipped for their relief. The Germans and Hungarians of the Fifth Crusade (1217) showed more sincerity than worldly wisdom in delegating the chief command to a papal legate, and in following to the bitter end his reckless plan of campaign. Inspired with the hope of expelling Islam from the

Eastern Mediterranean, they would neither be content with Damietta, which they conquered, nor with the Holy Land, which was offered in exchange by the Sultan of Egypt. They would have all or nothing, and they lost even Damietta in the end. Their discomfiture by the Nile floods, which they had forgotten to take into their reckoning, was a tragi-comic ending to a campaign in which greed and discord had been expiated by extraordinary daring. St. Louis, in his Crusades of 1248 and 1270, flew in the face of common prudence and was thought a pious fool, even by the barons who were too loyal to disobey his call. But it is such follies that make history something better than a Newgate Calendar of the crimes of common sense. He was no general; his attack on Egypt was foredoomed to failure, and was made more disastrous by neglect of ordinary precautions; that on Tunis, undertaken in the heat of an African summer, ended, as might have been expected, in his own death and the decimation of his followers by disease. Even as an example these expeditions were all but fruitless. Yet, when the worst has been said of the Crusades and those who led them, there are moments in the quixotic career of St. Louis which haunt the fancy and compel our admiration: his bearing when, a captive of the Egyptian Sultan, he refused, even under threats of torture, to barter a single Christian fortress for his freedom; his lonely watch in Palestine, when for three years he patiently awaited the reinforcements that were never sent; his death-bed, when he prayed for strength to despise good fortune and not to fear adversity. Ideals may fade, but the memories of those who realise them are the world's abiding possession.

If we ask what results of a more tangible sort remained from the Crusades, when the service of the Holy Sepulchre had become a legend, and the name of Crusade a byeword for whatever enterprises are most impractical and visionary, the answer must be, that they affected Europe chiefly in a negative sense and through indirect channels. They helped to discredit the conception of the Church militant; they relieved Europe of a

surplus population of feudal adventurers; and they accelerated the impoverishment of those other feudal families which took an occasional part in the Holy War. It has never been proved that they led to wholesale emancipation of serfs, or wholesale enfranchisement of towns; though it is true that all such expeditions meant an increased demand for ready money. To Western civilisation they contributed very little, the truth being that there was little to be learned from the Mohammedans in Syria. It is through Palermo and Toledo, where Christianity and Islam met and mixed in peaceful intercourse, that the knowledge of Arab science and philosophy filtered into Europe. The Fourth Crusade was an exception to the general rule; it is no accident that Venetian art and architecture developed rapidly when the republic was brought into close and friendly relations with Constantinople. Through these relations, and through studying the masterpieces brought home by the Crusaders, Venetian artists recovered the antique feeling for pure form, and founded a school which was classical in spirit, Christian only in external and unessential features. The learning and literature which the Eastern Empire inherited from Rome and Athens had no attraction for Venetian merchant princes. But north of the Alps, and especially at Paris, the thirteenth century saw an increasing interest in the Greek language, and in Greek books, so far as they were useful to theologians or scholastic disputants. Politically the Fourth Crusade is memorable for its effect upon the Italian balance of power. It gave Venice an advantage over her commercial rivals, Pisa and Genoa, which she never lost; it gave her also a unique position as an intermediary between East and West; and it placed her at the head of an empire comparable to those of Athens and of Carthage, the great sea-powers of antiquity. But the nation-states of Northern Europe, who had borne the burden and heat of the Crusades, were less affected by them, politically or otherwise, than were the city-states of Italy.

IX

THE FREE TOWNS

Scattered broadcast over the territory of every medieval state are towns endowed with special privileges, and ruled by special magistrates. Some of these towns—particularly in Italy, Southern France, and the Rhineland—stand on the sites, and even within the walls, of ancient *municipia*, those miniature Homes which the statecraft of the Empire had created as seats of government and schools of culture. But, even in Italy, the medieval town is indebted to classical antiquity for nothing more than mouldering walls and aqueducts and amphitheatres and churches. The barbarians had ignored the institutions of the *municipium*, though it often served them as a fortress or a royal residence or a centre of administration. The citizens were degraded to the level of serfs; they became the property of a king, a bishop, or a count, and were governed by a bailiff presiding over a seignorial court. Only at the close of the Dark Ages, with the development of handicrafts and a commercial class, was it found necessary to distinguish between the town and the manorial village; and to a much later time the small town preserved the characteristics of an agricultural society. Many a burgess supplemented the profits of a trade by tilling acres in the common fields and grazing cattle on the common pastures; pigs and poultry scavenged in the streets; the farmyard was a usual adjunct of the burgage tenement. Whether small or great, the town was a phenomenon sufficiently unfamiliar to vex the soul of

lawyers reared upon Teutonic custom. They recognised that they were dealing with a new form of community; but they were not prepared to define it or to generalise about it. They preferred to treat each town as *sui generis*, an awkward anomaly, a privileged abuse.

Indeed, definition was no easy matter, for medieval towns differed infinitely in size, in government, and in the ingredients of their population. In one respect they are all alike; the most energetic and influential, though not necessarily the greater number, of the inhabitants are artisans or traders. But side by side with the industrial colony stand older interests, which often struggle hard against the ascendancy of commerce. In the town or near it there may be an abbey or a castle or a cathedral or a royal palace, to which the very existence of the burgess community is due. The townsmen, profiting by the custom and the protection of the great, have grown rich and independent; they have bought privileges or have usurped them. But they have still to reckon with the servants, the retainers, and the other partisans of a superior always on the watch to recover his lost rights of property and jurisdiction; the forces of the common enemy are permanently encamped within the walls. Again, if the town lies on a frontier or in newly-conquered country, it will be as much a fortress as a mart; a number of the residents will be knights or men-at-arms who hold their lands by the tenure of defending the town; and these burgesses will be naturally indifferent to the interests of the traders. Finally, in the Mediterranean lands, with their long tradition of urban society, we find the nobles of the neighbourhood resorting to the town, building town-houses, and frequently caballing among themselves to obtain control of the town's government. Often a long time elapses before the class which conceived the idea of municipal liberty is able to get the better of these hostile forces; and still more often the hardly-won privileges are wrested from those for whom they were intended, are cancelled, or are made the monopoly of an oligarchic ring.

Still, the aims of the medieval burgess are more uniform, from one place to another and from one generation to another, than we might anticipate in ages when information travelled slowly, and when the relations of every town to its lord were settled by a separate treaty. In modern Europe the town is an administrative district of the state, and is organised upon a standard pattern. In medieval Europe the town-charter was frequently a compromise with the caprices and the interests of a petty seignor; and even kings were inclined to deal with the towns which stood upon the royal demesne in a spirit of the frankest opportunism. Moreover, the inclination of all lords was to meddle with their burgesses no further than seemed necessary to ensure the full and punctual discharge of all services and pecuniary dues. So long as these were guaranteed, the internal affairs of the town might be left for the residents to settle as seemed good to them. But, as to the main conditions of the compact, each of the contracting parties holds clear-cut and unwavering views. The lords are agreed that privileges of trade and tenure may safely be granted if the chief magistrates are nominated by, and accountable to themselves. The townsfolk, on the other hand, assume that promises of free tenure and free trade will be worth nothing unless accompanied by the permission to elect all magistrates and councils.

Sometimes the victory rests with the lord, and sometimes with the burgesses. Accordingly, there are two kinds of chartered town. The larger class includes communities enjoying certain privileges under the rule of seignorial functionaries. A smaller class consists of those which are not only privileged but "free," that is, self-governing bodies corporate. The distinction between the two classes is not precise enough to satisfy a modern lawyer. Often a "free" town is obliged to allow the lord some voice in the appointment of magistrates; while the humblest body of traders may enjoy the right of doing justice in a market-court without the interference of a bailiff. The one class shades off into the other, if only for the reason that

"freedom" is usually won by a gradual process of bargaining or encroachment on the part of towns which are already privileged. The higher type is simply a later stage in the natural course of municipal development.

If we analyse the privileges of those towns which remain in leading-strings, the first in order of time and of importance is the town-peace, which only the king or his delegate can grant. Invested with this peace the town becomes, like a royal palace or the shrine of a saint, a sanctuary protected by special pains and penalties; the burgess stands to the king in the same relation as the widow and the orphan; to do him wrong is an outrage against the royal majesty. Next comes the right of trade. The burgesses are allowed to commute their servile dues and obligations for a fixed money-rent, that they may be at liberty for pursuits more lucrative than agriculture. They also receive a licence to hold a weekly market, and possibly a yearly fair as well; it is agreed that all disputes of traders, which arise in fair or market, shall be decided according to the law of merchants, the general usage of the commercial world; and a safe-conduct is granted to all strangers who resort to either gathering for lawful purposes. At first the tolls of the fair and market are collected by the lord, and the law-merchant is administered in the court of his bailiff. Often, however, he ends by leasing both the tolls and the commercial jurisdiction to the townsmen. When they are permitted (as in Flanders and in England) to form a merchant-gild, it is with this body that such bargains are concluded; and the gild usually purchases from the lord a quantity of other privileges—the monopoly of certain staple industries in the town and neighbourhood; rights of pre-emption over all imported wares; and the power of making by-laws to regulate wages, prices, the hours of labour, and the quality of manufactured goods. Where the lord is a sovereign prince, he is often induced to make concessions of a wider scope: freedom from inland tolls and from customs at the seaports; the right of making reprisals upon native and foreign enemies who rob the merchants

or infringe the privileges of the town; immunity, in civil suits, from every jurisdiction but that of the town-court.

It would be easy to multiply examples of this type of town, but we can only mention here a few whose history and customs are particularly instructive. One of the oldest is St. Riquier in Ponthieu, a notable instance of an industrial community dating from Carolingian times and fostered by the policy of a great religious house. The second half of the eleventh century is remarkable for the speculative acumen displayed by lay and secular lords in fostering the development of new commercial centres; the Norman *bourg* of Breteuil, founded in 1060 by a seneschal of William the Conqueror, deserves special consideration as a model extensively imitated in England, Wales, and Ireland; the Suabian towns of Allensbach and Radolfszell, chartered by the great Abbey of Reichenau a few years later, are monuments of German seignorial enterprise. Lorris en Gatinais, a town on the demesne of the French monarchy, received from Louis VI a set of privileges which became the standard for the numerous *villes de bourgeoisie* founded under the immediate sway of the Capetian dynasty.

But the charters thankfully accepted by new colonies or embryonic market-centres were insufficient to satisfy the aspirations of older and greater cities. At the very time when far-sighted seigneurs are scattering commercial privileges broadcast, there begins among the urban classes of North France, of Flanders, and of some Italian provinces, an agitation for more extensive rights, for "free" municipal constitutions of our second type. In these regions the popular cry is "Commune," *novum ac pessimum nomen*; and it is blended with complaints of feudal tyranny, which often develop, since the seigneur of the town is commonly a bishop or an abbot, into complaints against the Church. The commune is a sworn confederacy (*conjuratio*), which bears some resemblance both to the fraternities established for the enforcement of the Truce of God (*supra*, p. 103) and to

the merchant-gilds. But it has also new and striking features. It is formed in defiance of authority, and for the purpose of seizing rights which are legally vested in the seigneur or the Crown. It is hostile to the ruling classes of society; and the object of the members is to establish a republican form of government within their city. They are largely merchants or artisans; but they concern themselves with wider interests than those of trade, and often insist that no man, of whatever avocation, shall remain in the city unless he joins the commune.

We should be glad to know more of the bold spirits who directed the communal movement in this early stage. They startled contemporaries by their radicalism, and their conduct gives the lie to our preconceived idea that a townsman is a man of peace. These medieval burgesses were accustomed to defend their rights by force; there is nothing abnormal in the rule of the merchant-gild of Valenciennes that the gild-brethren should always bring their weapons with them to the market, and should ride in armed companies to distant fairs. The Milanese and the men of Ghent are typical in their greed for empire, in their readiness to strike a blow for their own profit whenever war is in the land. If the seigneurs of such cities gave cause for dissatisfaction, they found that they had brought a hornet's nest about their ears. In the struggle for liberties the popular party displayed a high courage which rose superior to defeat, though in the hour of triumph it was too often sullied by ferocious acts of vengeance. They threw themselves with intelligence and energy into the feuds of other interests and classes, backing the Church against the State, the State against the baronage, or the weaker against the stronger of two rival lords. The policy of the towns was often double-faced, material and separatist; but it also embodied ideals of justice and of citizenship which were destined to prevail in the struggle for existence, and to produce a wholesome reformation in the structure of society.

The communal programme was not realised in a day; the struggle for free governments, which began in the eleventh century, was continued into the thirteenth and fourteenth; and the forces of the movement were already exhausted in North France and Italy before it reached a head in South France or in Germany. Naturally, in a conflict waged over so wide an area for several hundred years, the watchwords were often modified, and many different patterns of town government were devised. In its later stages the movement was more peaceful, and the purse was often found a better argument than the sword; the communal parties ceased to be democratic, though they never ceased to be republican; and power was practically if not formally monopolised by a municipal patriciate. The mass-meeting of the burgesses, all-powerful in the days when the commune was an organised rebellion, gradually became insignificant in the older communes, and in many of the late foundations was never recognised at all, its powers being distributed among the craft-gilds meeting in their separate assemblies. Concurrent with this diminution in the importance of the ordinary burgess, there is a tendency to restrict the franchise by demanding higher and higher qualifications from the candidates. The commune, in fact, sinks almost to the level of a trades union or a benefit society, and membership is valued chiefly as a title to exclusive rights of trade and poor-relief. The political aspect of the institution is almost forgotten in countries where the power of the state gains ground upon the centrifugal forces of society; and, in those communes which preserve the dignity of states, an internecine conflict between the rich and poor, the rulers and the ruled, usually becomes the main feature of domestic politics.

In spite of these changes in principles and spirit, the organs of communal government are almost everywhere the same. The executive power is vested in a board or committee, called in Italy the *consules*, in France the *echevins*, *jurati*, or *syndics*, in Germany the *Rath* (council). Commonly this board has a president, known in France and England as the mayor, in Germany as the

burgomaster, who represents the body-corporate in all negotiations with the seigneur or the Crown or other communes. One or more councils (*sapientes, pares*, etc.) are often found assisting the executive with their advice; and in the older type of commune the mass-meeting plays a conspicuous part, not only electing magistrates and councils, but also voting taxes, auditing the accounts of expenditure, and deciding on all questions of exceptional importance. Where the general assembly is non-existent or moribund, offices are filled either by co-optation or by elections in the assemblies of the craft-gilds, or are even allowed to descend by hereditary right. As the popular control over the executive declines, jealousy of the executive leads to some disastrous changes: to the multiplication of offices, to the shortening of terms of office, to the creation of innumerable checks and balances, to the organisation of this or that powerful interest or party as a state within the state. But the morbid pathology of the communes in their last stage of decline is a subject with which we need not here concern ourselves. These intricate expedients, which are best exemplified in the constitution of fourteenth-century Florence, weakened the government but could not make it more impartial or more tolerant. By the end of the Middle Ages, the ordinary burgess was prepared to hail the advent of a royal bailiff or a self-constituted despot, as the only cure for the inveterate disorders incident to freedom.

It is refreshing to turn back from the period of disillusionment to that of sanguine expectations, and to study the commune in the period of infancy and growth, when no other refuge from anarchy and oppression was open to the industrial classes, and when emancipated serfs were still intoxicated with the dream of liberty.

Curiously enough, the communal revolution began most quietly in the land where it was ultimately responsible for the fiercest conflicts. The cities of North Italy gained their first instalments of freedom, at different periods

in the eleventh century, by bargains or by usurpations of which few records have come down to us. At Pisa we hear of an agreement between the bishop and the citizens (1080-1085) under which the latter are permitted to form a peace-association, to hold mass-meetings, and to elect *consules* who shall co-operate with the bishop in the government. At Genoa, on the other hand, the commune appears (in 1122) after several earlier *conjurationes* have been successfully resisted and dispersed. Probably the case of Pisa is more typical than that of Genoa, since we usually hear of a commune for the first time when it is already a fully developed institution. In most of the North Italian cities it was at the expense of a bishop that the commune was established. Legally the change meant the transference, from the bishop or another seigneur to the town, of powers derived by delegation from the Emperor; and it took place in the course of the Investitures contest, when the bishops, conscious of simony and other offences which made their position insecure, were more concerned to dissuade their citizens from siding with the party of ecclesiastical reform than to fulfil their duties as officials of the Empire. The Emperors themselves, hard-pressed in the struggle with the Papacy and eager to purchase support at any price, contributed to the success of the communal movement by the charters which they bestowed on some important cities.

In Northern France the situation was less favourable to the towns. Often indeed it suited the policy of the Capets to weaken an over-mighty subject by protecting his rebellious serfs. But the bishops and the lay seigneurs offered a pertinacious opposition to all demands for enfranchisement; the King was a timid and vacillating ally, always inclined to desert the cause of the townsfolk for a bribe, always in fear that the movement might spread to his demesne. Whatever his sympathies, he could do little, when it came to blows, but stand aside and watch the conflict. Two examples will serve to illustrate the general features of these feuds between municipalities and lords.

(1) In 1070 the men of Le Mans were driven to rebellion by the lawlessness of the local baronage, and by the oppressions of the governor whom an absentee count had put over them. They formed a commune, and compelled the more timid of their enemies to swear that they would recognise it. Others they caught and hanged or blinded; and they made systematic war against the castles of the neighbourhood, which they took one by one and burned to the ground—and this, says the outraged chronicler, in Lent and even on Good Friday! The citizens themselves thought no season too sacred for such a crusade against anarchy; once, when their militia went out to attack a castle, the bishop and his clergy were induced to lead the vanguard, bearing crosses and consecrated banners. But after a time the fortune of war turned against the commune; the militia were routed and the count's lieutenant recovered the castle which dominated Le Mans. The citizens offered their allegiance to the Count of Anjou, if he would deliver them. He came to the rescue, the governor fled, the castle was surrendered by the garrison and at once demolished. But, before the citizens had settled their future relations with Anjou, an English army appeared, led by William the Conqueror, their lawful suzerain. The Angevins effaced themselves; the citizens, making a virtue of necessity, opened their gates to the King; and since he would only confirm their ancient liberties, the existence of the commune was abruptly terminated (1073).

(2) At Laon in the next generation there was a wilder and more calamitous rising against the misrule of the bishop. His name was Waldric; he had been Chancellor to Henry I of England, and was elected by the chapter of Laon (1106) because of the great wealth which he had accumulated, none too honestly, in the course of his short official career. Much of his private fortune was expended in procuring the Pope's approval of his very irregular election. The remainder was soon squandered in extravagant and riotous living; and the bishop then began to exploit his

seignorial rights in Laon. His extortions were the more resented since he kept no order; the environs of the city swarmed with brigands and footpads, and kidnappers were allowed to work their will inside the city. At length the burgesses seized an opportunity, when the bishop was away in England, to set up a commune. On his return he was obliged to accept the situation and to recognise the commune in return for a substantial payment. But he further recouped himself by debasing the local currency, till it was practically worthless; and he gratified his spite against the citizens by an atrocious crime. Professing to have discovered a conspiracy against his life, he arrested the Mayor and caused the unhappy man to be blinded by a black slave, whom he employed as his bodyguard and executioner. The friends of the Mayor complained to the Pope; but the bishop got before them with his own version of the story, and by the help of bribery secured an honourable acquittal. By the same arguments he induced the King to quash the charter of the commune, and then seemed master of the situation. But the men of Laon conspired to kill him as he was going in state to the cathedral; he was with difficulty rescued by his knights, and found it necessary to garrison the episcopal palace with villeins from his country estates. Arrogant as ever, he boasted of his power and the satisfaction that he would exact; the time was coming, he said, when his black slave should pull the noses of the most respected citizens, and the fellows would not dare to grunt. He was soon undeceived. The mob of Laon stormed the palace and massacred the defenders; they found the bishop in the cellars, disguised as a peasant and hiding in an empty cask; they dragged him forth by the hair of his head, and hacked him to pieces in the street (1112). When a calmer mood returned, the citizens were appalled at the prospect of the King's indignation. Those who were conscious of guilt fled from the city, which was left half-deserted. The barons and the serfs of the surrounding country swooped like vultures upon Laon, pillaged the empty houses and fought with one another for the spoil. For the next sixteen years the remnant of the citizens lived a miserable

existence as the mere serfs of Waldric's successors. In 1128 the King permitted them to associate under a Mayor, for the better maintenance of the public peace; but they were denied the title of a commune, and continued to be subject to the jurisdiction of the bishop.

These dramas of oppression and retaliation, though characteristic in the sense that they reveal the worst faults and the best excuses of the communal movement, were happily exceptional in Northern France; not because oppression was rare, but because rebellions defeated their own object. No seignorial concessions were worth the parchment on which they were inscribed, without a confirmation from the King; and it was not the King's interest to condone sacrilege or overt treason against a feudal lord. Hence the founders of a North French commune preferred to keep their agitation within the bounds of law. They invoked the King's help, and he, for an adequate consideration, destroyed seignorial rights by a few strokes of the pen; which he did the more readily since his lawyers had formulated the doctrine that communes were tenants of the Crown, liable to military service and to taxation at the royal pleasure. From the close of the twelfth century there was a firm alliance between the Third Estate and the French monarchy. On the whole it was more advantageous to the King than to the communes. Under St. Louis and his successors, when the power of the feudatories was broken, the commune presented itself as an obstacle in the path of central government. On one pretext or another, here because of faction-fights and there for mismanagement of the communal finances, the cities lost their charters and passed under the rule of royal commissioners. It was a poor compensation that the Third Estate obtained the right of sending delegates to the States General of the Kingdom. Representation brought new liabilities without corresponding rights. The Third Estate, holding jealously aloof from the estates of the nobles and the clergy, was powerless against a determined sovereign.

The French commune, in fact, was a special expedient for the cure of a transitory evil. Republican institutions were in France an exotic growth, inconsistent with national traditions, and only welcome to classes which had neither the political intelligence nor the material resources to maintain their own ideals in the face of persistent opposition. It is significant that the charters of the French communes were frequently cancelled with the approval of the citizen assemblies. The situation was different in Flanders and North Italy, where the city was the natural unit of society, and the burgher class, enriched by foreign trade, were strong enough to negotiate on equal terms with their nominal superiors. Cities such as Ghent and Milan were shielded from contact with the great monarchies until the habit of self-government was firmly rooted in the citizens. When at last they were confronted with the absolutist claims of the Capets or the Hohenstauffen, these cities did not shrink from a direct appeal to arms; and the wars which they waged for independence are not the least interesting chapter of medieval history.

Flanders was vexed by a problem of over-population, for which neither the continuous exodus of emigrants nor the systematic reclaiming of marsh-lands offered a permanent solution. At an early date her middle-classes discovered the grand principle of modern industry: that by manufacturing for foreign markets the production of wealth can be accelerated to an indefinite degree, and the most prolific communities maintained in affluence upon a sterile or restricted territory. The superfluous labour of the Flemish countryside flocked into towns, at the bidding of Flemish capital, and found remunerative employment in the weaving trade. From 1127 onwards these towns were bargaining with the Counts of Flanders for emancipation. Bruges, Ypres, Lille and Ghent were only the most successful among forty thriving communities which, at the close of the twelfth century, enjoyed a large measure of self-government but found their liberties threatened by the King of France. To meet the danger the Flemish

communes embarked on the stormy sea of politics. At first they fought the King, in the name of the Count, and made their first appearance as a military power on the disastrous field of Bouvines (1214), which cost Count Ferrand his liberty and the communes the flower of their militia. The successors of Ferrand sank deeper and deeper into dependence on the Capets, until the communes were forced in self-defence to assume the leading role. At Courtrai (in 1302) they turned the tables on the Crown, and took an ample vengeance for Bouvines, by a terrible slaughter of French knights and men-at-arms, demonstrating to a startled Europe that feudal tactics were obsolete, and that pikemen on foot were a match for the best mailed cavalry. Cheated by a treacherous Count of the due fruits of their victory, the Flemish communes nursed their resentment and waited for new opportunities, while consoling themselves with savage persecution of the nobles, the clergy, and all others whom they suspected of French sympathies. The ambition of Edward III came at length to their assistance; under the leadership of Jacques van Artevelde, a merchant-prince and demagogue of Ghent, they signed a treaty with the English King for the invasion and conquest of France (1339). It was a brief and ill-starred alliance, ruinous to Flemish trade and abruptly ended by the fall of Artevelde, whom his fellow-citizens tore limb from limb under the impression that he was aiming at a tyranny (1345). But events soon justified the bold proposals of the fallen statesman. In 1369 the heiress of the county was given to a French prince of the blood; the French party in Flanders reared their heads; Bruges, to the alarm and fury of all patriots, joined the foreign cause from jealousy of Ghent. War broke out between the two great rivals; and the men of Ghent, commanded by Philip, the son of Jacques van Artevelde, gained the upper hand. Victorious in a pitched battle, they pursued the beaten army into Bruges, massacred the partisans of France, and put the city to the sack. No other commune dared to imitate the policy of Bruges, or to dispute the supremacy of Ghent in Flanders. The younger

Artevelde, like his father before him, stood out for a brief moment as the dictator of a league of free republics. But the generals of France had profited by their hard experience in the wars with England; at Roosebeke (1382) the men of Ghent, charging the French cavalry "like wild boars," found themselves outflanked, and were crushed by the weight of superior science and numbers. They fought with the fury of despair, neither expecting nor receiving quarter. More than twenty thousand of the citizens fell in the battle, and were left, by the King's order, unburied on the field. The corpse of Artevelde, who had been suffocated in the press, was hanged on a gibbet for a warning to all demagogues. With him died the day-dream of an independent Flanders. Though her cities remained prosperous, they were destined to be successively the subjects of the Burgundian, the Spaniard, and the Austrian. It was only in 1831 that Flanders at length became a province in a kingdom based on the Walloon nationality.

The Italian communes present, in their sharp vicissitudes of fortune, a spectacle not less dramatic and infinitely more momentous for the general history of Europe. In Italy, as in Flanders, the fair ideal of civic freedom was blurred and defaced by party feuds and personal ambitions, by the fickleness and passion of the mob, by the lust of conquest and the fratricidal jealousies of neighbouring republics. Yet to the influence of this ideal we must attribute both the solidarity of the Italian city-state and the wealth of individual genius which it fostered. The Italian Renaissance was little more than the harvest-time of medieval Italy, the glorious evening of a day which had dawned with the Fourth Crusade and had reached high noon in the lifetimes of Dante and Giotto. In the fifteenth century the aptitudes which had ripened in the intense and crowded life of turbulent republics were concentrated upon art and letters. The leisure and the security which the specialist demands were bought by renouncing the Utopian visions of the past. But the growth of technical dexterity was a poor compensation for the narrowing of interests; the individual was sacrificed to make the artist; and

art, too, suffered by the divorce from practical affairs. If we are moved to impatience by the waste of life and energy involved in the turmoils of medieval Italy, we must remember that in no atmosphere less electric would the national energies have matured so early, or piled achievement on achievement with such feverish speed.

[Illustration: (map) The Alps and North Italy]

The city, from time immemorial the meeting-ground for the best elements in Italian society, had become in the early Middle Ages the one bulwark between the Italian middle-classes and a particularly lawless form of feudalism; and it had served this purpose well. The number of these cities, their population and resources, the luxury of the citizens, the splendour of the palaces and public buildings, were the admiration of all Europe at a time when the Flemish burghers still lived in wooden houses and the Flemish cities were still rudely protected by palisades and earthen ramparts. Nature had done much for Italy. Thanks to the central situation of the peninsula, the trade between Northern Europe and the Mediterranean converged upon her seaports and the Alpine passes which stand above the valley of the Po. The untiring industry of Italian capital and labour made Lombardy and Tuscany the homes of textile manufactures, of scientific cultivation, of banking and finance. In every port of the Levant, the Aegean and the Black Sea, the shipmen and merchants of Venice, Benoa, and Pisa hunted for trade like sleuth-hounds, and fought like wolves to secure a preference or a monopoly. By land and sea the rule of life was competition for territory and trade. War was a normal and often a welcome incident in the quest for wealth; few Italians were free from the belief that conquests are a short cut to prosperity, that trade follows the flag, and that the gain of one community must be another's loss. Within the city walls, class strove with class and family with family. Riot, massacre, and proscription were the normal instruments of party warfare; minorities conspired from fear of proscription, and majorities

proscribed in order to forestall conspiracy. Boundless, indeed, was the vitality of republics which, under such conditions, not only thrived, but also held at bay the ablest sovereigns and the most formidable troops of Europe.

The best and the worst features of the communal regime are illustrated in the resistance of the Lombard cities to Frederic Barbarossa, the first Emperor who formulated and applied to Italy a scheme of absolutist government. Between 1154 and 1176 the Lombards turned the course of history. They prepared the way for Innocent III to plant his foot upon the necks of kings, and for Innocent IV to destroy the House of Hohenstauffen. That this would be the result of their stand for liberty, neither they nor the other parties to the struggle could foretell. But on both sides it was felt that the greatest issues were at stake. The question was whether Italy should, once for all, accept a German yoke; whether the Papacy should become a German patriarchate; whether free institutions, both in Church and State, should give place to a bureaucracy.

The question did not take this shape from the beginning. When Frederic first intervened in Lombardy he came to protect the smaller cities against the imperialist ambitions of Milan, to restore the public peace, to investigate innumerable complaints of force and fraud. Many of the cities hailed him as a deliverer; against him were only the clients of Milan, or those who, on a humbler scale, aspired to emulate her policy. Even so it was no easy matter to chastise the most insignificant of the contumacious communes; and Milan, who refused point-blank to give satisfaction for her lawless acts of conquests, or even to renounce what she had won, could not safely be attacked.

Two circumstances were against the Emperor. Any war against the Lombards must be a war of sieges; but the military science of the age was more skilful in defence than in attack. And no war could be carried to a

prosperous conclusion without Italian help; for it was impossible to interest the German princes in the wars of Italy, or to exact substantial help from them. The first of these difficulties Frederic Barbarossa never overcame. With the second he was more successful in the middle period of the conflict (1158-1162); and it was then that the representatives of Lombard independence were most nearly overwhelmed.

In 1158 he came back from Germany to besiege Milan, having carefully concluded treaties with her rivals in Lombardy, in the Mark of Verona, in Emilia and the Marches. With their help he starved the impregnable city into a surrender on terms dictated by himself. In these there was nothing to excite suspicion or alarm. It was a matter of course that the Milanese should take the oath of allegiance and emancipate the enslaved cities. He stipulated further for a palace in the city, and for the restitution of all imperial prerogatives (*regalia*) which the consuls had usurped; but the full import of these latter articles only became clear some two months later, when he announced his future policy at a Diet held on the plain of Roncaglia. He disclaimed the intention of ruling as a tyrant, but demanded that his lawful rights should be respected. As guardian of the public peace, he would permit no private wars to be waged and no leagues to be formed among the cities. As lord of the land, he claimed, under the title of *regalia*, a formidable list of rights and dues which the jurists of Bologna had compiled at the expense of much historical research. It included the nomination of the highest magistrate in every city; the supreme jurisdiction in appeals and criminal causes; the control of mints, markets, and highways; and rights of purveyance and taxation. Some of these had been in abeyance from time immemorial; most of them had been exercised by the cities for more than fifty years. Frederic held that no prescription could avail against the Crown; and, if this attitude seemed more appropriate to a Justinian than to a King of the Lombards, there was still something to be said for his claims on grounds of public policy. Till a strong monarchy was re-established in Italy, city

would oppress city, and the strong would rob the weak. But such a monarchy could only be maintained if an ample revenue were assured, and if the powers arrogated by the communes were curtailed.

Even those cities which had originally supported Frederic began to waver when they saw the logical consequences of his policy. They were not disposed to cavil at any measures that he might take against Milan. But to deal with friend and foe on the same principles struck them as injustice. To run the risk of enslavement by a neighbour was an evil; but it was worse to lose for ever the prospect of enslaving others. And what guarantee was there that the new absolutism, once firmly in the saddle, would always be benevolent, or would always be represented by officials of integrity? The claims of the Emperor might be in a sense historical; but the cities knew, if he did not, that the so-called restoration of *regalia* was in effect a revolution. The time was nearly ripe for general defection; loyalty was strained to breaking-point when Frederic began to appoint for each city a resident commissioner (*podesta*), empowered to exercise the regalian rights and to collect the revenue accruing from them. But Milan was still feared and hated. When she alleged that her recent treaty of capitulation was infringed by the decrees of Roncaglia, and when she expelled the envoys whom Frederic had sent to instal a *podesta*, the other cities rallied to the imperial cause. There was one notable exception. The little commune of Crema had been ordered to destroy her walls; she refused, and made common cause with her great neighbour.

The imperial ban was issued against both cities (April 1159); troops were hurriedly called up from Germany, and contingents were obtained from the Italian allies, until Frederic had in the field a force estimated at 100,000 men. But for six months he was held in check by the resistance of Crema, which he had planned to reduce with a small force while the main bulk of his levies were gathering for the siege of Milan. The attack on Crema was

cordially seconded by the citizens of the neighbouring Cremona, who gave their assistance in diverting the watercourses which ran through the city, and lent Frederic the most famous of living engineers to make his siege-machines. Crema was completely invested; and every known method of assault was tried. The moat was filled with fascines, and movable towers of wood, so high as to overtop the battlements, were brought up to the walls; which were also attacked with rams, and undermined by sappers working in the shelter of huge penthouses. But breaches were no sooner made than repaired; every scaling-party was repulsed; and the defenders derided the Emperor in opprobrious songs. For once in his life he descended to bluster and ferocious inhumanity. He swore that he would give no quarter, he executed captives within sight of the walls, and he suspended his hostages in baskets from the most exposed parts of the siege-towers. Fortunately for his fame he relented, when hunger and the desertion of their master-engineer compelled the Cremesi to sue for terms. They received permission to depart with as much property as they could carry on their backs. The rest fell to the imperial army; and the men of Cremona were commissioned to demolish the city, which they did with a goodwill. The turn of Milan followed; the Emperor, warned by experience, fell back upon the slow and costly, but irresistible method of blockade. At the end of eight months (May 1161-Feb. 1162) the city was surrendered, evacuated, and condemned to destruction—a sentence which it was found impossible to execute completely, so solid were the ramparts and so vast the buildings they enclosed. For the moment all resistance seemed at an end. The policy outlined at Roncaglia could at length be put in force through the length and breadth of Lombardy; and Frederic departed for Germany, leaving trustworthy lieutenants to complete the vindication of his Italian rights. It only remained to try conclusions with a recalcitrant Pope and the evasive Normans of the South. The Emperor already saw himself in imagination the master of Italy, and even of the Western Mediterranean. Five years passed

without bringing him nearer to his goal. Then Frederic returned to effect the expulsion of Alexander III from Rome. He succeeded in this object, and was crowned in St. Peter's by the anti-Pope of his own choosing (August 1167). It was the highest point of his fortunes, and the calamities which followed were so unforeseen and terrible that contemporaries saw in them the hand of God. While he was still in Rome, a pestilence broke out which cost him two thousand knights and his best counsellors. He was forced to fly from the infected city. On his way to the north he found the road barred by a new and formidable coalition. The Lombard League had come into existence—an alliance organised by Cremona, hitherto the staunchest of imperial allies, and closely linked with Venice, which Frederic had regarded as a negligible quantity. Of the intentions of the League there could be no doubt. The members were already engaged in the rebuilding of Milan; they had admitted to their inmost councils a legate of Alexander III; they announced that they would only render to the Emperor his ancient and undoubted rights. Frederic would not trust himself in their vicinity. Accompanied by a handful of knights he escaped ignominiously to the north, taking a circuitous route through Savoy. The Leaguers no longer troubled to mask their true intentions. As a token of their unity they built the city of Alessandria, named after Frederic's bitterest enemy, the lawful Pope; and they solemnly repudiated the appellate jurisdiction of the imperial law-court (1168).

Six years elapsed before Frederic could return to demand satisfaction, and even then he could only muster some eight thousand men. From October 1174 to April 1175 he was engaged, first in besieging Alessandria, and then in making fruitless overtures to the League for a compromise. By the end of 1175 he was virtually blockaded in Pavia with a dwindling remnant of his army. Reinforced in the spring, he made a rapid march on Milan, in the hope of taking unawares the headquarters of the League. But the Lombards were forewarned, and met him, at Legnano (29th May 1176),

with a force outnumbering his by more than two to one. The battle was hotly contested. The Lombard vanguard, composed of cavalry, scattered before the onslaught of the Germans. The Emperor then led a charge which penetrated to the centre of the enemy's position. Here was the banner of Milan, mounted on a triumphal car (*carroccio*) and guarded by picked burgesses, who had sworn to defend their trust to the death. Round them the fighting raged for hours; the Germans made no impression on their ranks, and by degrees the Lombard troops who had fled returned to renew the battle. At length the imperial standard-bearer was slain, and Frederic himself unhorsed. Thinking all was lost, the imperialists fled confusedly towards Pavia, which they reached after suffering more loss in the flight than in the battle. Frederic, cut off from his followers, only escaped capture by hiding for some days until the road to Pavia was clear.

Legnano was no overwhelming catastrophe, but it was ominous that citizen levies had defeated German knights in a fair field. Frederic's counsellors insisted that it was foolhardiness to pursue the war interminably, when at any moment the papal interest might gain the upper hand in Germany. Peace must be made at any cost with Alexander, and he would accept no peace from which the Lombards were excluded. Frederic yielded to the inevitable with a good grace. A treaty was concluded with the Pope in the same year (November 1176); a few months later, a six years' truce with the Lombards was arranged at Venice; and at Constance, in 1183, this was converted into a lasting peace. In form there was a compromise. The cities, while retaining the regalia and the free election of their consuls, recognised their allegiance to the Emperor and his appellate jurisdiction. In reality the Emperor had surrendered everything of value, and the cities ignored any stipulations in the treaty which were unfavourable to them.

So matters remained until Frederic II, the grandson of Barbarossa, having firmly established himself in his Sicilian heritage, began to meditate a

closer union between his dominions north and south of the Alps. The better to secure his communications with Germany, he prepared to enforce in Lombardy the imperial rights reserved at Constance (1226). At once the dormant Lombard League revived. The Alpine passes were so effectually blockaded that Frederic was left entirely dependent on his Sicilian forces. He turned the flank of the League at length, by an alliance with Ezzelin da Romano, the tyrant of Verona, which gave him access to the Brenner pass; but the League retaliated by lending support to his rebellious son, Henry, King of the Germans. So began another war in Lombardy. Legnano was brilliantly avenged on the field of Cortenuova (1237), where the Emperor routed the Milanese and captured the *carroccio*, the symbol of their independence. But he, like his grandfather, was worn out by the difficulties of siege warfare; and in 1240 he turned southward to reduce the States of the Church. One more attempt he made on Lombardy in the winter of 1247-1248. But a disastrous fiasco destroyed his hopes and gave a mortal blow to his prestige. For five months he blockaded Parma, and the city was at the last gasp, when he imprudently dismissed a part of his troops. The garrison saw their opportunity, and made a desperate sortie while the Emperor was absent on a hunting expedition. They surprised and burned the strongly fortified camp which he had named Victoria; his baggage and even his crown jewels were captured; more than half of his army were slain or taken, and the rest fled in confusion to Cremona (18th February 1248). It was necessary for Frederic to beat a retreat, and he appeared no more in Lombardy. His son Enzo, whom he left to represent him, was captured next year by the Bolognese and sentenced to perpetual captivity.

Frederic died in 1250; and from this year we may date both the disruption of the Empire and the decadence of the free Italian commune. What he had failed to effect, with the united power of Sicily and Germany behind him, was accomplished by a score of petty local dynasties. At Milan the Visconti completed the enslavement which the Delia Torre had first planned; at

Verona it was the Scaligeri who entered on the imperial inheritance; at Ferrara, the Este; at Padua the Carrara; at Mantua, the Gonzaga. The tide of despotism rose slowly but surely, until in the fifteenth century Venice alone remained to remind Italy of the possibility of freedom.

It is to Germany, rather than Italy or Flanders, that we must look for the last and perhaps the most fruitful phase in the development of medieval town life. Free institutions were acquired by the German towns comparatively late; and although it was the Lombard commune which they aspired to reproduce, they never succeeded in securing so large a measure of independent power, or in making themselves the capitals of petty States. The Hohenstauffen, like the early Capets, were sensible of the advantages to be gained by alliance with the Third Estate; but Frederic II was obliged to renounce the right of creating free imperial cities within the fiefs of the great princes; and most towns were left to bargain single-handed with their immediate lords. Shut off from any prospects of territorial sovereignty, the towns, even those which held from the Empire, were also excluded from the Diet until the close of the fifteenth century. Trade afforded the only outlet for their activities. But in trade they engaged with such success that, by the close of the Middle Ages, Augsburg rivalled Florence as a centre of cosmopolitan finance, and the Baltic towns had developed a commerce comparable to that of the Mediterranean. It was the Baltic trade which gave birth to a new form of municipal league, the famous Hansa. The nucleus of this association was an alliance formed between Lubeck and Hamburg to protect the traffic of the Elbe. Other cities were induced to affiliate themselves, and in 1299 the Hansa absorbed the older Gothland League of which Wisby was the centre. By the year 1400 there were upwards of eighty Hanseatic cities, lying chiefly in the lower Rhineland, in Saxony, in Brandenburg, and along the Baltic coast; but the commercial sphere of the League extended from England to Russia and from Norway to Cracow.

The Hanseatic cities were subject to many different suzerains, and were federated only for the protection of their trade. The League was loosely knit together; there was a representative congress which met at irregular intervals in Lubeck; but the delegates had no power to bind their cities. There was only a small federal revenue, no standing fleet or army, and no means of coercing disobedient members save by exclusion from trade privileges. Yet this amorphous union ranked for some purposes as an independent power. The Hansa policed the Baltic and the waterways and high roads of North Germany; it owned factories (steelyards) in London, Bruges, Bergen, and Novgorod; it concluded commercial treaties, and on occasion it waged wars. In the fourteenth century it monopolised the Baltic trade, and was courted by all the nations which had interests in that sea. In the fifteenth it began to decline, and in the age of the Reformation sank into insignificance. New sea-Powers arose; England and the Netherlands, Sweden and Denmark, came into competition with the Hansa; the growth of territorialism in Germany sapped the independence of the leading members of the league; and the Baltic trade, like that of the Mediterranean, became of secondary importance when the Portuguese had discovered the Cape route to India, and when the work of Columbus, Cortes, and Pizarro opened up a New World in the Western hemisphere.

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